This Face Page attaches to and becomes a part of the following policy:

Insured: Market Metal Pipe And Supply LLC
Policy #: ENS0012781
Effective Date: 11/15/2025
Date Policy/Endorsement Received:
Zip Code of Risk Location: 77010

THIS INSURANCE CONTRACT IS WITH AN INSURER NOT LICENSED TO TRANSACT INSURANCE IN THIS STATE AND IS ISSUED AND DELIVERED AS SURPLUS LINE COVERAGE UNDER THE TEXAS INSURANCE STATUTES. THE TEXAS DEPARTMENT OF INSURANCEDOES NOT AUDIT THE FINANCES OR REVIEW THE SOLVENCY OF THE SURPLUS LINES INSURER PROVIDING THIS COVERAGE, AND THE INSURER IS NOT A MEMEBER OF THE PROPERTY AND CASUALTY INSURANCE GUARANTY ASSOCIATION CREATED UNDER CHAPTER 462, INSURANCE CODE, CHAPTER 225, INSURANCE CODE, REQUIRES PAYMENT OF A 4.85 PERCENT TAX ON GROSS PREMIUM.
Rev.4/1/09

Name and Address of Insurer:
Scottsdale Insurance Company

Name and Address of Surplus Lines Agent:
RT Specialty
155 N Wacker, Suite 4000
Chicago, IL 60606

Premium:	$29,500.00
TRIA Premium:	
Fees:	Policy Fee - Carrier $500.00 Brokerage Fee $500.00
Surplus Lines Tax:	$1,479.25
Stamping Fee:	$12.20
Total:	$31,991.45

820 Gessner, Suite 1850
Houston, TX 77024
Ph: 713-932-5300
www.rtspecialty.com

SURPLUS LINES FILING DECLINATIONS DETAIL

NAME OF INDIVIDUAL LICENSEE THAT MADE DILIGENT EFFORT TO PLACE WITH ADMITTED CARRIER:		PHYSICAL ADDRESS OF RISK: 1301 McKinney StHoustonTX77010
INDIVIDUAL LICENSE NUMBER:		

NAME OF INSURED:	Market Metal Pipe And Supply LLC
POLICY NUMBER:	ENS0012781

☐ I confirm the full amount of required insurance cannot be obtained, after a diligent effort, from an admitted insurer in TX (TX Code 981.004.)

OR

☐ I confirm this insured qualifies as an industrial insured (TX code 981.0033) and no evidence of diligent effort is required. I have made the disclosures required by the TX code to the industrial insured and have received this insured's written request to obtain insurance from the surplus lines market.

OR

☐ I confirm this insured qualifies as Exempt Commercial Purchaser (ECP) (TX Code 981.0031) and no evidence of diligent effort is required. I have made the disclosures required by the TX code to the ECP and have received this insured's written request to obtain insurance from the surplus lines market.

Signature of Producer Date

Print Name

RT Specialty is a division of RSG Specialty, LLC. RSG Specialty, LLC is a Delaware limited liability company and a subsidiary of Ryan Specialty, LLC. In California: RSG Specialty Insurance Services, LLC (License # 0G97516).

DUAL Energy

Energy casualty policy

Nationwide®

Scottsdale Insurance Company
National Casualty Company
Scottsdale Indemnity Company
Scottsdale Surplus Lines Insurance Company

CLAIM REPORTING INFORMATION

Your insurance policy has been placed with a Nationwide® insurance company.

Our commitment to you is to provide fast, fair claim service. Promptly reporting an event that could lead to a claim, as required by your policy, helps us fulfill this commitment to you. Please refer to your policy for this and all other terms and conditions.

To report a claim, you may contact us 24 hours a day, 7 days a week, by calling 1-800-423-7675 or via our website at www.nationwideexcessandsurplus.com.

Thank you for your business and as always, we appreciate the opportunity to serve you.

HOW TO REPORT A CLAIM

Call **1-800-423-7675** or visit our website at www.nationwideexcessandsurplus.com.

In order to expedite this process, please be prepared to furnish as much of the following information as possible:

- Your policy number
- Date, time and location of the loss/accident
- Details of the loss/accident
- Name, address and phone number of any involved parties
- If applicable, name of law enforcement agency or fire department along with the incident number

Please refer to your policy for specific claim reporting requirements.

National Casualty Company
Scottsdale Indemnity Company
Scottsdale Insurance Company
Scottsdale Surplus Lines Insurance Company
Harleysville Insurance Company of New York

NOTICE—FRAUD WARNINGS

FRAUD WARNING: Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance or statement of claim containing any materially false information or conceals for the purpose of misleading, information concerning any fact material thereto commits a fraudulent insurance act, which is a crime and subjects such person to criminal and civil penalties. (Not applicable in AL, AR, CA, CO, DC, FL, KS, KY, LA, ME, MD, MN, NE, NJ, NY, OH, OK, OR, PR, RI, TN, VA, VT, or WA.)

NOTICE TO ALABAMA APPLICANTS: Any person who knowingly presents a false or fraudulent claim for payment of a loss or benefit or who knowingly presents false information in an application for insurance is guilty of a crime and may be subject to restitution fines or confinement in prison, or any combination thereof.

NOTICE TO CALIFORNIA APPLICANTS. For your protection California law requires the following to appear on this form: Any person who knowingly presents false or fraudulent information to obtain or amend insurance coverage or to make a claim for the payment of a loss is guilty of a crime and may be subject to fines and confinement in state prison.

NOTICE TO COLORADO APPLICANTS: It is unlawful to knowingly provide false, incomplete, or misleading facts or information to an insurance company for the purpose of defrauding or attempting to defraud the company. Penalties may include imprisonment, fines, denial of insurance, and civil damages. Any insurance company or agent of an insurance company who knowingly provides false, incomplete, or misleading facts or information to a policy holder or claimant for the purpose of defrauding or attempting to defraud the policy holder or claimant with regard to a settlement or award payable from insurance proceeds shall be reported to the Colorado Division of Insurance within the Department of Regulatory Agencies.

WARNING TO DISTRICT OF COLUMBIA APPLICANTS: It is a crime to provide false or misleading information to an insurer for the purpose of defrauding the insurer or any other person. Penalties include imprisonment and/or fines. In addition, an insurer may deny insurance benefits if false information materially related to a claim was provided by the applicant.

NOTICE TO FLORIDA APPLICANTS: Any person who knowingly and with intent to injure, defraud, or deceive any insurer files a statement of claim or an application containing any false, incomplete, or misleading information is guilty of a felony of the third degree.

NOTICE TO KANSAS APPLICANTS: Any person who, knowingly and with intent to defraud, presents, causes to be presented or prepares with knowledge or belief that it will be presented to or by an insurer, purported insurer, broker or any agent thereof, any written, electronic, electronic impulse, facsimile, magnetic, oral, or telephonic communication or statement as part of, or in support of, an application for the issuance of, or the rating of an insurance policy for personal or commercial insurance, or a claim for payment or other benefit pursuant to an insurance policy for commercial or personal insurance which such person knows to contain materially false information concerning any fact material thereto; or conceals, for the purpose of misleading, information concerning any fact material thereto, commits a fraudulent insurance act, which is a crime and subjects such person to criminal and civil penalties.

NOTICE TO KENTUCKY APPLICANTS: Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance containing any materially false information or conceals, for the purpose of misleading, information concerning any fact material thereto commits a fraudulent insurance act, which is a crime.

NOTICE TO MAINE APPLICANTS: It is a crime to knowingly provide false, incomplete or misleading information to an insurance company for the purpose of defrauding the company. Penalties may include imprisonment, fines or a denial of insurance benefits.

NOTICE TO MARYLAND APPLICANTS: Any person who knowingly or willfully presents a false or fraudulent claim for payment of a loss or benefit or who knowingly or willfully presents false information in an application for insurance is guilty of a crime and may be subject to fines and confinement in prison.

NOTICE TO MINNESOTA APPLICANTS: A person who files a claim with intent to defraud or helps commit a fraud against an insurer is guilty of a crime.

NOTICE TO NEW JERSEY APPLICANTS: Any person who includes any false or misleading information on an application for an insurance policy is subject to criminal and civil penalties.

NOTICE TO OHIO APPLICANTS: Any person who, with intent to defraud or knowing that he is facilitating a fraud against an insurer, submits an application or files a claim containing a false or deceptive statement is guilty of insurance fraud.

NOTICE TO OKLAHOMA APPLICANTS: Any person who knowingly, and with intent to injure, defraud or deceive any insurer, makes any claim for the proceeds of an insurance policy containing any false, incomplete or misleading information is guilty of a felony.

NOTICE TO OREGON APPLICANTS: Any person who intentionally presents a materially false statement in an application for insurance may be guilty of fraud and subject to penalties under state law.

NOTICE TO PUERTO RICO APPLICANTS: Any person who knowingly and with the intention of defrauding presents false information in an insurance application, or presents, helps, or causes the presentation of a fraudulent claim for the payment of a loss or any other benefit, or presents more than one claim for the same damage or loss, shall incur a felony and, upon conviction, shall be sanctioned for each violation by a fine of not less than five thousand dollars ($5,000) and not more than ten thousand dollars ($10,000), or a fixed term of imprisonment for three (3) years, or both penalties. Should aggravating circumstances be present, the penalty thus established may be increased to a maximum of five (5) years, if extenuating circumstances are present, it may be reduced to a minimum of two (2) years.

FRAUD WARNING (APPLICABLE IN ARKANSAS, LOUISIANA AND RHODE ISLAND): Any person who knowingly presents a false or fraudulent claim for payment of a loss or benefit or knowingly presents false information in an application for insurance is guilty of a crime and may be subject to fines and confinement in prison.

FRAUD WARNING (APPLICABLE IN VERMONT AND NEBRASKA): Any person who intentionally presents a materially false statement in an application for insurance may be guilty of a criminal offense and subject to penalties under state law.

FRAUD WARNING (APPLICABLE IN TENNESSEE, VIRGINIA AND WASHINGTON): It is a crime to knowingly provide false, incomplete, or misleading information to an insurance company for the purpose of defrauding the company. Penalties include imprisonment, fines, and denial of insurance benefits.

NEW YORK OTHER THAN AUTOMOBILE FRAUD WARNING: Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance or statement of claim containing any materially false information, or conceals for the purpose of misleading, information concerning any fact material thereto, commits a fraudulent insurance act, which is a crime, and shall also be subject to a civil penalty not to exceed five thousand dollars and the stated value of the claim for each such violation.

NEW YORK AUTOMOBILE FRAUD WARNING: Any person who knowingly and with intent to defraud any insurance company or other person files an application for commercial insurance or a statement of claim for any commercial or personal insurance benefits containing any materially false information, or conceals for the purpose of misleading, information concerning any fact material thereto, and any person who, in connection with such application or claim, knowingly makes or knowingly assists, abets, solicits or conspires with another to make a false report of the theft, destruction, damage or conversion of any motor vehicle to a law enforcement agency, the department of motor vehicles or an insurance company, commits a fraudulent insurance act, which is a crime, and shall also be subject to a civil penalty not to exceed five thousand dollars and the value of the subject motor vehicle or stated claim for each violation.

U.S. TREASURY DEPARTMENT'S OFFICE OF FOREIGN ASSETS CONTROL ("OFAC") ADVISORY NOTICE TO POLICYHOLDERS

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's web site – http//www.treas.gov/ofac.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.

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SCOTTSDALE INSURANCE COMPANY®

TEXAS REQUIRED NOTICE

This insurance contract is with an Insurer not licensed to transact insurance in this state and is issued and delivered as Surplus Line coverage under the Texas Insurance Statutes. The Texas Department of Insurance does not audit the finances or review the solvency of the Surplus Lines Insurer providing this coverage, and the Insurer is not a member of the Property and Casualty Insurance Guaranty Association created under Chapter 462, Insurance Code. Chapter 225, Insurance Code, requires payment of a 4.850 % tax on gross premium.

POLICY DECLARATIONS

SCOTTSDALE INSURANCE COMPANY®

Home Office:
One Nationwide Plaza • Columbus, Ohio 43215
Administrative Office:
8877 North Gainey Center Drive • Scottsdale, Arizona 85258
1-800-423-7675
A STOCK COMPANY

New
Renewal of Number

Policy Number
ENS0012781

ITEM 1. NAMED INSURED

Market Metal Pipe And Supply LLC

MAILING ADDRESS:

1301 McKinney St Houston, TX 77010

AGENT NAME AND ADDRESS:
DUAL Commercial, LLC
1100 Fifth Avenue South, Suite 301
Naples, FL 34102

Agent No.: 09738 Program No.:

ITEM 2. POLICY PERIOD From: 11/15/2025 To: 11/15/2026 Term: 365 days

12:01 A.M., Standard Time at the mailing address shown in ITEM 1.

ITEM 3. PREMIUM

In return for the payment of the premium, and subject to all the terms of this policy, we agree with you to provide the insurance as stated in this policy. This policy consists of the following coverage parts for which a premium is indicated. Where no premium is shown, there is no coverage. This premium may be subject to adjustment.

Coverage Part(s)	Premium Summary
Policy Premium:	$ 29,500.00
TRIA Premium:	$ 0.00
Total Policy Premium:	$ 29,500.00
Policy Fee: & Inspection Fee:	$ 500.00
Policy Total:	**$ 30,000.00**

SUBJECT TO APPLICABLE TAXES AND STATE FEES

Nationwide®

ITEM 4. LIMITS OF INSURANCE

Coverage	Limit of Liability	
All Coverage Parts	$ 2,000,000	General Aggregate
General Liability	$ 2,000,000	Products/Completed Operations Aggregate
	$ 1,000,000	Each Occurrence
	$ 1,000,000	Personal & Advertising Injury
	$ 300,000	Damage to Premises Rented to you
	$ 10,000	Medical Payments
Contractors Pollution Liability	$ 2,000,000	Work-Completed Operations Aggregate
	$ 1,000,000	Each Occurrence
Professional Liability	$ 1,000,000	Each Claim
Site Pollution Liability	$ N/A	Each Pollution Incident

ITEM 5. DESCRIPTION OF BUSINESS

Form of Business:

☐ Individual ☐ Partnership ☐ Joint Venture ☐ Trust ☒ Limited Liability Company

☐ Organization including a corporation (other than Partnership, Joint Venture or Limited Liability Company)

ITEM 6. FORMS AND ENDORSEMENTS

Form(s) and Endorsement(s) made a part of this policy at time of issue:

See Schedule of Forms and Endorsements

ITEM 7. RETROACTIVE DATES

Commercial General Liability: _____

Contractors Pollution Liability: _____

Professional Liability: 11/15/2022

Site Pollution Liability: _____

THIS POLICY DECLARATION, TOGETHER WITH THE COMMON POLICY CONDITIONS, COVERAGE PART(S), COVERAGE FORM(S) AND FORM(S) AND ENDORSEMENT(S), IF ANY, COMPLETE THE ABOVE-NUMBERED POLICY.

Scottsdale Insurance Company

IMPORTANT NOTICE—TEXAS

Have a complaint or need help?

If you have a problem with a claim or your premium, call your insurance company first. If you can't work out the issue, the Texas Department of Insurance may be able to help.

Even if you file a complaint with the Texas Department of Insurance, you should also file a complaint or appeal through your insurance company. If you don't, you may lose your right to appeal.

Scottsdale Insurance Company

To get information or file a complaint with your insurance company:

Call: Scottsdale Insurance Company

Toll-free: 1-800-423-7675

Online: www.nationwideexcessandsurplus.com.

Email: ESSContactUs@Nationwide.com

Mail: Scottsdale Insurance Company
18700 North Hayden Road
Scottsdale, Arizona 85255

The Texas Department of Insurance

To get help with an insurance questions or file a complaint with the state:

Call with a question:1-800-252-3439

File a complaint: http://www.tdi.texas.gov

Email: ConsumerProtection@tdi.texas.gov

Mail: Consumer Protection
MC: CO-CP
Texas Department of Insurance
P.O. Box 12030
Austin, Texas 78711-2030

AVISO IMPORTANTE—TEXAS

¿Tiene una queja o necesita ayuda?

Si tiene un problema con una reclamación o con su prima de seguro, llame primero a su compañía de seguros. Si no puede resolver el problema, es posible que el Departamento de Seguros de Texas (Texas Department of Insurance, por su nombre en inglés) pueda ayudar.

Aun si usted presenta una queja ante el Departamento de Seguros de Texas, también debe presentar una queja a través del proceso de quejas or de apelaciones de su compañía de seguros. Si no lo hace, podría perder su derecho para apelar.

Scottsdale Insurance Company

Para obtener información o para presentar una queja ante su compañía de seguros:

Llame a: Scottsdale Insurance Company

Teléfono gratuito: 1-800-423-7675

En Línea: www.nationwideexcessandsurplus.com.

Correo Electrónico: ESSContactUs@Nationwide.com

Dirección Postal: Scottsdale Insurance Company
18700 North Hayden Road
Scottsdale, Arizona 85255

El Departamento de Seguros de Texas

Para obtener ayuda con una pregunta relacionada con los seguros o para presentar una queja ante el estado:

Llame con sus preguntas al: 1-800-252-3439

Presenta una queja en: www.tdi.texas.gov

Correo Electrónico: ConsumerProtection@tdi.texas.gov

Dirección Postal: Consumer Protection
MC: CO-CP
Texas Department of Insurance
P.O. Box 12030
Austin, Texas 78711-2030

Nationwide®

Nationwide®

Underwritten by: Scottsdale Insurance Company
Home Office: One Nationwide Plaza • Columbus, Ohio 43215
Administrative Office: 8877 North Gainey Center Drive • Scottsdale, Arizona 85258
1-800-423-7675 • A Stock Company

In Witness Whereof, the Company has caused this policy to be executed and attested.

Secretary

President

The information contained herein replaces any similar information contained elsewhere in the policy.

SCOTTSDALE INSURANCE COMPANY®

SCHEDULE OF FORMS AND ENDORSEMENTS

Policy No.: ENS0012781

Effective Date: 11/15/2025
12:01 A.M., Standard Time

Named Insured: Market Metal Pipe And Supply LLC

Agent No.: 09738

NOTX0178CW / Claim Reporting Information - PKG
NOTX0650CW (03-24) / Notice - Fraud Warnings
IL P 001 01 04 / U.S. Treasury Department's Office of Foreign Assets Control ("OFAC") – Advisory Notice to Policyholders
NOTS0079TX / Texas Required Notice - PKG
ENS-D-1 (8-21) / Policy Declarations - PKG
NOTS0065 TX (06-23) / Important Notice- Texas
UTS-COVPG / Cover Page - PKG
UTS-SP-2L (12-95) / Schedule of Forms and Endorsements - PKG
IL 00 17 11 98 / Common Policy Conditions - PKG
ENS-SP-1 (5-15) / Schedule of Classifications - PKG
ENS-3 (1-17) / Package Limits Endorsement - PKG
ENS-4 (6-15) / NORMS, LLRM, MLRRW Endorsement - PKG
ENS-5 (6-15) / Minimum Earned Cancellation Premium Endorsement - PKG
ENS-6 (6-15) / Liability Deductible Endorsement - PKG
ENS-7 (6-15) / Gulf Of Mexico In Rem And Territory Endorsement - PKG
IL 00 21 09 08 / Nuclear Energy Liability Exclusion Endorsement - PKG
UTS-9G (06-22) / Service of Suit - TX
ENS-12 (5-15) / Exclusion Of Certified Acts Of Terrorism - PKG
IL 01 68 / Texas Changes - Duties - PKG
UTS-230g-TX / Prompt Payment of Claims - Texas - PKG
ENS-37 (6-15) / Premium Audit Endorsement - PKG
ENS-40 (9-15) / Waiver of Subrogation - PKG
ENS-44 (1-17) / Primary and Noncontributory - Other Insurance Condition - PKG
GLS-666 (06-22) / PFC/PFAs Exclusion
ENS-25 (6-15) / Silica Exclusion - PL
ENS-26 (5-15) / Limitation of Coverage to Designated Professional Services - PL
ENS-28 (6-15) / Asbestos Exclusion - PL
ENS-P-2 (9-21) / Professional Liability Coverage Form - PL
ENS-60 (06-23) / PFC-PFAS Exclusion - PL
ENS-63 (12-24) / Wrap-Up Insurance Program Exclusion (PL)
ENS-14 (6-15) / Silica Exclusion - CPL
ENS-16 (6-15) / Asbestos Exclusion - CPL
ENS-17 (6-15) / Additional Insured Owners, Lessees Or Contractors—Completed Operations - CPL
ENS-42 (1-16) / Additional Insured—Owners, Lessees, or Contractors—Scheduled Person or Organization - CPL
ENS-P-1 (9-21) / Contractors Pollution Liability Coverage Form - CPL
ENS-61 (06-23) / PFC-PFAS Exclusion - CPL
ENS-64 (12-24) / Wrap-Up Insurance Program Exclusion (CPL)
CG 00 01 04 13 / Commercial General Liability Coverage Form (Occurrence) - GL
GLS-58s (12-93) / Lead Contamination Exclusion - GL
ENS-18 (6-15) / USLH & Jones Act Exclusion - GL
ENS-22 (5-15) / Asbestos Exclusion - GL
ENS-24 (6-15) / Aircraft Products and Grounding Exclusion - GL
ENS-20 (6-15) / Breach of Contract Exclusion - GL
ENS-39 (5-15) / Watercraft Amendatory - GL
CG 25 03 05 09 / Designated Construction Project(s) General Aggregate Limit - GL
CG 21 47 12 07 / Employment-Related Practices Exclusion - GL

CG 22 43 04 13 / Exclusion – Engineers, Architects Or Surveyors Professional Liability - GL
CG 21 06 12 23 / Exclusion - Access or Disclosure of Confidential or Personal Material Information
CG 21 96 03 05 / Silica Or Silica-Related Dust Exclusion - GL
CG 20 10 10 01 / Additional Insured – Owners, Lessees Or Contractors – Scheduled Person Or Organization - GL
CG 20 37 10 01 / Additional Insured – Owners, Lessees Or Contractors – Completed Operations - GL
GLS-91s (1-10) / Hired Auto And Nonowned Auto Liability - GL
CG 04 35 12 07 / Employee Benefits Liability Coverage - GL
ENS-35 (1-16) / Subcontractors Special Conditions - GL
CG 21 32 05 09 / Communicable Disease Exclusion - GL
ENS-62 (12-24) / Wrap-Up Insurance Program Exclusion (GL)
ENS-19 (6-18) / Products Pollution Liability Endorsement - GL
GLS-304S (7-08) / Cross Liability Exclusion

COMMON POLICY CONDITIONS

All Coverage Parts included in this policy are subject to the following conditions.

A. Cancellation

1. The first Named Insured shown in the Declarations may cancel this policy by mailing or delivering to us advance written notice of cancellation.
2. We may cancel this policy by mailing or delivering to the first Named Insured written notice of cancellation at least:
   a. 10 days before the effective date of cancellation if we cancel for nonpayment of premium; or
   b. 30 days before the effective date of cancellation if we cancel for any other reason.
3. We will mail or deliver our notice to the first Named Insured's last mailing address known to us.
4. Notice of cancellation will state the effective date of cancellation. The policy period will end on that date.
5. If this policy is cancelled, we will send the first Named Insured any premium refund due. If we cancel, the refund will be pro rata. If the first Named Insured cancels, the refund may be less than pro rata. The cancellation will be effective even if we have not made or offered a refund.
6. If notice is mailed, proof of mailing will be sufficient proof of notice.

B. Changes

This policy contains all the agreements between you and us concerning the insurance afforded. The first Named Insured shown in the Declarations is authorized to make changes in the terms of this policy with our consent. This policy's terms can be amended or waived only by endorsement issued by us and made a part of this policy.

C. Examination Of Your Books And Records

We may examine and audit your books and records as they relate to this policy at any time during the policy period and up to three years afterward.

D. Inspections And Surveys

1. We have the right to:
   a. Make inspections and surveys at any time;
   b. Give you reports on the conditions we find; and
   c. Recommend changes.
2. We are not obligated to make any inspections, surveys, reports or recommendations and any such actions we do undertake relate only to insurability and the premiums to be charged. We do not make safety inspections. We do not undertake to perform the duty of any person or organization to provide for the health or safety of workers or the public. And we do not warrant that conditions:
   a. Are safe or healthful; or
   b. Comply with laws, regulations, codes or standards.
3. Paragraphs **1.** and **2.** of this condition apply not only to us, but also to any rating, advisory, rate service or similar organization which makes insurance inspections, surveys, reports or recommendations.
4. Paragraph **2.** of this condition does not apply to any inspections, surveys, reports or recommendations we may make relative to certification, under state or municipal statutes, ordinances or regulations, of boilers, pressure vessels or elevators.

E. Premiums

The first Named Insured shown in the Declarations:

1. Is responsible for the payment of all premiums; and
2. Will be the payee for any return premiums we pay.

F. Transfer Of Your Rights And Duties Under This Policy

Your rights and duties under this policy may not be transferred without our written consent except in the case of death of an individual named insured.

If you die, your rights and duties will be transferred to your legal representative but only while acting within the scope of duties as your legal representative. Until your legal representative is appointed, anyone having proper temporary custody of your property will have your rights and duties but only with respect to that property.

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SCOTTSDALE INSURANCE COMPANY®

SCHEDULE OF CLASSIFICATIONS

Policy No.: ENS0012781 Effective Date: 11/15/2025
12:01 A.M. Standard Time

Named Insured: Market Metal Pipe And Supply LLC Agent No.: 09738

Class Description	Class Code	Rating Basis
Pipes or Tubes Mfg. - metal	58009	sales
Machinery or Machinery Parts Mfg. - industrial type	56652	sales

Coverage is not limited to or restricted to classifications shown in this schedule.

SCOTTSDALE INSURANCE COMPANY®

ENDORSEMENT NO. _____

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PACKAGE LIMITS ENDORSEMENT

This endorsement modifies the insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS-COMPLETED OPERATIONS COVERAGE PART
CONTRACTORS POLLUTION COVERAGE PART
SITE POLLUTION COVERAGE PART
PROFESSIONAL LIABILITY COVERAGE PART

This endorsement modifies the respective coverage parts and limits as set forth in the Declarations. This endorsement also modifies the way Limits of Insurance are allocated if more than one coverage part is purchased. Please read this endorsement carefully and in conjunction with the respective coverage forms that are attached.

Limits of Insurance

ITEM 4. of the Declarations lists the General Aggregate Limit of Insurance for all combined coverage parts. The General Aggregate Limit of Insurance for all combined coverage parts is the maximum limit of liability we will pay under all of the coverage parts combined, for all damages, occurrences, claims and suits, except for damages because of "bodily injury" or "property damage" included in the "products-completed operations hazard" and "work-completed operations hazard." Please review the respective coverage forms for further details.

ITEM 4. of the Declarations lists the Products/Completed Operations Aggregate and Work-Completed Operations Aggregate for "products-completed operations hazard" and "work-completed operations hazard." The maximum limit of insurance we will pay under the Products/Completed Operations Aggregate or Work-Completed Operations Aggregate shall not exceed the greater of either limit.

If more than one coverage part contained in this Policy applies to the same damage(s), occurrence(s), claim(s) and suit(s), the maximum Limit of Insurance under all coverage parts shall not exceed the highest single Limit of Insurance under any one coverage part.

Any Sublimit(s) of Insurance set forth elsewhere under the terms of this Policy, shall be part of, and not in addition to, the General Aggregate Limit of Insurance set forth in **ITEM 4.** of the Declarations.

Each sublimit is the maximum limit of liability we will pay. Please review the respective coverage forms for further details.

If the General Aggregate Limit of Insurance as set forth in **ITEM 4.** of the Declarations is exhausted, all obligations under this Policy as respects the applicable coverage part(s) will be completely fulfilled and we will have no further obligations under this Policy. Furthermore, the premium as respects the applicable coverage part(s) as set forth in **ITEM 3.** of the Declarations will be fully earned.

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If more than one Policy issued to you by us or any company affiliated with us applies to the same damages, occurrences, claims and suits, the maximum limit of insurance under all policies shall not exceed the highest single Limit of Insurance.

All other provisions of the Policy apply.

AUTHORIZED REPRESENTATIVE DATE

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SCOTTSDALE INSURANCE COMPANY®

ENDORSEMENT NO. _____

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NORMS, LLRW AND MLLRW ENDORSEMENT

This endorsement modifies the insurance provided under the following:

CONTRACTORS POLLUTION COVERAGE FORM
SITE POLLUTION COVERAGE FORM
PROFESSIONAL LIABILITY COVERAGE FORM

A. It is agreed that these coverage forms will respond to "pollution incidents" resulting from:

1. "Naturally Occurring Radioactive Materials" (NORMS)

2. "Low-Level Radioactive Waste" (LLRW)

3. "Mixed Low-Level Radioactive Waste" (MLLRW)

B. As used in this endorsement, the following definitions apply:

1. "Naturally Occurring Radioactive Materials"

"Naturally Occurring Radioactive Materials" are the isotopes that are the byproduct of naturally occurring elements and can be found throughout the environment.

2. "Low-Level Radioactive Waste"

"Low-Level Radioactive Waste" is radioactive waste that is not high-level waste, spent nuclear fuel, transuranic waste, uranium mill tailings, or radioactive by-products and further defined by the U.S. Nuclear Regulatory Commission (NRC) or the U.S. Department of Energy (DOE).

3. "Mixed Low-Level Radioactive Waste"

"Mixed Low-Level Radioactive Waste" contains both hazardous waste as defined by the EPA via its authority under RCRA and low-level radioactive waste as defined by the NRC or DOE via their authority under the Atomic Energy Act (AEA).

All other terms and conditions of the Policy remain unchanged.

AUTHORIZED REPRESENTATIVE DATE

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SCOTTSDALE INSURANCE COMPANY®

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ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

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MINIMUM EARNED PREMIUM ENDORSEMENT

This endorsement modifies the insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE FORM
PRODUCTS/COMPLETED OPERATIONS COVERAGE FORM
CONTRACTORS POLLUTION COVERAGE FORM
PROFESSIONAL LIABILITY COVERAGE FORM

This policy has a minimum amount of premium that applies to the term of insurance as listed on the policy declarations page. Unless otherwise stated, the minimum earned premium is equal to the advanced and deposit premium shown in the declarations and adjusted for subsequent endorsements. In the event the audit premiums are greater than the advanced and deposit premium, the additional premium is due and payable upon notice to the insured. In the event the audit premiums are less than the deposit, then the Company shall retain the minimum earned premium.

For the purpose of this policy, the following are defined terms:

"Minimum and Deposit Premium" means that premium which is stated in the policy declarations and payable in full by the insured at policy inception.

"Minimum Earned Premium" means 25.00% of the "Minimum and Deposit Premium" as stated in the policy declarations.

In the event of cancellation by the Insured or cancellation for nonpayment of premium, the premium retained by the Company for this policy is the greater of:

- "Minimum Earned Premium";
- Short rate or pro rata of the "Minimum and Deposit Premium"; or
- Audit Premium to be calculated at time of cancellation.

All other terms and conditions of this Policy remain unchanged.

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ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

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LIABILITY DEDUCTIBLE ENDORSEMENT

This endorsement modifies the insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE FORM
CONTRACTORS POLLUTION COVERAGE FORM
SITE POLLUTION COVERAGE FORM
PROFESSIONAL LIABILITY COVERAGE FORM

SCHEDULE

Coverage	Per Claim	Per Occurrence
Commercial General Liability		$5,000
Contractor's Pollution Liability		$5,000
Professional Liability		$5,000
Site Pollution Liability—Coverage A		
Site Pollution Liability—Coverage B		

APPLICATION OF ENDORSEMENT (Enter below any limitations on the application of this endorsement. If no limitation is entered, the deductibles apply to damages for all "bodily injury," "property damage" and "cleanup costs," however caused):

_____
_____
_____

A. Our obligation under the Bodily Injury Liability, Property Damage Liability and Cleanup Cost Liability Coverages to pay damages on your behalf applies only to the amount of damages in excess of any deductible amounts stated in the Schedule above as applicable to such coverages.

B. The deductible amount is either a per "claim" or a per occurrence basis. The deductible applies to the coverage form and to the basis of the deductible indicated by the placement of the deductible amount in the Schedule above. The deductible amount stated in the Schedule above applies as follows:

1. PER CLAIM BASIS. If the deductible amount indicated in the Schedule above is on a per "claim" basis, that deductible applies as follows:

a. Under General Liability Coverage, to all damages sustained by any one person because of "bodily injury" or "property damage";

b. Under Contractors Pollution Liability Coverage, to all damages sustained by any one person because of "bodily injury" or "property damage";

c. Under Professional Liability Coverage, to all damages sustained by any one person because of a "wrongful act";

d. Under Site Pollution Liability Coverage A, to all damages sustained by any one person because of "bodily injury," or "property damage"; or

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e. Under Site Pollution Liability Coverage B, to all damages sustained by any one person because of "cleanup costs":

If damages are claimed for care, loss of services or death resulting at any time from "bodily injury," a separate deductible amount will be applied to each person making a "claim" for such damages.

With respect to "property damage," person includes an organization.

2. PER OCCURRENCE BASIS. If the deductible amount indicated in the Schedule above is on a "per occurrence" basis, that deductible amount applies as follows:

a. Under General Liability Coverage, to all damages sustained because of "bodily injury" or "property damage";

b. Under Contractors Pollution Liability Coverage, to all damages sustained because of "bodily injury" or "property damage";

c. Under Professional Liability Coverage, to all damages sustained because of a "wrongful act";

d. Under Site Pollution Liability Coverage A, to all damages sustained because of "bodily injury," or "property damage"; or

e. Under Site Pollution Liability Coverage B, to all damages sustained because of "cleanup costs";

as the result of any one "occurrence," regardless of the number of persons or organizations who sustain damages because of that "occurrence."

C. The terms of this insurance, including those with respect to:

1. Our right and duty to defend the insured against any "suit" seeking those damages; and

2. Your duties in the event of an "occurrence," "claim," or "suit" apply irrespective of the application of the deductible amount.

D. We, at our sole election and option, may either:

1. Pay any part or all of the deductible amount to effect settlement of any "claim" or "suit," and upon notification of the action taken, you shall promptly reimburse us for such part of the deductible amount as has been paid by us; or

2. Simultaneously upon receipt of notice of any "claim" or "suit" or at any time thereafter, call upon you to pay or deposit with us all or any part of the deductible amount, to be held and applied by us as herein provided.

E. Multiple Attachment Points:

A single attachment point shall apply to damages, losses, "cleanup costs" alleging the same or related "bodily injury," "property damage," "cleanup costs," or rendering or failure to render "professional services." Please review respective coverage forms for further details.

If different attachment points apply to different parts of a "claim," the applicable attachment point shall be applied separately to each part of the "claim" and the sum of such attachment points shall not excess the largest of the applicable attachment points as set forth in the schedule above.

All other terms and conditions of this Policy remain unchanged.

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GULF OF MEXICO—IN REM AND TERRITORY ENDORSEMENT

This endorsement modifies the insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
CONTRACTORS POLLUTION LIABILITY COVERAGE FORM
PROFESSIONAL LIABILITY COVERAGE FORM
SITE POLLUTION LIABILITY COVERAGE FORM

A. "Coverage territory" of **DEFINITIONS** is amended to include the Gulf of Mexico.

B. Coverage shall not be denied solely on the ground that the claim or "suit" against you is based on an in rem proceeding.

All other items and conditions of this Policy remain unchanged.

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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NUCLEAR ENERGY LIABILITY EXCLUSION ENDORSEMENT

(Broad Form)

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTOMOBILE COVERAGE PART
COMMERCIAL GENERAL LIABILITY COVERAGE PART
FARM COVERAGE PART
LIQUOR LIABILITY COVERAGE PART
MEDICAL PROFESSIONAL LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART
POLLUTION LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
RAILROAD PROTECTIVE LIABILITY COVERAGE PART
UNDERGROUND STORAGE TANK POLICY

1. The insurance does not apply:

A. Under any Liability Coverage, to "bodily injury" or "property damage":

(1) With respect to which an "insured" under the policy is also an insured under a nuclear energy liability policy issued by Nuclear Energy Liability Insurance Association, Mutual Atomic Energy Liability Underwriters, Nuclear Insurance Association of Canada or any of their successors, or would be an insured under any such policy but for its termination upon exhaustion of its limit of liability; or

(2) Resulting from the "hazardous properties" of "nuclear material" and with respect to which **(a)** any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954, or any law amendatory thereof, or **(b)** the "insured" is, or had this policy not been issued would be, entitled to indemnity from the United States of America, or any agency thereof, under any agreement entered into by the United States of America, or any agency thereof, with any person or organization.

B. Under any Medical Payments coverage, to expenses incurred with respect to "bodily injury" resulting from the "hazardous properties" of "nuclear material" and arising out of the operation of a "nuclear facility" by any person or organization.

C. Under any Liability Coverage, to "bodily injury" or "property damage" resulting from "hazardous properties" of "nuclear material", if:

(1) The "nuclear material" **(a)** is at any "nuclear facility" owned by, or operated by or on behalf of, an "insured" or **(b)** has been discharged or dispersed therefrom;

(2) The "nuclear material" is contained in "spent fuel" or "waste" at any time possessed, handled, used, processed, stored, transported or disposed of, by or on behalf of an "insured"; or

(3) The "bodily injury" or "property damage" arises out of the furnishing by an "insured" of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any "nuclear facility", but if such facility is located within the United States of America, its territories or possessions or Canada, this exclusion **(3)** applies only to "property damage" to such "nuclear facility" and any property thereat.

2. As used in this endorsement:

"Hazardous properties" includes radioactive, toxic or explosive properties.

"Nuclear material" means "source material", "special nuclear material" or "by-product material".

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"Source material", "special nuclear material", and "by-product material" have the meanings given them in the Atomic Energy Act of 1954 or in any law amendatory thereof.

"Spent fuel" means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a "nuclear reactor".

"Waste" means any waste material **(a)** containing "by-product material" other than the tailings or wastes produced by the extraction or concentration of uranium or thorium from any ore processed primarily for its "source material" content, and **(b)** resulting from the operation by any person or organization of any "nuclear facility" included under the first two paragraphs of the definition of "nuclear facility".

"Nuclear facility" means:

(a) Any "nuclear reactor";

(b) Any equipment or device designed or used for **(1)** separating the isotopes of uranium or plutonium, **(2)** processing or utilizing "spent fuel", or **(3)** handling, processing or packaging "waste";

(c) Any equipment or device used for the processing, fabricating or alloying of "special nuclear material" if at any time the total amount of such material in the custody of the "insured" at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235;

(d) Any structure, basin, excavation, premises or place prepared or used for the storage or disposal of "waste";

and includes the site on which any of the foregoing is located, all operations conducted on such site and all premises used for such operations.

"Nuclear reactor" means any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of fissionable material.

"Property damage" includes all forms of radioactive contamination of property.

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ENDORSEMENT NO. _____

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SERVICE OF SUIT CLAUSE

It is agreed that in the event of the failure of the Company to pay any amount claimed to be due under this policy, the Company, at the request of the Insured (or reinsured), will submit to the jurisdiction of any court of competent jurisdiction within the United States of America and will comply with all requirements necessary to give the court jurisdiction. All matters which arise will be determined in accordance with the law and practice of the court. In a suit instituted against it under this contract, the Company agrees to abide by the final decision of the court or of any appellate court in the event of an appeal. However, nothing in this endorsement constitutes a waiver of the Company's right to remove an action to a United States District Court or to seek a transfer of a case to another court as permitted by the laws of the United States or of any state in the United States.

Pursuant to any statute of any state, territory or district of the United States of America which makes a provision therefor, the Company will designate the Superintendent, Commissioner or Director of Insurance or other officer specified for that purpose in the statute, or his successor or successors in office, as their true and lawful attorney upon whom may be served any lawful process in any action, suit, or proceeding instituted by or on behalf of the Insured (or reinsured) or any beneficiary arising out of this contract of insurance (or reinsurance).

The person named below is authorized and directed to accept service of process on behalf of the Company:

Commissioner of Insurance

P.O. Box 149104

Austin, TX 78714-9104

Having accepted service of process on behalf of the Company, the person designated above is authorized to mail the process or a true copy to:

Corporation Service Company DBA CSC-Lawyers incorporating Service Company

211 East 7th Street Suite, 620

Austin, TX 78701-3218

AUTHORIZED REPRESENTATIVE DATE

Nationwide®

SCOTTSDALE INSURANCE COMPANY®

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ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

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EXCLUSION OF CERTIFIED ACTS OF TERRORISM

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
LIQUOR LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART
CONTRACTORS POLLUTION LIABILITY COVERAGE PART
SITE POLLUTION LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
RAILROAD PROTECTIVE LIABILITY COVERAGE PART
UNDERGROUND STORAGE TANK POLICY

A. The following exclusion is added:

This insurance does not apply to:

TERRORISM

"Any injury or damage" arising, directly or indirectly, out of a "certified act of terrorism."

B. The following definitions are added:

1. For the purposes of this endorsement, "any injury or damage" means any injury or damage covered under any Coverage Part to which this endorsement is applicable, and includes but is not limited to "bodily injury," "property damage," "personal and advertising injury," "injury" or "environmental damage" as may be defined in any applicable Coverage Part.

2. "Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a "certified act of terrorism" include the following:

a. The act resulted in insured losses in excess of $5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and

b. The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

C. The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for injury or damage that is otherwise excluded under this Coverage Part.

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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

TEXAS CHANGES – DUTIES

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
FARM COVERAGE PART
LIQUOR LIABILITY COVERAGE PART
MEDICAL PROFESSIONAL LIABILITY COVERAGE PART
OWNERS AND CONTRACTORS PROTECTIVE LIABILITY COVERAGE PART
POLLUTION LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
RAILROAD PROTECTIVE LIABILITY COVERAGE PART

The following is added to the **Duties** Condition:

We will notify the first Named Insured in writing of:

1. An initial offer to settle a claim made or "suit" brought against any insured ("insured") under this coverage. The notice will be given not later than the 10th day after the date on which the offer is made.

2. Any settlement of a claim made or "suit" brought against the insured ("insured") under this coverage. The notice will be given not later than the 30th day after the date of the settlement.

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PROMPT PAYMENT OF CLAIMS—TEXAS

The Company will on or before the 30th day after receipt of notice of a claim:

1. acknowledge receipt of the claim;
2. commence any investigation of the claim; and
3. request from the claimant all items, statements and forms.

The Company shall notify a claimant in writing of the acceptance or rejection of the claim no later than the 15th business day after the date the Company receives all items, statements and forms required by the Company in order to secure final proof of loss. If loss results from arson, the Company shall notify the claimant within 30 days. If the Company is unable to accept or reject the claim within the time periods specified, the Company must notify the claimant and provide reasons why additional time is needed. However, the Company must accept or reject the claim no later than the 45th day after the date the Company notifies a claimant.

If the Company notifies a claimant that they will pay a claim or part of a claim, the Company will pay the claim no later than the 20th business day after the notice has been made. If payment of the claim or part of the claim is conditioned on the performance of an act by the claimant, the Company will pay the claim no later than the 20th business day after the date the act is performed.

If the Company rejects the claim, the reason for rejection must be stated on the notice.

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PREMIUM AUDIT ENDORSEMENT

This endorsement modifies the insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE FORM
CONTRACTORS POLLUTION COVERAGE FORM
SITE POLLUTION COVERAGE FORM
PROFESSIONAL LIABILITY COVERAGE FORM
COMMERCIAL EXCESS LIABILITY COVERAGE FORM

It is hereby understood and agreed that the following Premium Audit Conditions will apply and supersedes any audit provisions listed elsewhere in the policy:

Premium Audit Conditions:

1. The insured is required to keep and maintain records of information for premium computation.

2. At the close of each audit period we will compute the Earned Premium and send notice to the Named Insured. The due date for audit premiums is the date shown as the due date on the bill.

3. Computation of Earned Premium is as follows:

Earned Premium = Audited Exposure Base x Rate (as shown in the schedule below)

4. Audit Premium is the difference of Advanced Premium and Earned Premium.

a. In the event **4.** above results in a Return Premium, it will be subject to the Minimum & Deposit Premium. The amount returned will not be greater than the difference of Advanced Premium and Minimum & Deposit Premium.

b. In the event the calculation in **4.** above results in an Additional Premium, an invoice will be issued with a due date for the Additional Premium.

5. When multiple premium basis and rates are shown below, the audit rate to be applied to your work or your product will be based upon whichever premium basis is applicable per ISO classification guidelines for your work or your product:

Premium Basis	Description of Premium Basis	Rate	Advanced Premium	Minimum & Deposit Premium
5,000,000	Sales	$5.90	$29,500.00	100.00%

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WAIVER OF TRANSFER OF RIGHTS OF RECOVERY AGAINST OTHERS TO US

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
CONTRACTOR'S POLLUTION LIABILITY COVERAGE FORM
PROFESSIONAL LIABILITY COVERAGE FORM

SCHEDULE

Name Of Person Or Organization:
Any person or organization where required by written contract, executed prior to the commencement of operations.
Information required to complete this Schedule, if not shown above, will be shown in the Declarations.

The following is added to paragraph **8. Transfer Of Rights Of Recovery Against Others To Us** of **Section IV—Conditions:**

We waive any right of recovery we may have against the person or organization shown in the Schedule above because of payments we make for injury or damage arising out of your ongoing operations or "your work" done under a contract with that person or organization and included in the "products-completed operations hazard." This waiver applies only to the person or organization shown in the Schedule above.

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PRIMARY AND NONCONTRIBUTORY—OTHER INSURANCE CONDITION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
CONTRACTORS POLLUTION COVERAGE FORM
PROFESSIONAL LIABILITY COVERAGE FORM

The following is added to the **Other Insurance** Condition and supersedes any provision to the contrary:

Primary And Noncontributory Insurance

This insurance is primary to and will not seek contribution from any other insurance available to an additional insured under your policy provided that:

(1) The additional insured is a Named Insured under such other insurance; and

(2) You have agreed in writing in a contract or agreement that this insurance would be primary and would not seek contribution from any other insurance available to the additional insured.

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PFC/PFAS EXCLUSION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

A. The following exclusion is added to Paragraph **2. Exclusions** of **SECTION I—COVERAGES, COVERAGE A—BODILY INJURY AND PROPERTY DAMAGE LIABILITY** and Paragraph **2. Exclusions** of **SECTION I—COVERAGES PRODUCTS/COMPLETED OPERATIONS, BODILY INJURY AND PROPERTY DAMAGE LIABILITY:**

This insurance does not apply to:

"PFC/PFAS"

a. "Bodily injury" or "property damage" which would not have occurred, in whole or in part, but for the actual, alleged, threatened or suspected inhalation, ingestion, absorption or consumption of, contact with, exposure to, existence of, or presence of, any "PFC/PFAS"; or

b. Any loss, cost or expense arising out of, in whole or in part, the abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to, or assessing the effects of, "PFC/PFAS" by any insured or by any other person or entity.

This exclusion applies regardless of whether any other cause, event, material, substance, good or product contributed concurrently or in any sequence to such injury or damage. This exclusion also applies regardless of whether any "PFC/PFAS" is contained, used, included, involved or incorporated intentionally, accidentally or unknowingly in or on a good or product, component part of a good or product, or otherwise by any insured or by any other person or entity. This exclusion applies regardless of whether the inhalation, ingestion, absorption or consumption of, contact with, exposure to, existence of, or presence of any "PFC/PFAS" occurs within or outside any building or other structure.

B. The following exclusion is added to Paragraph **2. Exclusions** of **SECTION I—COVERAGES, COVERAGE B—PERSONAL AND ADVERTISING INJURY LIABILITY:**

This insurance does not apply to:

"PFC/PFAS"

a. "Personal and advertising injury" which would not have occurred, in whole or in part, but for the actual, alleged, threatened, or suspected inhalation, ingestion, absorption or consumption of, contact with, exposure to, existence of, or presence of, any "PFC/PFAS"; or

b. Any loss, cost or expense arising out of, in whole or in part, the abating, testing for, monitoring,

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cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to, or assessing the effects of, "PFC/PFAS," by any insured or by any other person or entity.

This exclusion applies regardless of whether any other cause, event, material, substance, good or product contributed concurrently or in any sequence to such injury or damage. This exclusion also applies regardless of whether any "PFC/PFAS" is contained, used, included, involved or incorporated intentionally, accidentally or unknowingly in or on a good or product, component part of a good or product, or otherwise by any insured or by any other person or entity. This exclusion applies regardless of whether the inhalation, ingestion, absorption or consumption of, contact with, exposure to, existence of, or presence of any "PFC/PFAS" occurs within or outside any building or other structure.

C. The following definition is added to **SECTION V—DEFINITIONS:**

"PFC/PFAS" means:

a. Any fluorosurfactant, perfluorinated chemical or compound, or perfluoroalkyl or polyfluoroalkyl substance, including but not limited to any per- or polyfluorinated acid (including, without limitation, perfluorooctanoic acid (PFOA), perfluorooctanesulfonic acid (PFOS), and per- and polyfluorether carboxylic acids), per- or polyfluorinated sulfonamide, per- or polyfluorinated iodide, per- or polyfluorinated aldehyde, per- or polyfluorinated sulfonyl fluoride, per- or polyfluorinated fluorotelomer substance or per- or polyfluorinated sulfonamido substance; or

b. Any perfluoroalkane or polyfluoroalkane substance, including but not limited to carbon tetrafluoride, perfluorooctane, and perfluoro-2-methylpentane; or

c. Any fluorinated polymers, including but not limited to fluoropolymers, perfluoropolyethers and side-chain-fluorinated polymers; or

any of the associated homologues, isomers, salts, esters, alcohols, acids, precursor chemicals and derivatives, and related degradation or by-products of any such constituent.

The addition of this endorsement does not imply that other policy provisions, including but not limited to any pollution exclusion, do not exclude coverage for "PFC/PFAS"-related injury, damage, loss, cost or expense.

All other conditions and provisions of the policy remain unchanged by this endorsement.

AUTHORIZED REPRESENTATIVE DATE

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SCOTTSDALE INSURANCE COMPANY®

ENDORSEMENT NO. _____

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SILICA EXCLUSION

This endorsement modifies the insurance provided under the following:

PROFESSIONAL LIABILITY COVERAGE FORM

It is agreed that **SECTION I—COVERAGE,** Item **2. Exclusions** is amended to include the following exclusion:

This insurance does not apply to:

Silica

A “claim” caused by, arising out or in any way related to silicon dioxide (occurring in crystalline, amorphous and impure forms), silica particles, silica dust or silica compounds.

This exclusion shall apply whether such “claim” is actual or alleged.

This exclusion shall apply regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the associated “claim.”

All other terms and conditions of this Policy remain unchanged.

AUTHORIZED REPRESENTATIVE DATE

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SCOTTSDALE INSURANCE COMPANY®

ENDORSEMENT NO. _____

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

LIMITATION OF COVERAGE TO DESIGNATED PROFESSIONAL SERVICES

This endorsement modifies insurance provided under the following:

PROFESSIONAL LIABILITY COVERAGE PART

SCHEDULE

Description of Professional Services:
Inventory Management, Consulting, and Logistical Services for the Oil & Gas Industry for third parties for a fee.

(If no entry appears above, information required to complete this endorsement will be shown in the Declarations as applicable to this endorsement.)

This insurance only applies to any "claim" that results from the rendering of or failure to render Professional Services shown in the Schedule.

All other terms and conditions of this Policy remain unchanged.

AUTHORIZED REPRESENTATIVE DATE

SCOTTSDALE INSURANCE COMPANY®

ENDORSEMENT NO. _____

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ASBESTOS EXCLUSION

This endorsement modifies the insurance provided under the following:

PROFESSIONAL LIABILITY COVERAGE FORM

It is agreed that **SECTION I—COVERAGE,** Item **4. Exclusions** is amended to include the following exclusion:

This insurance does not apply to "claim(s)":

Asbestos

Any "claim" caused by, arising out or in any way related to asbestos, asbestos products, asbestos fibers, or asbestos dust.

This exclusion shall apply whether the "claim" arises out of actual or alleged "wrongful acts."

This exclusion shall apply regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the associated "claim."

All other terms and conditions of this Policy remain unchanged.

AUTHORIZED REPRESENTATIVE DATE

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Underwritten by Scottsdale Insurance Company
A Stock Company

PROFESSIONAL LIABILITY COVERAGE FORM

THIS FORM PROVIDES CLAIMS-MADE AND REPORTED COVERAGE
PLEASE READ THE ENTIRE FORM CAREFULLY.

This is a claims-made and reported policy. Any "claim" must be first made against the "insured" during the "policy period" or during any Extended Reporting Period, if applicable, under the terms of Section **V.,** paragraph **1.** and reported to us under the terms of **SECTION IV—CONDITIONS,** paragraph **2.**

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine "your" rights, duties and what is and is not covered.

Throughout this policy, the words "you" and "your" refer to the Named Insured shown in the Declarations, and any other person or organization qualifying as a Named Insured under this policy. The words "we," "us" and "our" refer to the company providing this insurance.

The word "insured" means any person or organization qualifying as such under **SECTION II—WHO IS AN INSURED.**

Other words and phrases that appear in quotation marks have special meaning. Refer to **SECTION VI—DEFINITIONS.**

SECTION I—PROFESSIONAL LIABILITY COVERAGE

1. Insuring Agreement

a. We will pay those sums that the "insured" becomes legally obligated to pay as "damages" resulting from a "wrongful act" for any "claim" first made during the "policy period." We will have the right and duty to defend the "insured" against any "suit" seeking those "damages." However, we will have no duty to defend the "insured" against any "suit" seeking "damages" to which this insurance does not apply. We may, at our discretion, investigate any incident that may result from a "wrongful act." We may settle any "claim" or "suit" that may result. But:

(1) The amount we will pay for "damages" is limited as described in **SECTION III—LIMITS OF INSURANCE;** and

(2) Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements.

b. This insurance applies to a "wrongful act," only if:

(1) The "wrongful act" take place in the "coverage territory"; and

(2) The "wrongful act" must commence on or after the Retroactive Date, if any, shown in the Declarations, and prior to the end of the "policy period"; and

(3) A "claim" against any "insured" for "damages" because of the "wrongful act" is first made against any "insured" during the "policy period" or any Extended Reporting Period we provide under **SECTION V—EXTENDED REPORTING PERIODS,** in accordance with paragraph **e.** below.

c. No other obligation or liability to:

(1) Pay sums, such as civil or criminal fines, imposed on you or any other "insured"; or

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(2) Perform acts or services;

is covered unless explicitly provided for under Supplementary Payments.

d. Such "claim," after being received by any "insured," is reported to us in accordance with the provisions of **SECTION IV—CONDITIONS, 2.** Duties In The Event Of A Claim Or Suit.

e. All claims arising out of the same "wrongful act" or "interrelated wrongful act" by one or more "insured" shall be considered a single "claim." Such single "claim" will be deemed to have been made at the earliest of the following times, regardless of whether such date is before or during the "policy period":

(1) Such "claim" arising out of such "wrongful act" or "interrelated wrongful act" was first made, regardless of the number of claims subsequently made; or

(2) Notice of such "wrongful act" or "interrelated wrongful act" was first reported pursuant to **SECTION IV—CONDITIONS,** paragraph **2.**

2. Defense and Settlement of Claims or Suits

a. We shall have the right and the duty to defend you against a "claim" or "suit" to which this insurance applies. We shall have no duty to defend the "insured" against any "claim" or "suit" to which this insurance does not apply. We shall have no obligation to pay any "claim," or to defend, continue to defend, or indemnify for any losses after the limits of liability have been exhausted by any payment, including any judgment or settlement, or by the deposit or tender of the limits of insurance into a court of applicable jurisdiction.

b. We shall have the right to select legal counsel to represent the "insured" for the investigation, adjustment, settlement and defense of any "claim" or "suit" covered pursuant to this policy. Any "claim expenses" incurred prior to the selection of legal counsel by us shall not be covered pursuant to this policy or credited against the deductible.

c. In the event the "insured" is entitled by law to select independent counsel to defend itself at our expense, the attorney fees and all other litigation expenses we must pay to that counsel are limited to the rates we actually pay to counsel that we normally retain in the ordinary course of business when defending a "claim" or "suit" of similar complexity in the jurisdiction where the "claim" or "suit" arose or is being defended. In addition, the "insured" and we agree that we may exercise the right to require that such counsel:

(1) Have certain minimum qualifications with respect to their competency, including experience in defending a "claim" similar to those being asserted against the "insured";

(2) Maintain suitable errors and omissions insurance coverage;

(3) Be located within a reasonable proximity to the jurisdiction of the "claim" or "suit"; and

(4) Agrees in writing to respond in a timely manner to our requests for information regarding the "claim" or "suit."

The "insured" may at any time, by its signed consent, freely and fully waive its right to select independent counsel.

d. The "insured" shall not assume or admit liability, make any payment, consent to any judgment, settle any "claim" or "suit" or incur any expense without the prior written consent of the company, which consent shall not be unreasonably withheld. We will not be liable for any expense, settlement, assumed obligation or admission to which we have not consented, with the exception of "emergency cleanup" costs.

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3. Claim Expenses and Other Litigation Payments

We will pay, with respect to any "claim" we investigate or settle, or any "claim" or "suit" against an "insured" we defend:

a. All "claim expenses" we incur, including defense costs.

b. The cost of bonds to release attachments, but only for bond amounts within the applicable limit of insurance. We do not have to furnish these bonds.

c. All reasonable expenses incurred by the "insured" at our request to assist us in the investigation or defense of the "claim" or "suit," including actual loss of earnings up to five hundred dollars ($500) a day because of time off from work.

d. All court costs taxed against the "insured" in the "suit." However, these payments do not include attorneys' fees or attorneys' expenses taxed against the "insured."

e. Prejudgment interest awarded against the "insured" on that part of the judgment we pay. If we make an offer to pay the applicable limit of insurance, we will not pay any prejudgment interest based on that period of time after the offer.

f. All interest on the full amount of any judgment that accrues after entry of the judgment and before we have paid, offered to pay, or deposited in court the part of the judgment that is within the applicable limit of insurance.

Payments **3.a.** through **3.f.** of Claim Expenses and Other Litigation Payments will not reduce the Limits of Insurance.

g. If we defend an "insured" against a "claim" or "suit" and an indemnitee of the "insured" is also named as a party to the "suit," we will defend that indemnitee if all of the following conditions are met:

(1) The "claim" or "suit" against the indemnitee seeks "damages" for which the "insured" has assumed the liability of the indemnitee in a contract or agreement that is an "insured contract";

(2) This insurance applies to such liability assumed by the "insured";

(3) The obligation to defend, or the cost of the defense of, that indemnitee, has also been assumed by the "insured" in the same "insured contract";

(4) The allegations in the "claim" or "suit" and the information we know about the "wrongful act" are such that no conflict appears to exist between the interests of the "insured" and the interests of the indemnitee;

(5) The indemnitee and the "insured" ask us to conduct and control the defense of that indemnitee against such "claim" or "suit" and agree that we can assign the same counsel to defend the "insured" and the indemnitee; and

(6) The indemnitee:

(a) Agrees in writing to:

i. Cooperate with us in the investigation, settlement or defense of the "claim" or "suit";

ii. Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the "claim" or "suit";

iii. Notify any other insurer whose coverage is available to the indemnitee; and

iv. Cooperate with us with respect to coordinating other applicable insurance available to the indemnitee; and

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(b) Provides us with written authorization to:

i. Obtain records and other information related to the "claim" or "suit"; and

ii. Conduct and control the defense of the indemnitee in such "claim" or "suit."

So long as the above conditions are met, attorneys' fees incurred by us in the defense of that indemnitee, necessary litigation expenses incurred by us and necessary litigation expenses incurred by the indemnitee at our request will be paid as Claims Expense and Other Litigation Payments.

Our obligation to defend an insured's indemnitee and to pay for attorneys' fees and necessary litigation expenses as Claims Expense and Other Litigation Payments ends when we have used up the applicable limit of insurance in the payment of judgments or settlements or the conditions set forth above, or the terms of the agreement described in paragraph **(6)** above, are no longer met.

4. Exclusions

This insurance does not apply to:

a. Intentional Acts

Any "claim" arising out of your knowingly wrongful, dishonest, illegal, intentional, fraudulent, criminal, willful, malicious or deliberate act or non-compliance with any statue, regulation, ordinance, administrative complaint, notice of violation, notice letter, executive or judicial order, or instruction of any governmental agency or body.

b. Workers' Compensation and Similar Laws

Any "claim" arising out of any obligation or in any way related to the "insured" under a worker's compensation, disability benefits or unemployment compensation law or any similar law.

c. Employer's Liability

Any "claim" arising out of "bodily injury" to:

(1) An "employee" of the "insured" arising out of and in the course of:

(a) Employment by the "insured"; or

(b) Performing duties related to the conduct of the insured's business; or

(2) The spouse, child, parent, brother or sister of that "employee" as a consequence of paragraph **(1)** above.

This exclusion applies whether the "insured" may be liable as an employer or in any other capacity and to any obligation to share "damages" with or repay someone else who must pay "damages" because of the injury.

d. Contractual Liability

Any "claim" arising out of the liability of others that you assume under a contract or agreement. This exclusion does not apply to liability for "damages":

(1) That the "insured" would have in the absence of the contract or agreement; or

(2) Assumed in a contract or agreement that is an "insured contract," provided the "wrongful act" on which the "claim" is based occurs subsequent to the execution of the contract or agreement. Solely for the purposes of liability assumed in an "insured contract," reasonable attorney fees and necessary litigation expenses incurred by or for a party other than an "insured" are deemed to be "damages" provided:

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(a) Liability to such party for, or for the cost of, that party's defense has also been assumed in the same "insured contract"; and

(b) Such attorney fees and litigation expenses are for defense of that party against a civil or alternative dispute resolution proceeding in which "damages" to which this insurance applies are alleged.

e. Express Warranties or Guarantees

Any "claim" arising out of any express warranties or guarantees.

f. Other Insureds

Any "claim" made against you by any other "insured."

g. Aircraft, Auto, Rolling Stock or Watercraft

Any "claim" arising out of the ownership, maintenance, use or entrustment to others of any aircraft, "auto," rolling stock or watercraft owned or operated by or rented or loaned to any "insured." Use includes operation and "loading or unloading."

h. Insurance or Bonds

Any "claim" arising out of the advising of, requiring of, or failure to advise or require, or failure to obtain or maintain, any form of insurance or surety bond.

i. "Your Product"

Any "claim" arising out of "your product."

j. Faulty Workmanship

Any "claim" arising out of the cost to repair or replace any faulty workmanship, construction or work not in accordance with your "professional services."

k. Punitive "damages" Fines or Penalties

Punitive "damages," exemplary "damages" multiplied "damages," or criminal or civil fines or penalties. However, this exclusion does not apply where insurance of such "damages" are allowable by law.

l. Abuse or Molestation

Any "claim" based upon, attributable to or arising out of the actual or threatened abuse or molestation of any person by anyone.

m. Electronic Data

Any "claim" arising out of the loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate electronic data.

As used in this exclusion, electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMs, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.

n. Employment Practices

Any "claim" arising out of injury to:

(1) A person arising out of any:

(a) Refusal to employ that person;

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(b) Termination of that person's employment; or

(c) Employment-related practices, policies, acts or omissions, such as coercion, demotion, evaluation, reassignment, discipline, defamation, harassment, humiliation or discrimination directed at that person; or

(2) The spouse, child, parent, brother or sister of that person as a consequence of injury to that person at whom any of the employment-related practices described in paragraphs **(a), (b),** or **(c)** above is directed.

This exclusion applies:

(1) Whether the insured may be liable as an employer or in any other capacity; and

(2) To any obligation to share "damages" with or repay someone else who must pay "damages" because of the injury.

o. ERISA Claims

Any "claim" arising out of liability based upon or directly or vicariously arising out of any violation of the Securities Act of 1933, as amended, or the Securities Exchange Act of 1934, as amended or any Blue Sky or securities law, any similar state or federal statute and any regulation or order issued pursuant to any of the foregoing statutes or regulations.

p. Intellectual Property Claims

Any "claim" arising out of the infringement of any copyright, trademark, service mark, trade secret or patent.

q. Disputes Involving Fees

Any "claim" arising out of any cost guarantees or estimates being exceeded or any cost overruns, any dispute involving fees, costs, or expenses paid to or charged by an "insured."

r. Unfair Profit or Advantage of the Insured

Any "claim" arising out of any gain, profit or advantage to which you are not legally entitled.

s. Unfair Competition/Unfair Business Practices

Any "claim" arising out of any unfair competition, restraint of trade or any other violation of antitrust laws.

SECTION II—WHO IS AN INSURED

1. If you are designated in the Declarations as:

a. An individual, you and your spouse are an "insured," but only with respect to the conduct of a business of which you are the sole owner.

b. A partnership or joint venture, you are an "insured." Your members, your partners, and their spouses are also an "insured," but only with respect to the conduct of your business.

c. A limited liability company, you are an "insured." Your members are also an "insured," but only with respect to the conduct of your business. Your managers are an "insured," but only with respect to their duties as your managers.

d. An organization other than a partnership, joint venture or limited liability company, you are an "insured." Your "executive officers" and directors are an "insured," but only with respect to their duties as your officers or directors. Your stockholders are also an "insured," but only with respect to their liability as your stockholders.

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e. A trust, you are an "insured." Your trustees are also an "insured," but only with respect to their duties as your trustees.

2. Each of the following is also an "insured":

a. Your "employee," other than either your "executive officers" (if you are an organization other than a partnership, joint venture or limited liability company) or your managers (if you are a limited liability company), but only for acts within the scope of their employment by you or while performing duties related to the conduct of your business.

b. Any organization you newly acquire or form, other than a partnership, joint venture or limited liability company, and over which you maintain ownership or majority interest, will qualify as a Named Insured if there is no other similar insurance available to that organization. However:

(1) Coverage under this provision is afforded only until the ninetieth (90th) day after you acquire or form the organization or the end of the "policy period," whichever is earlier;

(2) Coverage under this policy does not apply to a "wrongful act" that occurred before you acquired or formed the organization; and

No person or organization is an "insured" with respect to the conduct of any current or past partnership, joint venture or limited liability company that is not shown as a Named Insured in the Declarations.

SECTION III—LIMITS OF INSURANCE

1. The Limits Of Insurance shown in the Declarations and the provisions in this section set forth the most we will pay regardless of the number of:

a. "Insureds";

b. "Claims" made or "suits" brought; or

c. Persons, organizations or government agencies making a "claim" or bringing a "suit";

for all "damages" arising out of any one "claim."

2. Subject to the General Aggregate Limit of Insurance, the Each Claim Limit is the most we would pay for all "damages" arising out of any one "claim."

3. The General Aggregate Limit of Insurance is the most we will pay for the sum of all "damages" because of all "wrongful acts" to which this insurance applies.

4. All "Claim expenses" and Other Litigation Payments made as a result of a "claim" or "suit" will not reduce the available limits of insurance.

The Limits of Insurance of this policy apply separately to each consecutive annual period and to any remaining period of less than twelve (12) months, starting with the beginning of the "policy period" shown in the Declarations, unless the "policy period" is extended after issuance for an additional period of less than twelve (12) months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.

SECTION IV—CONDITIONS

1. Bankruptcy

Bankruptcy or insolvency of the "insured" or of the estate of an "insured" will not relieve us of our obligations under this Coverage Part.

2. Duties in the Event of a Claim or Suit

a. If a "claim" is received by any "insured," you must:

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(1) Immediately record the specifics of the "claim" and the date received; and

(2) Notify us, in writing, as soon as practicable but in any event no later than thirty (30) days after the expiration of the "policy period."

b. You and any other involved "insured" must:

(1) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the "claim";

(2) Authorize us to obtain records and other information;

(3) Cooperate with us in the investigation or settlement of the "claim" or defense against the "suit"; and

(4) Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the "insured" because of a "wrongful act" to which this insurance may also apply.

c. No "insured" will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense without our written consent, except for "emergency cleanup" costs.

d. If you become aware of conduct that could reasonably be expected to give rise to a "claim," you must notify us, in writing, as soon as practicable. Such notice must provide:

(1) A description of the "wrongful act," including all relevant dates;

(2) The names of the persons involved in the "wrongful act," including names of the potential claimants;

(3) Particulars as to the reasons for anticipating a "claim" which may result from such "wrongful act";

(4) The nature of the alleged or potential "damages" arising from such "wrongful act"; and

(5) The circumstance by which the "insured" first became aware of the "wrongful act."

3. Legal Action Against Us

No person or organization has a right under this Coverage Part:

a. To join us as a party or otherwise bring us into a "suit" asking for "damages" from an "insured"; or

b. To sue us on this Coverage Part unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an "insured," but we will not be liable for "damages" that are not payable under the terms of this Coverage Part or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the "insured" and the claimant or the claimant's legal representative.

4. Other Insurance

If other valid and collectible insurance is available to the "insured" for a loss we cover under Any Coverage Part, our obligations are limited as follows:

a. Primary Insurance

This insurance is primary except when paragraph **b.** below applies. When this insurance is primary, our obligations are not affected unless any of the other insurance is also primary. Then, we will share with all that other insurance by the method described in paragraph **c.** below.

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b. Excess Insurance

This insurance is excess over any of the other insurance, whether primary, excess, contingent or on any other basis:

(1) That is effective prior to the beginning of the "policy period" shown in the Declarations of this insurance and applies to a "wrongful act" or any acts, errors or omissions on other than a claims made basis, if:

(a) No Retroactive Date is shown in the Declarations of this insurance; or

(b) The limits of Insurance apply to a "policy period" which continues after the Retroactive Date shown in the Declarations of this insurance;

(2) Any valid and collectible insurance available to you covering liability for "damages" arising out of your premises, operations, products and/or completed operations;

(3) Any valid and collectible insurance available to you covering liability for "damages" arising out of your premises, operations, products and/or completed operations for which you have been added as an additional insured by an endorsement, by definition in a contract or agreement, or by a combination thereof;

(4) Any loss that arises out of the maintenance or use of aircraft, "auto" or watercraft to the extent not subject to Exclusion **g.** of the Professional Liability Coverage Part; or

(5) Any valid and collectible insurance available to you covering liability for "damages" for which you have been added as an additional insured by an endorsement, by definition in a contract or agreement, or by a combination thereof.

When this insurance is excess, we will have no duty under Section **I.** to defend the "insured" against any "suit" if any other insurer has a duty to defend the "insured" against that "suit." If no other insurer defends, we will undertake to do so, but we will be entitled to the "insured" rights against all those other insurers.

When this insurance is excess over other insurance, we will pay only our share of the amount of the loss, if any, that exceeds the sum of:

(a) The total amount that all such other insurance would pay for the loss in the absence of this insurance; and

(b) The total of all deductible and self-insured amounts under all that other insurance.

We will share the remaining loss, if any, with any other insurance that is not described in this Excess Insurance provision and was not bought specifically to apply in excess of the Limits of Insurance shown in the Declarations of this Coverage Part.

c. Method of Sharing

If all of the other insurance permits contribution by equal shares, we will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable limit of insurance or none of the loss remains, whichever comes first.

If any of the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limit of insurance to the total applicable limits of insurance of all insurers.

5. Premium Audit

a. We reserve the right to compute all premiums for this Coverage Part in accordance with our rules and rates.

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b. Premium shown in this Coverage Part as advance premium is a deposit premium only. At the close of each audit period we will compute the earned premium for that period and send notice to the first Named Insured. The due date for audit and retrospective premiums is the date shown as the due date on the bill. If the sum of the advance and audit premiums paid for the "policy period" is greater than the earned premium, we may return the excess to the first Named Insured, subject to any minimum and/or deposit premium charge, as evidenced on the Declarations page.

c. The first Named Insured must keep records of the information we need for premium computation, and send us copies at such times as we may request.

6. Representations

By accepting this policy, you agree:

a. The statements in the Declarations are accurate and complete;

b. Those statements are based upon representations you made to us; and

c. We have issued this policy in reliance upon your representations.

7. Separation of Insureds

Except with respect to the Limits of Insurance, and any rights or duties specifically assigned in this Coverage Part to the first Named Insured, this insurance applies:

a. As if each Named Insured were the only Named Insured; and

b. Separately to each "insured" against whom a "claim" is made or "suit" is brought.

8. Transfer of Rights of Recovery Against Others to Us

If the "insured" has rights to recover all or part of any payment we have made under this Coverage Part, those rights are transferred to us. The "insured" must do nothing after loss to impair them. At our request, the "insured" will bring "suit" or transfer those rights to us and help us enforce them.

9. Coverage Part Issued to Comply With Law or Regulation

If this policy is issued to comply with any law or regulation which requires notice of cancellation to any governmental body, cancellation may not be effected until the required notice has been provided by you or us.

SECTION V—EXTENDED REPORTING PERIODS

1. If this policy is canceled or non-renewed by either the Company or the Named Insured for any reason, except for nonpayment of premiums or deductibles, the following shall apply:

(a) Upon termination or expiration of the policy the Company will provide the "insured" an automatic three month extension period for any "claim" first made against the "insured" and reported in writing to the Company, but only in respect to a "claim" for a "wrongful act" that take place on or after the retroactive date as shown in the Declarations and before the date of such cancellation or expiration. This automatic extended reporting period shall become effective the termination date of the policy.

(b) This automatic extended reporting period does not reinstate, increase or in any way create any new Limits of Insurance, nor does it extend the "policy period."

(c) The automatic extended reporting period is provided without an additional charge. The Automatic Extended Reporting Period allows the Named Insured to report any "claim" first made against the "insured" during the three month extension period immediately following the cancellation or non-renewal but only with respect to a "claim" for a "wrongful act" that take place on or after the Retroactive Date, provided that the "claim" is reported to us as soon as practicable but in any event no later than thirty (30) days after the expiration of the automatic extended reporting period.

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2. If this policy is canceled or non-renewed by the Company or the Named Insured for any reason, except nonpayment of premiums or deductibles, the Named Insured has the right to purchase an Optional Extended Reporting Period up to five years for an additional premium. The optional term and minimum additional premium are detailed below. Based on the performance of the risk, additional charges might apply to the minimum additional premium per selected term:

(a) One Year Optional Extended Reporting Period for an additional premium of one hundred fifty percent (150%);

(b) Two Year Optional Extended Reporting Period for an additional premium of one hundred seventy-five percent (175%);

(c) Three Year Optional Extended Reporting Period for an additional premium of two hundred percent (200%);

(d) Four Year Optional Extended Reporting Period for an additional premium of two hundred twenty-five percent (225%); or

(e) Five Year Optional Extended Reporting Period for an additional premium of two hundred fifty percent (250%).

The options are subject to the Professional Liability premium evidenced in the Declarations and subject to minimum premiums. The Optional Extended Reporting Period allows the Named Insured to report any "claim" first made against the "insured" and reported in writing to the Company during the selected period immediately following the cancellation or termination date, but only with respect to a "claim" for a "wrongful act" commenced on or after the retroactive date, if any, shown on the Declarations, and prior to the date of cancellation or termination, provided that such application for this extension of reporting any "claim" is made to the Company in writing and payment of the additional premium is made no later than thirty (30) days after the expiration of the extended reporting period following the cancellation or non-renewal date. Purchase of the Optional Extended Reporting Period will immediately replace the automatic extended reporting period.

Purchase of this Optional Extended Reporting Period shall not reinstate, increase or in any way create any new Limits of Insurance, nor does it extend the "policy period."

Once in effect, the Optional Extended Reporting Period may not be canceled and no return premiums will be made.

The insurance provided under the Optional Extended Reporting Period shall be excess over any valid and collectible insurance available to the "insured," whether primary, excess, contingent, or any other basis where this policy begins or continues after this coverage option takes effect.

If the first Named Insured is placed in liquidation, bankruptcy, or ceases operations and the Named Insured or its designation trustee elects not to purchase the Optional Extended Reporting Period coverage upon termination of this policy, the Company will offer an Optional Extended Reporting Period coverage to any "insured" covered under this policy provided that such application for this extension of reporting any "claim" is made to the Company in writing and payment of the additional premium is made within thirty (30) days following the cancellation or non-renewal date.

3. If during the "policy period" the "insured" first becomes aware of conduct or "wrongful act" that first commenced on or after the retroactive date shown in the declarations which the "insured" reasonably believes may result in a "claim" or "suit," the "insured" may provide written notice to the Company during the "policy period" containing all of the information stated below. Any such notice that subsequently becomes a "claim" or "suit" against the "insured" and is reported in writing within two years after the end of the "policy period," shall be considered to have been first reported during the "policy period" and shall be subject to the terms and conditions of this policy. It is a condition precedent to coverage under

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this provision that such written notice to the Company of a potential "claim" or "suit" contain all of the following information:

(a) A description of the "wrongful act," including all relevant dates;

(b) The names of the persons involved in the "wrongful act," including the names of the potential claimants;

(c) Particulars as to the reasons for anticipating a "claim" which may result from such "wrongful act";

(d) The nature of the alleged or potential "damages" arising from such "wrongful act"; and

(e) The circumstances by which the "insured" first became aware of the "wrongful act."

The Company shall determine, in its sole reasonable judgment, whether an "insured" written notice adequately supplies the information described in **(a)** through **(e)** and satisfies the condition precedent to coverage.

SECTION VI—DEFINITIONS

1. "Auto" means:

a. A land motor vehicle, trailer or semitrailer designed for travel on public roads, including any attached machinery or equipment; or

b. Any other land vehicle that is subject to a compulsory or financial responsibility law or other motor vehicle insurance law in the state where it is licensed or principally garaged.

2. "Bodily injury" means "bodily injury," sickness or disease sustained by a person, including death resulting from any of these at any time. "Bodily injury" includes mental anguish to such person, and "damages" claimed by any person or organization for care, loss of services or death resulting from "bodily injury." "Bodily injury" also includes any resulting medical monitoring associated with "bodily injury."

3. "Claim" means:

a. A written demand RECEIVED BY THE INSURED for monetary "damages";

b. A civil proceeding commenced by the service of a complaint or similar pleading; or

c. A formal administrative or regulatory proceeding commenced by the filing of a notice of changes, formal investigative order or similar document;

against any "insured" for any "wrongful act," including any associated appeal.

4. "Claim expenses" means reasonable and necessary costs incurred by us in the investigation, settlement, defense or appeal of a "claim" or "suit." "Claim expenses" do not include any salaries, regular or overtime wages, benefits, or fees of directors, officers, managers or any "employee" of the "insured."

5. "Cleanup costs" means expenses incurred in the investigation, evaluation, monitoring, testing, removal, containment, treatment, response, disposal, remediation, detoxification or neutralization of any "pollutants." "Cleanup costs" include the cost to repair, replace or restore property as required by any supervising governmental authority. "Cleanup costs" do not include costs associated with improvements or betterments. The cleanup is deemed completed upon sign-off from the supervising governmental authority or an order of completion entered by a court of competent jurisdiction.

6. "Coverage territory" means:

a. The United States of America (including its territories and possessions), Puerto Rico and Canada;

b. International waters or airspace, but only if the injury or damage occurs in the course of travel or transportation between any places included in paragraph **a.** above; or

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c. All parts of the world if the injury or damage arises out of:

(1) "Professional services" in the territory described in paragraph **a.** above; or

(2) The activities of a person whose home is in a territory described in paragraph **a.** above, but is away for a short time on your business;

provided the insured's responsibility to pay "damages" is determined in a "suit" on the merits, in the territory described in paragraph **a.** above or in a settlement we agree to.

7. "Damages" means any amount that you are legally required to pay in the form of a judgment, award or settlement. "Damages" does not include restitution, return, withdrawal or reduction of fees, profits or charges for services rendered or offered, or any other consideration or expenses paid to the "insured."

8. "Emergency cleanup" means actions taken within seventy-two (72) hours by the "insured" to respond to and/or abate an immediate threat to human health or the environment arising out of a "pollution incident" resulting from "Professional services" to which this insurance applies.

9. "Employee" includes a "leased worker." "Employee" does not include a "temporary worker."

10. "Executive officers" means a person holding any of the officer positions created by your charter, constitution, bylaws or any other similar governing document.

11. "Insured" means any person or organization qualifying as an "insured" in **SECTION II—WHO IS AN INSURED** of this policy. Except with respect to the Limits of Insurance and the Deductible, the coverage afforded applies separately to each "insured" who is seeking coverage or against whom a "claim" or "suit" is brought.

12. "Insured contract" means:

a. A contract for a lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner is not an "insured contract";

b. A sidetrack agreement;

c. Any easement or license agreement, except in connection with construction or demolition operations on or within fifty (50) feet of a railroad;

d. An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;

e. An elevator maintenance agreement; or

f. That part of any other contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the tort liability of another party to pay for "bodily injury" or "property damage" to a third person or organization. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement.

Paragraph **f.** does not include that part of any contract or agreement:

That indemnifies a railroad for "bodily injury" or "property damage" arising out of construction or demolition operations, within fifty (50) feet of any railroad property and affecting any railroad bridge or trestle, tracks, roadbeds, tunnel, underpass or crossing;

13. "Interrelated wrongful act" means all causally connected "wrongful acts" arising out of the same or substantially the same facts, circumstances or allegations which are the subject of or the basis for any "claim" or "suit."

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14. "Leased worker" means a person leased to you by a labor leasing firm under an agreement between you and the labor leasing firm, to perform duties related to the conduct of your business. "Leased worker" does not include a "temporary worker."

15. "Loading or unloading" means the handling of property:

a. After it is moved from the place where it is accepted for movement into or onto an aircraft, rolling stock, watercraft or "auto";

b. While it is in or on an aircraft, rolling stock, watercraft or "auto"; or

c. While it is being moved from an aircraft, rolling stock, watercraft or "auto" to the place where it is finally delivered;

but "loading or unloading" does not include the movement of property by means of a mechanical device, other than a hand truck, that is not attached to the aircraft, rolling stock, watercraft or "auto."

16. "Natural resource damage" means injury to, destruction of, or loss of, including the resulting loss of value of fish, wildlife, biota, land, air, water, groundwater, drinking water supplies, and other such resources belonging to, managed by, held in trust by, appertaining to, or otherwise controlled by the United States of America (including the fishery conservation zone established by the Magnuson-Stevens Fishery Conservation and Management Act [16 U.S.C. § 1801 et. seq.]), any state or local government, or any First Nation or Native American Tribe, or, if such resources are subject to a trust restriction on expropriation or alienation, any members of any First Nation or Native American Tribe, including the reasonable costs of assessing such injury, destruction or loss resulting therefrom.

17. "Professional services" means those functions performed for third parties and for a fee by you or on your behalf that are related to your practice as a consultant, engineer, architect, surveyor, laboratory or construction manager.

18. "Pollutants" means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

19. "Pollution incident" means the emission, discharge, release or escape of "pollutants." The entirety of any such emission, discharge, release or escape shall be deemed to be one "pollution incident."

20. "Property damage" means:

a. Physical injury to, destruction of or contamination of tangible property, including all resulting loss of use of that property;

b. Loss of use of tangible property that is not physically injured, destroyed or contaminated, but has been evacuated, withdrawn from use or rendered inaccessible because of a "pollution incident";

c. "Cleanup costs"; and

d. "Natural resource damage."

For the purposes of this insurance, electronic data is not tangible property.

As used in this definition, electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from, computer software, including systems and applications software, hard or floppy discs, CD-ROMs, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.

21. "Suit" means a civil proceeding in which "damages" because of "bodily injury" or "property damage" to which this insurance applies are alleged. "Suit" includes:

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(1) An arbitration proceeding in which such "damages" are claimed and to which the "insured" must submit or does submit with our consent; or

(2) Any other alternative dispute resolution proceeding in which such "damages" is claimed and to which the "insured" submits with our consent.

22. "Temporary worker" means a person who is furnished to you to substitute for a permanent "employee" on leave or to meet seasonal or short-term workload conditions.

23. "Wrongful act" means any actual or alleged act, error or omission committed or allegedly committed by an "insured" which arises out of the rendering of or failure to render "professional services" and which resulted in actual or alleged "damages."

24. "Your product":

a. Means:

(1) Any goods or products, other than real property, manufactured, sold, handled, distributed or disposed of by:

(a) You;

(b) Others trading under your name; or

(c) A person or organization whose business or assets you have acquired; and

(2) Containers (other than vehicles), materials, parts or equipment furnished in connection with such goods or products.

b. Includes:

(1) Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your product"; and

(2) The providing of or failure to provide warnings or instructions.

c. Does not include vending machines or other property rented to or located for the use of others but not sold.

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ENDORSEMENT NO.

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PFC/PFAS EXCLUSION

This endorsement modifies insurance provided under the following:

PROFESSIONAL LIABILITY COVERAGE FORM

A. The following exclusion is added to **SECTION I—PROFESSIONAL LIABILITY COVERAGE,** Paragraph **4. Exclusions:**

This insurance does not apply to:

"PFC/PFAS"

a. Any "claim" or "suit" which would not have occurred, in whole or in part, but for the actual, alleged, threatened or suspected inhalation, ingestion, absorption or consumption of, contact with, exposure to, existence of, or presence of, any "PFC/PFAS"; or

b. Any loss, "cleanup costs", cost or expense arising out of, in whole or in part, the abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to, or assessing the effects of, "PFC/PFAS" by any "insured" or by any other person or entity.

This exclusion applies regardless of whether any other cause, event, material, substance, good or product contributed concurrently or in any sequence to such injury or damage. This exclusion also applies regardless of whether any "PFC/PFAS" is contained, used, included, involved or incorporated intentionally, accidentally or unknowingly in or on a good or product, component part of a good or product, or otherwise by any "insured" or by any other person or entity. This exclusion applies regardless of whether the inhalation, ingestion, absorption or consumption of, contact with, exposure to, existence of, or presence of any "PFC/PFAS" occurs within or outside any building or other structure.

B. The following definition is added to **SECTION VI—DEFINITIONS:**

"PFC/PFAS" means:

a. Any fluorosurfactant, perfluorinated chemical or compound, or perfluoroalkyl or polyfluoroalkyl substance, including but not limited to any per- or polyfluorinated acid (including, without limitation, perfluorooctanoic acid (PFOA), perfluorooctanesulfonic acid (PFOS), and per- and polyfluorether carboxylic acids), per- or polyfluorinated sulfonamide, per- or polyfluorinated iodide, per- or polyfluorinated aldehyde, per- or polyfluorinated sulfonyl fluoride, per- or polyfluorinated fluorotelomer substance or per- or polyfluorinated sulfonamido substance; or

b. Any perfluoroalkane or polyfluoroalkane substance, including but not limited to carbon tetrafluoride, perfluorooctane, and perfluoro-2-methylpentane; or

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c. Any fluorinated polymers, including but not limited to fluoropolymers, perfluoropolyethers and side-chain-fluorinated polymers; or

any of the associated homologues, isomers, salts, esters, alcohols, acids, precursor chemicals and derivatives, and related degradation or by-products of any such constituent.

The addition of this endorsement does not imply that other policy provisions, including but not limited to any pollution exclusion, do not exclude coverage for “PFC/PFAS”-related injury, “damage,” loss, cost or expense.

All other conditions and provisions of the policy remain unchanged by this endorsement.

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ENDORSEMENT NO. _____

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

WRAP-UP INSURANCE PROGRAM EXCLUSION

This endorsement modifies the insurance provided under the following:

PROFESSIONAL LIABILITY COVERAGE FORM

A. The following exclusion is added to **SECTION—I PROFESSIONAL LIABILITY COVERAGE** paragraph **4. Exclusions:**

This insurance does not apply to:

Any actual or alleged "claim," "suit," "cleanup costs," costs or expenses of any kind arising out of any project that is or was subject to a provided "wrap-up program" and arising out of or resulting from:

(1) **"**Your product" or any other supply of materials provided by you, any "insured" on your or any "insured's" behalf, or by any other contractor, subcontractor or anyone else on the project; or

(2) Your "professional services" conducted by you, any "insured" on your or any other "insured's" behalf, or by any other contractor, subcontractor or anyone else on the project.

The exclusion above applies whether or not the "wrap-up program":

(a) Provides coverage identical to that provided by this Coverage Form;

(b) Has limits adequate to cover all claims;

(c) Remains in effect; or

(d) Has been terminated.

B. Where a "wrap-up program" is available, **SECTION IV–CONDITIONS,** paragraph **4. Other Insurance** is deleted in its entirety and replaced with the following:

4. Other Insurance

If other valid and collectible insurance is available to the "insured" under a "wrap-up program" for a loss we would otherwise cover under any Coverage Form of this policy, our obligations are extinguished as described in Paragraph **A.** of this endorsement.

C. The following is added to **SECTION VI—DEFINITIONS**:

"Wrap-up program" means any owner-controlled insurance program, contractor-controlled insurance program or any other wrap-up or consolidated insurance program under which one party has secured either insurance or self-insurance covering some or all of the contractors or subcontractors performing work on one or more specific projects.

All other terms and conditions of this Policy remain unchanged.

AUTHORIZED REPRESENTATIVE DATE

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ENDORSEMENT NO. _____

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SILICA EXCLUSION

This endorsement modifies insurance provided under the following:

CONTRACTOR'S POLLUTION LIABILITY COVERAGE FORM

It is agreed that **SECTION I—COVERAGE,** Item **4. Exclusions** is amended to include the following exclusion:

This insurance does not apply to:

Silica

"Bodily injury" or "property damage" caused by, arising out of or in any way related to, silicon dioxide (occurring in crystalline, amorphous and impure forms), silica particles, silica dust or silica compounds.

This exclusion shall apply whether "bodily injury" or "property damage" is actual or alleged.

This exclusion shall apply regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the associated "bodily injury" or "property damage."

All other terms and conditions of this Policy remain unchanged.

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ENDORSEMENT NO. _____

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ASBESTOS EXCLUSION

This endorsement modifies the insurance provided under the following:

CONTRACTOR'S POLLUTION LIABILITY COVERAGE FORM

It is agreed that **SECTION I—COVERAGE,** Item **4. Exclusions** is amended to include the following exclusion:

This insurance does not apply to:

Asbestos

"Bodily injury" or "property damage" caused by, arising out of or in any way related to, asbestos, asbestos products, asbestos fibers, or asbestos dust.

This exclusion shall apply whether "bodily injury" or "property damage" is actual or alleged.

This exclusion shall apply regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the associated "bodily injury" or "property damage."

This exclusion shall not apply to asbestos abatement operations performed on behalf of a "named insured" by a certified asbestos abatement subcontractor.

All other terms and conditions of this Policy remain unchanged.

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ENDORSEMENT NO. _____

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ADDITIONAL INSURED OWNERS, LESSEES OR CONTRACTORS—COMPLETED OPERATIONS

This endorsement modifies insurance provided under the following:

CONTRACTORS POLLUTION LIABILITY COVERAGE PART

SCHEDULE

Name of Person or Organization: Any person or organization where required by written contract, executed prior to the commencement of operations.
Location and Description of Completed Operations:

(If no entry appears above, information required to complete this endorsement will be shown in the Declarations as applicable to this endorsement.)

Section II—Who Is An Insured is amended to include as an insured the person or organization shown in the Schedule, but only with respect to liability arising out of "your work" at the location designated and described in the schedule of this endorsement performed for that insured and included in the "work-completed" operations hazard.

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ENDORSEMENT NO. _____

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ADDITIONAL INSURED—OWNERS, LESSEES OR CONTRACTORS—SCHEDULED PERSON OR ORGANIZATION

This endorsement modifies insurance provided under the following:

CONTRACTOR'S POLLUTION LIABILITY COVERAGE FORM

SCHEDULE

Name of Person or Organization:
Any person or organization where required by written contract, executed prior to the commencement of operations.

(If no entry appears above, information required to complete this endorsement will be shown in the Declarations as applicable to this endorsement.)

A. **SECTION II—WHO IS AN INSURED** is amended to include as an insured the person or organization shown in the Schedule, but only with respect to liability arising out of your ongoing operations performed for that insured.

B. With respect to the insurance afforded to these additional insureds, the following exclusion is added:

This insurance does not apply to "bodily injury" or "property damage" occurring after:

(1) All work, including materials, parts or equipment furnished in connection with such work, on the project (other than service, maintenance or repairs) to be performed by or on behalf of the additional insured(s) at the site of the covered operations has been completed; or

(2) That portion of "your work" out of which the injury or damage arises has been put to its intended use by any person or organization other than another contractor or subcontractor engaged in performing operations for a principal as a part of the same project.

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A Stock Insurance Company

CONTRACTOR'S POLLUTION LIABILITY COVERAGE FORM

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine "your" rights, duties and what is and is not covered.

Throughout this policy, the words "you" and "your" refer to the Named Insured shown in the Declarations, and any other person or organization qualifying as a Named Insured under this policy. The words "we," "us" and "our" refer to the company providing this insurance.

The word "insured" means any person or organization qualifying as such under Section **II**—Who Is An Insured.

Other words and phrases that appear in quotation marks have special meaning. Refer to Section **V**—Definitions.

SECTION I—CONTRACTOR POLLUTION LIABILITY COVERAGE

1. Insuring Agreement—Bodily Injury and Property Damage Liability

a. We will pay those sums that the "insured" becomes legally obligated to pay as "damages" because of "bodily injury" or "property damage" to which this insurance applies. We will have the right and duty to defend the "insured" against any "suit" seeking those "damages." However, we will have no duty to defend the "insured" against any "suit" seeking "damages" for "bodily injury" or "property damage" to which this insurance does not apply. We may, at our discretion, investigate any "pollution incident" and settle any claim or "suit" that may result. But:

(1) The amount we will pay for "damages" is limited as described in Section **III**—Limits Of Insurance; and

(2) Our right and duty to defend ends when we have used up the applicable Limit of Insurance in the payment of judgments or settlements.

b. We will pay those sums that the "insured" becomes legally obligated to pay as "damages" because of "bodily injury" or "property damage," provided:

(1) The "bodily injury" or "property damage" is caused by an "occurrence" that takes place in the "coverage territory";

(2) The "bodily injury" or "property damage" is caused by a "pollution incident" arising out of "your work" or "work-completed operations hazard";

(3) The "bodily injury" or "property damage" first occurs during the policy period; and

(4) Prior to the effective date of the policy, no "insured" listed under paragraph **1.** of Section **II**—Who Is An Insured and no "employee" authorized by you to give or receive notice of an "occurrence" or claim, knew that the "bodily injury" or "property damage" or that any "pollution incident" which reasonably could be expected to result in a claim had occurred, in whole or in part. If such a listed "insured" or authorized "employee" knew, prior to the policy period, that the "bodily injury" or "property damage" or that any "pollution incident" which reasonably could be expected to result in a claim occurred, then any continuation, change or resumption of such "bodily injury" or "property damage" or "pollution incident" during or after the policy pe-riod will be deemed to have been known prior to the policy period.

c. Progressive, indivisible "bodily injury" or "property damage" over a period of time caused by the same, continuous, repeated or related "pollution incident" shall be deemed to have occurred only

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on the date of the first exposure to such "pollution incident." If the date of the first exposure is before the inception date of the first Contractor Pollution Liability policy issued to you by us, or cannot be determined, but the progressive, indivisible "bodily injury" or "property damage" continues in fact to exist during the policy period, it will be deemed to have occurred only on the inception date of the first Contractor Pollution Liability policy issued to you by "us" which is applicable to "your work" or "work-completed operations hazard" from which such "pollution incident" resulted.

d. "Bodily injury" or "property damage" which occurs during the policy period and was not, prior to the policy period, known to have occurred by any "insured" listed under paragraph **1.** of Section **II**—Who Is An Insured or any "employee" authorized by you to give or receive notice of an "occurrence" or claim, includes any continuation, change or resumption of that "bodily injury" or "property damage" after the end of the policy period.

e. "Bodily injury" or "property damage" will be deemed to have been known to have occurred at the earliest time when any "insured" listed under paragraph **1.** of Section **II**—Who Is An Insured or any "employee" authorized by you to give or receive notice of an "occurrence" or claim:

(1) Reports all, or any part, of the "bodily injury" or "property damage" to us or any other insurer;

(2) Receives a written or verbal demand or claim for "damages" because of the "bodily injury" or "property damage"; or

(3) Becomes aware by any other means that "bodily injury" or "property damage" has occurred or has begun to occur.

f. No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments.

2. Defense and Settlement of Claims or Suits

a. We shall have the right and the duty to defend you against a claim or "suit" to which this insurance applies. We shall have no duty to defend the "insured" against any claim or "suit" to which this insurance does not apply. We shall have no obligation to pay any claims, or to defend, continue to defend, or indemnify for any losses after the Limits of Liability have been exhausted by any payment, including any judgment or settlement, or by the deposit or tender of the Limits of Insurance into a court of applicable jurisdiction.

b. We shall have the right to select legal counsel to represent the "insured" for the investigation, adjustment, settlement and defense of any claim or "suit" covered pursuant to this policy. Any "claim expenses" incurred prior to the selection of legal counsel by us shall not be covered pursuant to this policy or credited against the deductible.

c. In the event the "insured" is entitled by law to select independent counsel to defend itself at our expense, the attorney fees and all other litigation expenses we must pay to that counsel are limited to the rates we actually pay to counsel that we normally retain in the ordinary course of business when defending a claim or "suit" of similar complexity in the jurisdiction where the claim or "suit" arose or is being defended. In addition, the "insured" and we agree that we may exercise the right to require that such counsel:

(1) Have certain minimum qualifications with respect to their competency, including experience in defending claims similar to those being asserted against the "insured";

(2) Maintain suitable errors and omissions insurance coverage;

(3) Be located within a reasonable proximity to the jurisdiction of the claim or "suit"; and

(4) Agrees in writing to respond in a timely manner to our requests for information regarding the claim or "suit."

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The “insured” may at anytime, by its signed consent, freely and fully waive its right to select independent counsel.

d. The “insured” shall not assume or admit liability, make any payment, consent to any judgment, settle any claim or incur any expense without the prior written consent of the company, which consent shall not be unreasonably withheld. We will not be liable for any expense, settlement, assumed obligation or admission to which we have not consented, with the exception of “emergency cleanup” costs.

3. Supplementary Payments

We will pay, with respect to any claim we investigate or settle, or any “suit” against an “insured” we defend:

a. All “claim expenses” we incur, including defense costs.

b. All reasonable expenses incurred by the “insured” at our request to assist us in the investigation or defense of the claim or “suit,” including actual loss of earnings up to five hundred dollars ($500) a day because of time off from work.

c. All court costs taxed against the “insured” in the “suit.” However, these payments do not include attorneys’ fees or attorneys’ expenses taxed against the “insured.”

d. Prejudgment interest awarded against the “insured” on that part of the judgment we pay. If we make an offer to pay the applicable Limit of Insurance, we will not pay any prejudgment interest based on that period of time after the offer.

e. All interest on the full amount of any judgment that accrues after entry of the judgment and before we have paid, offered to pay, or deposited in court the part of the judgment that is within the applicable Limit of Insurance.

f. The cost of bonds to release attachments for bond amounts up to the applicable Limit of Insurance.

g. Up to two hundred fifty dollars ($250) for cost of bail bonds required because of accidents or traffic law violations arising out of the use of any vehicle to which the Bodily Injury Liability Coverage applies. We do not have to furnish these bonds.

h. Up to $5,000 per injured person for “medical expenses” incurred by the “insured” and administered to others at the time of any “occurrence,” for “bodily injury.”

i. Costs incurred by the “insured” to respond to “emergency cleanup.”

Payments made under Supplementary Payments **3a.** through **3i.** will not reduce the Limits of Insurance.

j. If we defend an “insured” against a “suit” and an indemnitee of the “insured” is also named as a party to the “suit,” we will defend that indemnitee if all of the following conditions are met:

(1) The “suit” against the indemnitee seeks “damages” for which the “insured” has assumed the liability of the indemnitee in a contract or agreement that is an “insured contract”;

(2) This insurance applies to such liability assumed by the “insured”;

(3) The obligation to defend, or the cost of the defense of, that indemnitee, has also been assumed by the “insured” in the same “insured contract”;

(4) The allegations in the “suit” and the information we know about the “occurrence” are such that no conflict appears to exist between the interests of the “insured” and the interests of the indemnitee;

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(5) The indemnitee and the "insured" ask us to conduct and control the defense of that indemnitee against such "suit" and agree that we can assign the same counsel to defend the "insured" and the indemnitee; and

(6) The indemnitee:

(a) Agrees in writing to:

i. Cooperate with us in the investigation, settlement or defense of the "suit";

ii. Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the "suit";

iii. Notify any other insurer whose coverage is available to the indemnitee; and

iv. Cooperate with us with respect to coordinating other applicable insurance available to the indemnitee; and

(b) Provides us with written authorization to:

i. Obtain records and other information related to the "suit"; and

ii. Conduct and control the defense of the indemnitee in such "suit."

Our obligation to defend an insured's indemnitee and to pay for attorneys' fees and necessary litigation expenses as Supplementary Payments ends when we have used up the applicable Limit of Insurance in the payment of judgments or settlements or the conditions set forth above, or the terms of the agreement described in paragraph **(6)** above, are no longer met.

4. Exclusions

This insurance does not apply to:

a. Expected or Intended Injury

"Bodily injury" or "property damage" expected or intended from the standpoint of the "insured." This exclusion does not apply to "bodily injury" resulting from the use of reasonable force to protect persons or property.

b. Contractual Liability

"Bodily injury" or "property damage" for which the "insured" is obligated to pay "damages" by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for "damages":

(1) That the "insured" would have in the absence of the contract or agreement; or

(2) Assumed in a contract or agreement that is an "insured contract," provided the "bodily injury" or "property damage" occurs subsequent to the execution of the contract or agreement. Solely for the purposes of liability assumed in an "insured contract," reasonable attorney fees and necessary litigation expenses incurred by or for a party other than an "insured" are deemed to be "damages" because of "bodily injury" or "property damage," provided:

(a) Liability to such party for, or for the cost of, that party's defense has also been assumed in the same "insured contract"; and

(b) Such attorney fees and litigation expenses are for defense of that party against a civil or alternative dispute resolution proceeding in which "damages" to which this insurance applies are alleged.

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c. Workers' Compensation and Similar Laws

Any obligation of the "insured" under a workers' compensation, disability benefits or unemployment compensation law or any similar law.

d. Employer's Liability

"Bodily injury" to:

(1) An "employee" of the "insured" arising out of and in the course of:

(a) Employment by the "insured"; or

(b) Performing duties related to the conduct of the "insured" business; or

(2) The spouse, child, parent, brother or sister of that "employee" as a consequence of paragraph **(1)** above.

This exclusion applies whether the "insured" may be liable as an employer or in any other capacity and to any obligation to share "damages" with or repay someone else who must pay "dam-ages" because of the injury.

This exclusion does not apply to liability assumed by the "insured" under an "insured contract."

e. Professional Services

"Bodily injury" or "property damage" arising out of the rendering of or failure to render professional services by any "insured," any contractor or subcontractor working on your behalf, including the preparation or approval of maps, drawings, opinions, reports, surveys, designs, specifications or engineering services. However, this exclusion does not apply to "bodily injury" or "property damage" arising from your supervision or oversight of your contractors or subcontractors.

f. Damage to Property

"Property damage" to:

(1) Property you own, rent or occupy, including any costs or expenses incurred by you, or any other person, organization or entity, for repair, replacement, enhancement, restoration or maintenance of such property for any reason, including prevention of injury to a person or damage to another's property;

(2) Premises you sell, give away or abandon, if the "property damage" arises out of any part of those premises;

g. Liability Arising Out of Your Product

"Bodily injury" or "property damage" arising out of the use of "your product" or any part of it.

h. Aircraft, Auto, Rolling Stock or Watercraft

"Bodily injury" or "property damage" arising out of the ownership, maintenance, use or entrustment to others of any aircraft, "auto," rolling stock or watercraft owned or operated by or rented or loaned to any "insured." Use includes operation and "loading or unloading."

This exclusion applies even if the claims against any "insured" allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that "insured," if the "occurrence" which caused the "bodily injury" or "property damage" involved the ownership, maintenance, use or entrustment to others of any aircraft, "auto," rolling stock or watercraft that is owned or operated by or rented or loaned to any "insured."

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This exclusion does not apply to:

(1) A watercraft while ashore;

(2) A watercraft you do not own that is:

(a) Less than thirty (30) feet long; and

(b) Not being used to carry persons or property for a charge;

(3) Liability assumed under any "insured contract" for the ownership, maintenance or use of aircraft or watercraft;

(4) "Bodily injury" or "property damage" caused by a "pollution incident" arising out of the ownership, maintenance, use, operation, "loading or unloading" of any aircraft, "auto," rolling stock or watercraft within the boundaries of the site or location where "your work" is being performed; and

(5) "Bodily injury" or "property damage" is caused by a "pollution incident" arising out of the "transportation" of waste or material, unless otherwise excluded from coverage under the provisions of Exclusion **j.** Disposal of Waste or Material.

Additionally, it is agreed that any coverage for claims arising out of the "transportation" of waste or material provided by this policy is excess over any valid and collectible insurance available to the "insured," or any bond, or self insured retention and such coverage remains subject to the terms and conditions to this insurance.

i. Damage to Your Work

"Property damage" to "your work" arising out of it or any part of it.

This exclusion does not apply if the damaged work or the work out of which the damage arises was performed on your behalf by a subcontractor.

j. Disposal of Waste or Material

"Bodily injury" or "property damage" arising out of the storage, treatment or disposal of waste or material at any real property or facility, including disposal wells and injection wells or any other well that accepts waste or material for disposal or treatment purposes.

This exclusion does not apply to any location that:

(1) Accepts the temporary storage (not to exceed seventy-two [72] hours) of any waste or material that is intended for disposal or treatment at any location that is owned, leased or rented by the "insured"; or

(2) Accepts or treats any waste or material, provided:

(a) The real property or facility is not managed, operated, owned or leased by you or any subsidiary or affiliate of you;

(b) The real property or facility is permitted and/or licensed by the Federal, State, Local or Provincial authorities to accept such waste or material as of the date of the treatment, storage or disposal; and

(c) The real property or facility is not listed on a proposed list of final Federal National Priorities List (NPL) or any State or Provincial equivalent NPL, Superfund or Hazardous Waste list prior to the treatment, storage or disposal.

Additionally, it is agreed any coverage for claims arising out of the storage, treatment or disposal of waste or material provided by this policy is excess over any valid and collectible insurance

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available to the "insured," or any bond, fund, trust or self insured retention and such coverage remains subject to the terms and conditions of this insurance.

SECTION II—WHO IS AN INSURED

1. If you are designated in the Declarations as:

a. An individual, you and your spouse are an "insured," but only with respect to the conduct of a business of which you are the sole owner.

b. A partnership or joint venture, you are an "insured." Your members, your partners, and their spouses are also an "insured," but only with respect to the conduct of your business.

c. A limited liability company, you are an "insured." Your members are also an "insured," but only with respect to the conduct of your business. Your managers are an "insured," but only with respect to their duties as your managers.

d. An organization other than a partnership, joint venture or limited liability company, you are an "insured." Your "executive officers" and directors are an "insured," but only with respect to their duties as your officers or directors. Your stockholders are also an "insured," but only with respect to their liability as your stockholders.

e. A trust, you are an "insured." Your trustees are also an "insured," but only with respect to their duties as trustees of your trust.

2. Each of the following is also an "insured":

a. Your "employee," other than either your "executive officers" (if you are an organization other than a partnership, joint venture or limited liability company) or your managers (if you are a limited liability company), but only for acts within the scope of their employment by you or while performing duties related to the conduct of your business. However, no "employee" is an "insured" for:

(1) "Bodily injury":

(a) To you, to your partners or members (if you are a partnership or joint venture), to your members (if you are a limited liability company), to a co-"employee" while in the course of his or her employment or performing duties related to the conduct of your business;

(b) To the spouse, child, parent, brother or sister of that co-"employee" as a consequence of paragraph **(1)(a)** above;

(c) For which there is any obligation to share "damages" with or repay someone else who must pay "damages" because of the injury described in paragraphs **(1)(a)** or **(b)** above; or

(d) Arising out of his or her providing or failing to provide professional health care services.

(2) "Property damage" to property:

(a) Owned, occupied or used by; or

(b) Rented to, in the care, custody or control of, or over which physical control is being exercised for any purpose by you, any "employee," volunteer worker, any partner or member (if you are a partnership or joint venture), or any member (if you are a limited liability company).

b. Any person (other than your "employee"), or any organization while acting as your real estate manager.

c. Any person or organization having proper temporary custody of your property if you die, but only:

(1) With respect to liability arising out of the maintenance or use of that property; and

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(2) Until your legal representative has been appointed.

d. Your legal representative if you die, but only with respect to their duties as such. That representative will have all your rights and duties under this Coverage Part.

3. Any organization you newly acquire or form, other than a partnership, joint venture or limited liability company, and over which you maintain ownership or majority interest, will qualify as a Named Insured if there is no other similar insurance available to that organization. However:

a. Coverage under this provision is afforded only until the ninetieth (90th) day after you acquire or form the organization or the end of the policy period, whichever is earlier;

b. Coverage under this policy does not apply to "bodily injury" or "property damage" that occurred before you acquired or formed the organization; and

No person or organization is an "insured" with respect to the conduct of any current or past partnership, joint venture or limited liability company that is not shown as a Named Insured in the Declarations.

SECTION III—LIMITS OF INSURANCE

1. The Limits of Insurance shown in the Declarations and the rules below fix the most we will pay regardless of the number of:

a. Insureds;

b. Claims made or "suits" brought; or

c. Persons or organizations making claims or bringing "suits."

2. The General Aggregate Limit is the most we will pay for the sum of "damages" because of all "bodily injury" and "property damage" from a "pollution incident," except "damages" included in the "work-completed operations hazard."

3. The "work-completed operations" Aggregate Limit is the most we will pay for "damages" because of "bodily injury" or "property damage" from a "pollution incident" included in the "work-completed operations hazard."

4. Subject to the General Aggregate Limit and/or the "work-completed operations" Aggregate Limit, whichever applies, the Each Occurrence Limit is the most we will pay because of "bodily injury" or "property damage" arising out of any one "pollution incident."

The Limits of Insurance of this Coverage Part apply separately to each consecutive annual period and to any remaining period of less than twelve (12) months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than twelve (12) months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.

SECTION IV—CONDITIONS

1. Bankruptcy

Bankruptcy or insolvency of the "insured" or of the estate of an "insured" will not relieve us of our obligations under this Coverage Part.

2. Duties in the Event of a Claim or Suit

a. You must see to it that we are notified promptly of a "pollution incident" which may result in a claim or any action or proceeding to impose an obligation on the "insured." Notice should include:

(1) How, when and where the "pollution incident" took place;

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(2) The names and addresses of any injured persons and witnesses; and

(3) The nature and location of any injury or damage arising out of the "pollution incident."

Notice of a "pollution incident" is not notice of a claim.

b. If a claim is made or "suit" is brought against any "insured" or an action is initiated, you must see to it that we receive prompt written notice of the claim or "suit" or notice of action.

c. You and any other involved "insured" must:

(1) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the claim or "suit";

(2) Authorize us to obtain records and other information;

(3) Cooperate with us in the investigation or settlement of the claim or defense against the "suit"; and

(4) Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the "insured" because of injury or damage to which this insurance may also apply.

d. No "insured" will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense, other than for "medical expenses" or "emergency cleanup," without our consent.

3. Legal Action Against Us

No person or organization has a right under this Coverage Part:

a. To join us as a party or otherwise bring us into a "suit" asking for "damages" from an "insured"; or

b. To sue us on this Coverage Part unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an "insured"; but we will not be liable for "damages" that are not payable under the terms of this Coverage Part or that are in excess of the applicable Limit of Insurance. An agreed settlement means a settlement and release of liability signed by us, the "insured" and the claimant or the claimant's legal representative.

4. Other Insurance

If other valid and collectible insurance is available to the "insured" for a loss we cover under this Coverage Part, our obligations are limited as follows:

a. Primary Insurance

This insurance is primary except when paragraph **b.** below applies. When this insurance is primary, our obligations are not affected unless any of the other insurance is also primary. Then, we will share with all that other insurance by the method described in paragraph **c.** below.

b. Excess Insurance

This insurance is excess over any of the other insurance, whether primary, excess, contingent or on any other basis:

(1) That is effective prior to the beginning of the policy period shown in the Declarations of this insurance and applies to "bodily injury" or "property damage" resulting from a "pollution incident."

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(2) Any valid and collectible insurance available to you covering liability for "damages" arising out of "your work" performed to which this insurance applies.

(3) Any valid and collectible insurance available to you covering liability for "damages" for which you have been added as an additional "insured" by an endorsement, by definition in a contract or agreement, or by a combination thereof.

When this insurance is excess, we will have no duty under Section **I** to defend the "insured" against any "suit" if any other insurer has a duty to defend the "insured" against that "suit." If no other insurer defends, we will undertake to do so, but we will be entitled to the "insured" rights against all those other insurers.

When this insurance is excess over other insurance, we will pay only our share of the amount of the loss, if any, that exceeds the sum of:

(a) The total amount that all such other insurance would pay for the loss in the absence of this insurance; and

(b) The total of all deductible and self-insured amounts under all that other insurance.

We will share the remaining loss, if any, with any other insurance that is not described in this Excess Insurance provision and was not bought specifically to apply in excess of the Limits of Insurance shown in the Declarations of this Coverage Part.

c. Method of Sharing

If all of the other insurance permits contribution by equal shares, we will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable Limit of Insurance or none of the loss remains, whichever comes first.

If any of the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable Limit of Insurance to the total applicable Limits of Insurance of all insurers.

5. Premium Audit

a. We reserve the right to compute all premiums for this Coverage Part in accordance with our rules and rates.

b. Premium shown in this Coverage Part as advance premium is a deposit premium only. At the close of each audit period we will compute the earned premium for that period and send notice to the first Named Insured. The due date for audit and retrospective premiums is the date shown as the due date on the bill. If the sum of the advance and audit premiums paid for the policy period is greater than the earned premium, we may return the excess to the first Named Insured, subject to any minimum and/or deposit premium charge, as evidenced on the Declarations page.

c. The first Named Insured must keep records of the information we need for premium computation, and send us copies at such times as we may request.

6. Representations

By accepting this policy, you agree:

a. The statements in the Declarations are accurate and complete;

b. Those statements are based upon representations you made to us; and

c. We have issued this policy in reliance upon your representations.

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7. Separation of Insureds

Except with respect to the Limits of Insurance, and any rights or duties specifically assigned in this Coverage Part to the first Named Insured, this insurance applies:

a. As if each Named Insured were the only Named Insured; and

b. Separately to each "insured" against whom claim is made or "suit" is brought.

8. Transfer of Rights of Recovery Against Others to Us

If the "insured" has rights to recover all or part of any payment we have made under this Coverage Part, those rights are transferred to us. The "insured" must do nothing after loss to impair them. At our request, the "insured" will bring "suit" or transfer those rights to us and help us enforce them.

9. Coverage Part Issued to Comply with Law or Regulation

If this policy is issued to comply with any law or regulation which requires notice of cancellation to any governmental body, cancellation may not be effected until the required notice has been provided by you or us.

SECTION V—DEFINITIONS

1. "Auto" means:

a. A land motor vehicle, trailer or semitrailer designed for travel on public roads, including any attached machinery or equipment; or

b. Any other land vehicle that is subject to a compulsory or financial responsibility law or other motor vehicle insurance law in the state where it is licensed or principally garaged.

However, "auto" does not include "mobile equipment."

2. "Bodily injury" means bodily injury, sickness or disease sustained by a person, including death resulting from any of these at any time. "Bodily injury" includes mental anguish to such person, and "damages" claimed by any person or organization for care, loss of services or death resulting from "bodily injury." "Bodily injury" also includes any resulting medical monitoring associated with "bodily injury."

3. "Claim expenses" means reasonable and necessary costs incurred by us in the investigation, settlement, defense or appeal of a claim or "suit." "Claim expenses" do not include any salaries, regular or overtime wages, benefits, or fees of directors, officers, managers or any "employee" of the "insured."

4. "Cleanup costs" means expenses incurred in the investigation, evaluation, monitoring, testing, removal, containment, treatment, response, disposal, remediation, detoxification or neutralization of any "pollutants." "Cleanup costs" include the cost to repair, replace or restore property as required by any supervising governmental authority. "Cleanup costs" do not include costs associated with improvements or betterments. The cleanup is deemed completed upon sign-off from the supervising governmental authority or an order of completion entered by a court of competent jurisdiction.

5. "Coverage territory" means:

a. The United States of America (including its territories and possessions), Puerto Rico and Canada;

b. International waters or airspace, but only if the injury or damage occurs in the course of travel or transportation between any places included in paragraph **a.** above; or

c. All parts of the world if the injury or damage arises out of:

(1) "Your work" or "work-completed operations hazard" in the territory described in paragraph **a.** above; or

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(2) The activities of a person whose home is in a territory described in paragraph **a.** above, but is away for a short time on your business;

provided that the "insured" responsibility to pay "damages" is determined in a "suit" on the merits, in the territory described in paragraph **a.** above or in a settlement we agree to.

6. "Damages" means any amount that you are legally required to pay in the form of a judgment, award or settlement. "Damages" does not include restitution, return, withdrawal or reduction of fees, profits or charges for services rendered or offered, or any other consideration or expenses paid to the "insured."

7. "Emergency cleanup" means actions taken within seventy-two (72) hours by the "insured" to respond to and/or abate an immediate threat to human health or the environment arising out of a "pollution condition" resulting from "your work" to which this insurance applies.

8. "Employee" includes a "leased worker." "Employee" does not include a "temporary worker."

9. "Executive officer" means a person holding any of the officer positions created by your charter, constitution, bylaws or any other similar governing document.

10. "Insured contract" means:

a. A contract for a lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner is not an "insured contract";

b. A sidetrack agreement;

c. Any easement or license agreement, except in connection with construction or demolition operations on or within fifty (50) feet of a railroad;

d. An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;

e. An elevator maintenance agreement; or

f. That part of any other contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the tort liability of another party to pay for "bodily injury" or "property damage" to a third person or organization. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement.

Paragraph **f.** does not include that part of any contract or agreement:

(1) That indemnifies a railroad for "bodily injury" or "property damage" arising out of construction or demolition operations, within fifty (50) feet of any railroad property and affecting any railroad bridge or trestle, tracks, roadbeds, tunnel, underpass or crossing;

(2) That indemnifies an architect, engineer or surveyor for injury or damage arising out of:

(a) Preparing, approving, or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or

(b) Giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage; or

(3) Under which the "insured," if an architect, engineer or surveyor, assumes liability for an injury or damage arising out of the insured's rendering or failure to render professional services, including those listed in **(2)** above and supervisory, inspection, architectural or engineering activities.

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11. "Leased worker" means a person leased to you by a labor leasing firm under an agreement between you and the labor leasing firm, to perform duties related to the conduct of your business. "Leased worker" does not include a "temporary worker."

12. "Loading or unloading" means the handling of property:

a. After it is moved from the place where it is accepted for movement into or onto an aircraft, rolling stock, watercraft or "auto";

b. While it is in or on an aircraft, rolling stock, watercraft or "auto"; or

c. While it is being moved from an aircraft, rolling stock, watercraft or "auto" to the place where it is finally delivered;

but "loading or unloading" does not include the movement of property by means of a mechanical device, other than a hand truck, that is not attached to the aircraft, rolling stock, watercraft or "auto."

13. "Medical expenses" means:

a. First aid administered at the time of an accident;

b. Necessary medical, surgical, x-ray and dental services, including prosthetic devices; and

c. Necessary ambulance, hospital, professional nursing and funeral services.

14. "Mobile equipment" means any of the following types of land vehicles, including any attached machinery or equipment:

a. Bulldozers, farm machinery, forklifts and other vehicles designed for use principally off public roads;

b. Vehicles maintained for use solely on or next to premises you own or rent;

c. Vehicles that travel on crawler treads;

d. Vehicles, whether self-propelled or not, maintained primarily to provide mobility to permanently mounted:

(1) Power cranes, shovels, loaders, diggers or drills; or

(2) Road construction or resurfacing equipment such as graders, scrapers or rollers;

e. Vehicles not described in paragraphs **a., b., c.** or **d.** above that are not self-propelled and are maintained primarily to provide mobility to permanently attached equipment of the following types:

(1) Air compressors, pumps and generators, including spraying, welding, building cleaning, geo-physical exploration, lighting and well servicing equipment; or

(2) Cherry pickers and similar devices used to raise or lower workers;

f. Vehicles not described in paragraphs **a., b., c.** or **d.** above maintained primarily for purposes other than the transportation of persons or cargo.

However, self-propelled vehicles with the following types of permanently attached equipment are not "mobile equipment," but will be considered an "auto":

(1) Equipment designed primarily for:

(a) Snow removal;

(b) Road maintenance, but not construction or resurfacing; or

(c) Street cleaning;

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(2) Cherry pickers and similar devices mounted on automobile or truck chassis and used to raise or lower workers; and

(3) Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment.

However, "mobile equipment" does not include land vehicles that are subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged. Land vehicles subject to a compulsory or financial responsibility law or other motor vehicle insurance law are considered an "auto."

15. "Natural resource damage" means injury to, destruction of, or loss of, including the resulting loss of value of fish, wildlife, biota, land, air, water, groundwater, drinking water supplies, and other such resources belonging to, managed by, held in trust by, appertaining to, or otherwise controlled by the United States of America (including the fishery conservation zone established by the Magnuson-Stevens Fishery Conservation and Management Act [16 U.S.C. § 1801 et. seq.]), any state or local government, or any First Nation or Native American Tribe, or, if such resources are subject to a trust restriction on expropriation or alienation, any members of any First Nation or Native American Tribe, including the reasonable costs of assessing such injury, destruction or loss resulting therefrom.

16. "Occurrence" means an accident, including continuous or repeated exposure to substantially the same general harmful conditions.

17. "Pollutants" means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

18. "Pollution incident" means the emission, discharge, release or escape of "pollutants." The entirety of any such emission, discharge, release or escape shall be deemed to be one "pollution incident."

19. "Property damage" means:

a. Physical injury to, destruction of or contamination of tangible property, including all resulting loss of use of that property;

b. Loss of use of tangible property that is not physically injured, destroyed or contaminated, but has been evacuated, withdrawn from use or rendered inaccessible because of a "pollution incident";

c. Cleanup costs; and

d. "Natural resource damage."

For the purposes of this insurance, electronic data is not tangible property.

As used in this definition, electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from, computer software, including systems and applications software, hard or floppy discs, CD-ROMs, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.

20. "Suit" means a civil proceeding in which "damages" because of "bodily injury" or "property damage" to which this insurance applies are alleged. "Suit" includes:

a. An arbitration proceeding in which such "damages" are claimed and to which the "insured" must submit or does submit with our consent; or

b. Any other alternative dispute resolution proceeding in which such "damages" is claimed and to which the "insured" submits with our consent.

21. "Temporary worker" means a person who is furnished to you to substitute for a permanent "em-ployee" on leave or to meet seasonal or short-term workload conditions.

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22. "Transportation" means movement via "auto" or rolling stock by you of waste or material, including the "loading and unloading" of such waste or material, provided that such movement is:

a. Within the boundaries of a site or location where "your work" is being performed; or

b. To or from a site or location where "your work" is being performed.

23. "Work-completed operations hazard" includes all "bodily injury" and "property damage" occurring away from premises you own or rent and arising out of "your work" except:

Work that has not yet been completed or abandoned. However, "your work" will be deemed com-pleted at the earliest of the following times:

a. When all of the work called for in your contract has been completed;

b. When all of the work to be done at the job site has been completed if your contract calls for work at more than one job site; or

c. When that part of the work done at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project.

Work that may need service, maintenance, correction, repair or replacement, but which is otherwise complete, will be treated as completed.

24. "Your product":

a. Means:

(1) Any goods or products, other than real property, manufactured, sold, handled, distributed or disposed of by:

(a) You;

(b) Others trading under your name; or

(c) A person or organization whose business or assets you have acquired; and

(2) Containers (other than vehicles), materials, parts or equipment furnished in connection with such goods or products.

b. Includes:

(1) Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your product"; and

(2) The providing of or failure to provide warnings or instructions.

c. Does not include vending machines or other property rented to or located for the use of others, but not sold.

25. "Your work":

a. Means:

(1) Work or operations performed by you or on your behalf; and

(2) Materials, parts or equipment furnished in connection with such work or operations.

b. Includes:

(1) Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your work"; and

(2) The providing of or failure to provide warnings or instructions.

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Underwritten by Scottsdale Insurance Company

ENDORSEMENT NO. _____

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PFC/PFAS EXCLUSION

This endorsement modifies insurance provided under the following:

CONTRACTOR'S POLLUTION LIABILITY COVERAGE PART

A. The following exclusion is added to **SECTION I—CONTRACTOR POLLUTION LIABILITY COVERAGE,** Paragraph **4. Exclusions:**

This insurance does not apply to:

"PFC/PFAS"

a. "Bodily injury" or "property damage" which would not have occurred, in whole or in part, but for the actual, alleged, threatened or suspected inhalation, ingestion, absorption or consumption of, contact with, exposure to, existence of, or presence of, any "PFC/PFAS"; or

b. Any loss, cost or expense arising out of, in whole or in part, the abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to, or assessing the effects of, "PFC/PFAS" by any "insured" or by any other person or entity.

This exclusion applies regardless of whether any other cause, event, material, substance, good or product contributed concurrently or in any sequence to such injury or damage. This exclusion also applies regardless of whether any "PFC/PFAS" is contained, used, included, involved or incorporated intentionally, accidentally or unknowingly in or on a good or product, component part of a good or product, or otherwise by any "insured" or by any other person or entity. This exclusion applies regardless of whether the inhalation, ingestion, absorption or consumption of, contact with, exposure to, existence of, or presence of any "PFC/PFAS" occurs within or outside any building or other structure.

B. The following definition is added to **SECTION V—DEFINITIONS:**

"PFC/PFAS" means:

a. Any fluorosurfactant, perfluorinated chemical or compound, or perfluoroalkyl or polyfluoroalkyl substance, including but not limited to any per- or polyfluorinated acid (including, without limitation, perfluorooctanoic acid (PFOA), perfluorooctanesulfonic acid (PFOS), and per- and polyfluorether carboxylic acids), per- or polyfluorinated sulfonamide, per- or polyfluorinated iodide, per- or polyfluorinated aldehyde, per- or polyfluorinated sulfonyl fluoride, per- or polyfluorinated fluorotelomer substance or per- or polyfluorinated sulfonamido substance; or

b. Any perfluoroalkane or polyfluoroalkane substance, including but not limited to carbon tetrafluoride, perfluorooctane, and perfluoro-2-methylpentane; or

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c. Any fluorinated polymers, including but not limited to fluoropolymers, perfluoropolyethers and side-chain-fluorinated polymers; or

any of the associated homologues, isomers, salts, esters, alcohols, acids, precursor chemicals and derivatives, and related degradation or by-products of any such constituent.

The addition of this endorsement does not imply that other policy provisions, including but not limited to any pollution exclusion, do not exclude coverage for “PFC/PFAS”-related injury, “damage,” loss, cost or expense.

All other conditions and provisions of the policy remain unchanged by this endorsement.

AUTHORIZED REPRESENTATIVE DATE

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ENDORSEMENT NO. _____

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

WRAP-UP INSURANCE PROGRAM EXCLUSION

This endorsement modifies the insurance provided under the following:

CONTRACTOR'S POLLUTION LIABILITY COVERAGE FORM

A. The following exclusion is added to **SECTION—I CONTRACTOR POLLUTION LIABILITY COVERAGE,** paragraph **4. Exclusions:**

This insurance does not apply to:

Any actual or alleged "damages" because of "bodily injury," "property damage," "emergency cleanup," costs or expenses of any kind caused by a "pollution incident" arising out of any project that is or was subject to a provided "wrap-up program" and arising out of or resulting from:

(1) "Your work" or any other work conducted by you, any "insured" on your or any "insured's" behalf, or by any other contractor, subcontractor or anyone else on the project;

(2) "Your product" or any other supply of materials provided by you, any "insured" on your or any "insured's" behalf, or by any other contractor, subcontractor or anyone else on the project; or

(3) Your services or operations conducted by you, any "insured" on your or any other "insured's" behalf, or by any other contractor, subcontractor or anyone else on the project;

whether arising out of a project, "your work," any other work, "your product," any other supply of materials or any completed or ongoing service or operation included within the "work-completed operations hazard."

The exclusion above applies whether or not the "wrap-up program":

(a) Provides coverage identical to that provided by this Coverage Part;

(b) Has limits adequate to cover all claims;

(c) Remains in effect; or

(d) Has been terminated.

B. Where a "wrap-up program" is available, **SECTION IV—CONDITIONS,** paragraph **4. Other Insurance** is deleted in its entirety and replaced with the following:

4. Other Insurance

If other valid and collectible insurance is available to the insured under a "wrap-up program" for a loss we would otherwise cover under any Coverage Part of this policy, our obligations are extinguished as described in Paragraph **A.** of this endorsement.

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C. The following is added to **SECTION V—DEFINITIONS:**

"Wrap-up program" means any owner-controlled insurance program, contractor-controlled insurance program, or any other wrap-up or consolidated insurance program under which one party has secured either insurance or self-insurance covering some or all of the contractors or subcontractors performing work on one or more specific projects.

All other terms and conditions of this Policy remain unchanged.

AUTHORIZED REPRESENTATIVE DATE

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COMMERCIAL GENERAL LIABILITY COVERAGE FORM

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered.

Throughout this policy the words "you" and "your" refer to the Named Insured shown in the Declarations, and any other person or organization qualifying as a Named Insured under this policy. The words "we", "us" and "our" refer to the company providing this insurance.

The word "insured" means any person or organization qualifying as such under Section **II** – Who Is An Insured.

Other words and phrases that appear in quotation marks have special meaning. Refer to Section **V** – Definitions.

SECTION I – COVERAGES

COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE LIABILITY

1. Insuring Agreement

a. We will pay those sums that the insured becomes legally obligated to pay as damages because of "bodily injury" or "property damage" to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages. However, we will have no duty to defend the insured against any "suit" seeking damages for "bodily injury" or "property damage" to which this insurance does not apply. We may, at our discretion, investigate any "occurrence" and settle any claim or "suit" that may result. But:

(1) The amount we will pay for damages is limited as described in Section **III** – Limits Of Insurance; and

(2) Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages **A** or **B** or medical expenses under Coverage **C.**

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments – Coverages **A** and **B.**

b. This insurance applies to "bodily injury" and "property damage" only if:

(1) The "bodily injury" or "property damage" is caused by an "occurrence" that takes place in the "coverage territory";

(2) The "bodily injury" or "property damage" occurs during the policy period; and

(3) Prior to the policy period, no insured listed under Paragraph **1.** of Section **II** – Who Is An Insured and no "employee" authorized by you to give or receive notice of an "occurrence" or claim, knew that the "bodily injury" or "property damage" had occurred, in whole or in part. If such a listed insured or authorized "employee" knew, prior to the policy period, that the "bodily injury" or "property damage" occurred, then any continuation, change or resumption of such "bodily injury" or "property damage" during or after the policy period will be deemed to have been known prior to the policy period.

c. "Bodily injury" or "property damage" which occurs during the policy period and was not, prior to the policy period, known to have occurred by any insured listed under Paragraph **1.** of Section **II** – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "occurrence" or claim, includes any continuation, change or resumption of that "bodily injury" or "property damage" after the end of the policy period.

d. "Bodily injury" or "property damage" will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph **1.** of Section **II** – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "occurrence" or claim:

(1) Reports all, or any part, of the "bodily injury" or "property damage" to us or any other insurer;

(2) Receives a written or verbal demand or claim for damages because of the "bodily injury" or "property damage"; or

(3) Becomes aware by any other means that "bodily injury" or "property damage" has occurred or has begun to occur.

e. Damages because of "bodily injury" include damages claimed by any person or organization for care, loss of services or death resulting at any time from the "bodily injury".

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2. Exclusions

This insurance does not apply to:

a. Expected Or Intended Injury

"Bodily injury" or "property damage" expected or intended from the standpoint of the insured. This exclusion does not apply to "bodily injury" resulting from the use of reasonable force to protect persons or property.

b. Contractual Liability

"Bodily injury" or "property damage" for which the insured is obligated to pay damages by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for damages:

(1) That the insured would have in the absence of the contract or agreement; or

(2) Assumed in a contract or agreement that is an "insured contract", provided the "bodily injury" or "property damage" occurs subsequent to the execution of the contract or agreement. Solely for the purposes of liability assumed in an "insured contract", reasonable attorneys' fees and necessary litigation expenses incurred by or for a party other than an insured are deemed to be damages because of "bodily injury" or "property damage", provided:

(a) Liability to such party for, or for the cost of, that party's defense has also been assumed in the same "insured contract"; and

(b) Such attorneys' fees and litigation expenses are for defense of that party against a civil or alternative dispute resolution proceeding in which damages to which this insurance applies are alleged.

c. Liquor Liability

"Bodily injury" or "property damage" for which any insured may be held liable by reason of:

(1) Causing or contributing to the intoxication of any person;

(2) The furnishing of alcoholic beverages to a person under the legal drinking age or under the influence of alcohol; or

(3) Any statute, ordinance or regulation relating to the sale, gift, distribution or use of alcoholic beverages.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in:

(a) The supervision, hiring, employment, training or monitoring of others by that insured; or

(b) Providing or failing to provide transportation with respect to any person that may be under the influence of alcohol;

if the "occurrence" which caused the "bodily injury" or "property damage", involved that which is described in Paragraph **(1), (2)** or **(3)** above.

However, this exclusion applies only if you are in the business of manufacturing, distributing, selling, serving or furnishing alcoholic beverages. For the purposes of this exclusion, permitting a person to bring alcoholic beverages on your premises, for consumption on your premises, whether or not a fee is charged or a license is required for such activity, is not by itself considered the business of selling, serving or furnishing alcoholic beverages.

d. Workers' Compensation And Similar Laws

Any obligation of the insured under a workers' compensation, disability benefits or unemployment compensation law or any similar law.

e. Employer's Liability

"Bodily injury" to:

(1) An "employee" of the insured arising out of and in the course of:

(a) Employment by the insured; or

(b) Performing duties related to the conduct of the insured's business; or

(2) The spouse, child, parent, brother or sister of that "employee" as a consequence of Paragraph **(1)** above.

This exclusion applies whether the insured may be liable as an employer or in any other capacity and to any obligation to share damages with or repay someone else who must pay damages because of the injury.

This exclusion does not apply to liability assumed by the insured under an "insured contract".

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f. Pollution

(1) "Bodily injury" or "property damage" arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants":

(a) At or from any premises, site or location which is or was at any time owned or occupied by, or rented or loaned to, any insured. However, this subparagraph does not apply to:

(i) "Bodily injury" if sustained within a building and caused by smoke, fumes, vapor or soot produced by or originating from equipment that is used to heat, cool or dehumidify the building, or equipment that is used to heat water for personal use, by the building's occupants or their guests;

(ii) "Bodily injury" or "property damage" for which you may be held liable, if you are a contractor and the owner or lessee of such premises, site or location has been added to your policy as an additional insured with respect to your ongoing operations performed for that additional insured at that premises, site or location and such premises, site or location is not and never was owned or occupied by, or rented or loaned to, any insured, other than that additional insured; or

(iii) "Bodily injury" or "property damage" arising out of heat, smoke or fumes from a "hostile fire";

(b) At or from any premises, site or location which is or was at any time used by or for any insured or others for the handling, storage, disposal, processing or treatment of waste;

(c) Which are or were at any time transported, handled, stored, treated, disposed of, or processed as waste by or for:

(i) Any insured; or

(ii) Any person or organization for whom you may be legally responsible; or

(d) At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the "pollutants" are brought on or to the premises, site or location in connection with such operations by such insured, contractor or subcontractor. However, this subparagraph does not apply to:

(i) "Bodily injury" or "property damage" arising out of the escape of fuels, lubricants or other operating fluids which are needed to perform the normal electrical, hydraulic or mechanical functions necessary for the operation of "mobile equipment" or its parts, if such fuels, lubricants or other operating fluids escape from a vehicle part designed to hold, store or receive them. This exception does not apply if the "bodily injury" or "property damage" arises out of the intentional discharge, dispersal or release of the fuels, lubricants or other operating fluids, or if such fuels, lubricants or other operating fluids are brought on or to the premises, site or location with the intent that they be discharged, dispersed or released as part of the operations being performed by such insured, contractor or subcontractor;

(ii) "Bodily injury" or "property damage" sustained within a building and caused by the release of gases, fumes or vapors from materials brought into that building in connection with operations being performed by you or on your behalf by a contractor or subcontractor; or

(iii) "Bodily injury" or "property damage" arising out of heat, smoke or fumes from a "hostile fire".

(e) At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the operations are to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants".

(2) Any loss, cost or expense arising out of any:

(a) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants"; or

(b) Claim or suit by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants".

However, this paragraph does not apply to liability for damages because of "property damage" that the insured would have in the absence of such request, demand, order or statutory or regulatory requirement, or such claim or "suit" by or on behalf of a governmental authority.

g. Aircraft, Auto Or Watercraft

"Bodily injury" or "property damage" arising out of the ownership, maintenance, use or entrustment to others of any aircraft, "auto" or watercraft owned or operated by or rented or loaned to any insured. Use includes operation and "loading or unloading".

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the "occurrence" which caused the "bodily injury" or "property damage" involved the ownership, maintenance, use or entrustment to others of any aircraft, "auto" or watercraft that is owned or operated by or rented or loaned to any insured.

This exclusion does not apply to:

(1) A watercraft while ashore on premises you own or rent;

(2) A watercraft you do not own that is:

(a) Less than 26 feet long; and

(b) Not being used to carry persons or property for a charge;

(3) Parking an "auto" on, or on the ways next to, premises you own or rent, provided the "auto" is not owned by or rented or loaned to you or the insured;

(4) Liability assumed under any "insured contract" for the ownership, maintenance or use of aircraft or watercraft; or

(5) "Bodily injury" or "property damage" arising out of:

(a) The operation of machinery or equipment that is attached to, or part of, a land vehicle that would qualify under the definition of "mobile equipment" if it were not subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged; or

(b) The operation of any of the machinery or equipment listed in Paragraph **f.(2)** or **f.(3)** of the definition of "mobile equipment".

h. Mobile Equipment

"Bodily injury" or "property damage" arising out of:

(1) The transportation of "mobile equipment" by an "auto" owned or operated by or rented or loaned to any insured; or

(2) The use of "mobile equipment" in, or while in practice for, or while being prepared for, any prearranged racing, speed, demolition, or stunting activity.

i. War

"Bodily injury" or "property damage", however caused, arising, directly or indirectly, out of:

(1) War, including undeclared or civil war;

(2) Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or

(3) Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

j. Damage To Property

"Property damage" to:

(1) Property you own, rent, or occupy, including any costs or expenses incurred by you, or any other person, organization or entity, for repair, replacement, enhancement, restoration or maintenance of such property for any reason, including prevention of injury to a person or damage to another's property;

(2) Premises you sell, give away or abandon, if the "property damage" arises out of any part of those premises;

(3) Property loaned to you;

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(4) Personal property in the care, custody or control of the insured;

(5) That particular part of real property on which you or any contractors or subcontractors working directly or indirectly on your behalf are performing operations, if the "property damage" arises out of those operations; or

(6) That particular part of any property that must be restored, repaired or replaced because "your work" was incorrectly performed on it.

Paragraphs **(1), (3)** and **(4)** of this exclusion do not apply to "property damage" (other than damage by fire) to premises, including the contents of such premises, rented to you for a period of seven or fewer consecutive days. A separate limit of insurance applies to Damage To Premises Rented To You as described in Section **III** – Limits Of Insurance.

Paragraph **(2)** of this exclusion does not apply if the premises are "your work" and were never occupied, rented or held for rental by you.

Paragraphs **(3), (4), (5)** and **(6)** of this exclusion do not apply to liability assumed under a sidetrack agreement.

Paragraph **(6)** of this exclusion does not apply to "property damage" included in the "products-completed operations hazard".

k. Damage To Your Product

"Property damage" to "your product" arising out of it or any part of it.

l. Damage To Your Work

"Property damage" to "your work" arising out of it or any part of it and included in the "products-completed operations hazard".

This exclusion does not apply if the damaged work or the work out of which the damage arises was performed on your behalf by a subcontractor.

m. Damage To Impaired Property Or Property Not Physically Injured

"Property damage" to "impaired property" or property that has not been physically injured, arising out of:

(1) A defect, deficiency, inadequacy or dangerous condition in "your product" or "your work"; or

(2) A delay or failure by you or anyone acting on your behalf to perform a contract or agreement in accordance with its terms.

This exclusion does not apply to the loss of use of other property arising out of sudden and accidental physical injury to "your product" or "your work" after it has been put to its intended use.

n. Recall Of Products, Work Or Impaired Property

Damages claimed for any loss, cost or expense incurred by you or others for the loss of use, withdrawal, recall, inspection, repair, replacement, adjustment, removal or disposal of:

(1) "Your product";

(2) "Your work"; or

(3) "Impaired property";

if such product, work, or property is withdrawn or recalled from the market or from use by any person or organization because of a known or suspected defect, deficiency, inadequacy or dangerous condition in it.

o. Personal And Advertising Injury

"Bodily injury" arising out of "personal and advertising injury".

p. Electronic Data

Damages arising out of the loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate electronic data.

However, this exclusion does not apply to liability for damages because of "bodily injury".

As used in this exclusion, electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMs, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.

q. Recording And Distribution Of Material Or Information In Violation Of Law

"Bodily injury" or "property damage" arising directly or indirectly out of any action or omission that violates or is alleged to violate:

(1) The Telephone Consumer Protection Act (TCPA), including any amendment of or addition to such law;

(2) The CAN-SPAM Act of 2003, including any amendment of or addition to such law;

(3) The Fair Credit Reporting Act (FCRA), and any amendment of or addition to such law, including the Fair and Accurate Credit Transactions Act (FACTA); or

(4) Any federal, state or local statute, ordinance or regulation, other than the TCPA, CAN-SPAM Act of 2003 or FCRA and their amendments and additions, that addresses, prohibits, or limits the printing, dissemination, disposal, collecting, recording, sending, transmitting, communicating or distribution of material or information.

Exclusions **c.** through **n.** do not apply to damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner. A separate limit of insurance applies to this coverage as described in Section **III** – Limits Of Insurance.

COVERAGE B – PERSONAL AND ADVERTISING INJURY LIABILITY

1. Insuring Agreement

a. We will pay those sums that the insured becomes legally obligated to pay as damages because of "personal and advertising injury" to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages. However, we will have no duty to defend the insured against any "suit" seeking damages for "personal and advertising injury" to which this insurance does not apply. We may, at our discretion, investigate any offense and settle any claim or "suit" that may result. But:

(1) The amount we will pay for damages is limited as described in Section **III** – Limits Of Insurance; and

(2) Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages **A** or **B** or medical expenses under Coverage **C.**

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments – Coverages **A** and **B.**

b. This insurance applies to "personal and advertising injury" caused by an offense arising out of your business but only if the offense was committed in the "coverage territory" during the policy period.

2. Exclusions

This insurance does not apply to:

a. Knowing Violation Of Rights Of Another

"Personal and advertising injury" caused by or at the direction of the insured with the knowledge that the act would violate the rights of another and would inflict "personal and advertising injury".

b. Material Published With Knowledge Of Falsity

"Personal and advertising injury" arising out of oral or written publication, in any manner, of material, if done by or at the direction of the insured with knowledge of its falsity.

c. Material Published Prior To Policy Period

"Personal and advertising injury" arising out of oral or written publication, in any manner, of material whose first publication took place before the beginning of the policy period.

d. Criminal Acts

"Personal and advertising injury" arising out of a criminal act committed by or at the direction of the insured.

e. Contractual Liability

"Personal and advertising injury" for which the insured has assumed liability in a contract or agreement. This exclusion does not apply to liability for damages that the insured would have in the absence of the contract or agreement.

f. Breach Of Contract

"Personal and advertising injury" arising out of a breach of contract, except an implied contract to use another's advertising idea in your "advertisement".

g. Quality Or Performance Of Goods – Failure To Conform To Statements

"Personal and advertising injury" arising out of the failure of goods, products or services to conform with any statement of quality or performance made in your "advertisement".

h. Wrong Description Of Prices

"Personal and advertising injury" arising out of the wrong description of the price of goods, products or services stated in your "advertisement".

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i. Infringement Of Copyright, Patent, Trademark Or Trade Secret

"Personal and advertising injury" arising out of the infringement of copyright, patent, trademark, trade secret or other intellectual property rights. Under this exclusion, such other intellectual property rights do not include the use of another's advertising idea in your "advertisement".

However, this exclusion does not apply to infringement, in your "advertisement", of copyright, trade dress or slogan.

j. Insureds In Media And Internet Type Businesses

"Personal and advertising injury" committed by an insured whose business is:

(1) Advertising, broadcasting, publishing or telecasting;

(2) Designing or determining content of web sites for others; or

(3) An Internet search, access, content or service provider.

However, this exclusion does not apply to Paragraphs **14.a., b.** and **c.** of "personal and advertising injury" under the Definitions section.

For the purposes of this exclusion, the placing of frames, borders or links, or advertising, for you or others anywhere on the Internet, is not by itself, considered the business of advertising, broadcasting, publishing or telecasting.

k. Electronic Chatrooms Or Bulletin Boards

"Personal and advertising injury" arising out of an electronic chatroom or bulletin board the insured hosts, owns, or over which the insured exercises control.

l. Unauthorized Use Of Another's Name Or Product

"Personal and advertising injury" arising out of the unauthorized use of another's name or product in your e-mail address, domain name or metatag, or any other similar tactics to mislead another's potential customers.

m. Pollution

"Personal and advertising injury" arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants" at any time.

n. Pollution-related

Any loss, cost or expense arising out of any:

(1) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants"; or

(2) Claim or suit by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants".

o. War

"Personal and advertising injury", however caused, arising, directly or indirectly, out of:

(1) War, including undeclared or civil war;

(2) Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or

(3) Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

p. Recording And Distribution Of Material Or Information In Violation Of Law

"Personal and advertising injury" arising directly or indirectly out of any action or omission that violates or is alleged to violate:

(1) The Telephone Consumer Protection Act (TCPA), including any amendment of or addition to such law;

(2) The CAN-SPAM Act of 2003, including any amendment of or addition to such law;

(3) The Fair Credit Reporting Act (FCRA), and any amendment of or addition to such law, including the Fair and Accurate Credit Transactions Act (FACTA); or

(4) Any federal, state or local statute, ordinance or regulation, other than the TCPA, CAN-SPAM Act of 2003 or FCRA and their amendments and additions, that addresses, prohibits, or limits the printing, dissemination, disposal, collecting, recording, sending, transmitting, communicating or distribution of material or information.

COVERAGE C – MEDICAL PAYMENTS

1. Insuring Agreement

a. We will pay medical expenses as described below for "bodily injury" caused by an accident:

(1) On premises you own or rent;

(2) On ways next to premises you own or rent; or

(3) Because of your operations;

provided that:

(a) The accident takes place in the "coverage territory" and during the policy period;

(b) The expenses are incurred and reported to us within one year of the date of the accident; and

(c) The injured person submits to examination, at our expense, by physicians of our choice as often as we reasonably require.

b. We will make these payments regardless of fault. These payments will not exceed the applicable limit of insurance. We will pay reasonable expenses for:

(1) First aid administered at the time of an accident;

(2) Necessary medical, surgical, X-ray and dental services, including prosthetic devices; and

(3) Necessary ambulance, hospital, professional nursing and funeral services.

2. Exclusions

We will not pay expenses for "bodily injury":

a. Any Insured

To any insured, except "volunteer workers".

b. Hired Person

To a person hired to do work for or on behalf of any insured or a tenant of any insured.

c. Injury On Normally Occupied Premises

To a person injured on that part of premises you own or rent that the person normally occupies.

d. Workers' Compensation And Similar Laws

To a person, whether or not an "employee" of any insured, if benefits for the "bodily injury" are payable or must be provided under a workers' compensation or disability benefits law or a similar law.

e. Athletics Activities

To a person injured while practicing, instructing or participating in any physical exercises or games, sports, or athletic contests.

f. Products-Completed Operations Hazard

Included within the "products-completed operations hazard".

g. Coverage A Exclusions

Excluded under Coverage **A.**

SUPPLEMENTARY PAYMENTS – COVERAGES A AND B

1. We will pay, with respect to any claim we investigate or settle, or any "suit" against an insured we defend:

a. All expenses we incur.

b. Up to $250 for cost of bail bonds required because of accidents or traffic law violations arising out of the use of any vehicle to which the Bodily Injury Liability Coverage applies. We do not have to furnish these bonds.

c. The cost of bonds to release attachments, but only for bond amounts within the applicable limit of insurance. We do not have to furnish these bonds.

d. All reasonable expenses incurred by the insured at our request to assist us in the investigation or defense of the claim or "suit", including actual loss of earnings up to $250 a day because of time off from work.

e. All court costs taxed against the insured in the "suit". However, these payments do not include attorneys' fees or attorneys' expenses taxed against the insured.

f. Prejudgment interest awarded against the insured on that part of the judgment we pay. If we make an offer to pay the applicable limit of insurance, we will not pay any prejudgment interest based on that period of time after the offer.

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g. All interest on the full amount of any judgment that accrues after entry of the judgment and before we have paid, offered to pay, or deposited in court the part of the judgment that is within the applicable limit of insurance.

These payments will not reduce the limits of insurance.

2. If we defend an insured against a "suit" and an indemnitee of the insured is also named as a party to the "suit", we will defend that indemnitee if all of the following conditions are met:

a. The "suit" against the indemnitee seeks damages for which the insured has assumed the liability of the indemnitee in a contract or agreement that is an "insured contract";

b. This insurance applies to such liability assumed by the insured;

c. The obligation to defend, or the cost of the defense of, that indemnitee, has also been assumed by the insured in the same "insured contract";

d. The allegations in the "suit" and the information we know about the "occurrence" are such that no conflict appears to exist between the interests of the insured and the interests of the indemnitee;

e. The indemnitee and the insured ask us to conduct and control the defense of that indemnitee against such "suit" and agree that we can assign the same counsel to defend the insured and the indemnitee; and

f. The indemnitee:

(1) Agrees in writing to:

(a) Cooperate with us in the investigation, settlement or defense of the "suit";

(b) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the "suit";

(c) Notify any other insurer whose coverage is available to the indemnitee; and

(d) Cooperate with us with respect to coordinating other applicable insurance available to the indemnitee; and

(2) Provides us with written authorization to:

(a) Obtain records and other information related to the "suit"; and

(b) Conduct and control the defense of the indemnitee in such "suit".

So long as the above conditions are met, attorneys' fees incurred by us in the defense of that indemnitee, necessary litigation expenses incurred by us and necessary litigation expenses incurred by the indemnitee at our request will be paid as Supplementary Payments. Notwithstanding the provisions of Paragraph **2.b.(2)** of Section **I** – Coverage **A** – Bodily Injury And Property Damage Liability, such payments will not be deemed to be damages for "bodily injury" and "property damage" and will not reduce the limits of insurance.

Our obligation to defend an insured's indemnitee and to pay for attorneys' fees and necessary litigation expenses as Supplementary Payments ends when we have used up the applicable limit of insurance in the payment of judgments or settlements or the conditions set forth above, or the terms of the agreement described in Paragraph **f.** above, are no longer met.

SECTION II – WHO IS AN INSURED

1. If you are designated in the Declarations as:

a. An individual, you and your spouse are insureds, but only with respect to the conduct of a business of which you are the sole owner.

b. A partnership or joint venture, you are an insured. Your members, your partners, and their spouses are also insureds, but only with respect to the conduct of your business.

c. A limited liability company, you are an insured. Your members are also insureds, but only with respect to the conduct of your business. Your managers are insureds, but only with respect to their duties as your managers.

d. An organization other than a partnership, joint venture or limited liability company, you are an insured. Your "executive officers" and directors are insureds, but only with respect to their duties as your officers or directors. Your stockholders are also insureds, but only with respect to their liability as stockholders.

e. A trust, you are an insured. Your trustees are also insureds, but only with respect to their duties as trustees.

2. Each of the following is also an insured:

a. Your "volunteer workers" only while performing duties related to the conduct of your business, or your "employees", other than either your "executive officers" (if you are an organization other than a partnership, joint venture or limited liability company) or your managers (if you are a limited liability company), but only for acts within the scope of their employment by you or while performing duties related to the conduct of your business. However, none of these "employees" or "volunteer workers" are insureds for:

(1) "Bodily injury" or "personal and advertising injury":

(a) To you, to your partners or members (if you are a partnership or joint venture), to your members (if you are a limited liability company), to a co-"employee" while in the course of his or her employment or performing duties related to the conduct of your business, or to your other "volunteer workers" while performing duties related to the conduct of your business;

(b) To the spouse, child, parent, brother or sister of that co-"employee" or "volunteer worker" as a consequence of Paragraph **(1)(a)** above;

(c) For which there is any obligation to share damages with or repay someone else who must pay damages because of the injury described in Paragraph **(1)(a)** or **(b)** above; or

(d) Arising out of his or her providing or failing to provide professional health care services.

(2) "Property damage" to property:

(a) Owned, occupied or used by;

(b) Rented to, in the care, custody or control of, or over which physical control is being exercised for any purpose by;

you, any of your "employees", "volunteer workers", any partner or member (if you are a partnership or joint venture), or any member (if you are a limited liability company).

b. Any person (other than your "employee" or "volunteer worker"), or any organization while acting as your real estate manager.

c. Any person or organization having proper temporary custody of your property if you die, but only:

(1) With respect to liability arising out of the maintenance or use of that property; and

(2) Until your legal representative has been appointed.

d. Your legal representative if you die, but only with respect to duties as such. That representative will have all your rights and duties under this Coverage Part.

3. Any organization you newly acquire or form, other than a partnership, joint venture or limited liability company, and over which you maintain ownership or majority interest, will qualify as a Named Insured if there is no other similar insurance available to that organization. However:

a. Coverage under this provision is afforded only until the 90th day after you acquire or form the organization or the end of the policy period, whichever is earlier;

b. Coverage **A** does not apply to "bodily injury" or "property damage" that occurred before you acquired or formed the organization; and

c. Coverage **B** does not apply to "personal and advertising injury" arising out of an offense committed before you acquired or formed the organization.

No person or organization is an insured with respect to the conduct of any current or past partnership, joint venture or limited liability company that is not shown as a Named Insured in the Declarations.

SECTION III – LIMITS OF INSURANCE

1. The Limits of Insurance shown in the Declarations and the rules below fix the most we will pay regardless of the number of:

a. Insureds;

b. Claims made or "suits" brought; or

c. Persons or organizations making claims or bringing "suits".

2. The General Aggregate Limit is the most we will pay for the sum of:

a. Medical expenses under Coverage **C;**

b. Damages under Coverage **A,** except damages because of "bodily injury" or "property damage" included in the "products-completed operations hazard"; and

c. Damages under Coverage **B.**

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3. The Products-Completed Operations Aggregate Limit is the most we will pay under Coverage **A** for damages because of "bodily injury" and "property damage" included in the "products-completed operations hazard".

4. Subject to Paragraph **2.** above, the Personal And Advertising Injury Limit is the most we will pay under Coverage **B** for the sum of all damages because of all "personal and advertising injury" sustained by any one person or organization.

5. Subject to Paragraph **2.** or **3.** above, whichever applies, the Each Occurrence Limit is the most we will pay for the sum of:

a. Damages under Coverage **A;** and

b. Medical expenses under Coverage **C**

because of all "bodily injury" and "property damage" arising out of any one "occurrence".

6. Subject to Paragraph **5.** above, the Damage To Premises Rented To You Limit is the most we will pay under Coverage **A** for damages because of "property damage" to any one premises, while rented to you, or in the case of damage by fire, while rented to you or temporarily occupied by you with permission of the owner.

7. Subject to Paragraph **5.** above, the Medical Expense Limit is the most we will pay under Coverage **C** for all medical expenses because of "bodily injury" sustained by any one person.

The Limits of Insurance of this Coverage Part apply separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.

SECTION IV – COMMERCIAL GENERAL LIABILITY CONDITIONS

1. Bankruptcy

Bankruptcy or insolvency of the insured or of the insured's estate will not relieve us of our obligations under this Coverage Part.

2. Duties In The Event Of Occurrence, Offense, Claim Or Suit

a. You must see to it that we are notified as soon as practicable of an "occurrence" or an offense which may result in a claim. To the extent possible, notice should include:

(1) How, when and where the "occurrence" or offense took place;

(2) The names and addresses of any injured persons and witnesses; and

(3) The nature and location of any injury or damage arising out of the "occurrence" or offense.

b. If a claim is made or "suit" is brought against any insured, you must:

(1) Immediately record the specifics of the claim or "suit" and the date received; and

(2) Notify us as soon as practicable.

You must see to it that we receive written notice of the claim or "suit" as soon as practicable.

c. You and any other involved insured must:

(1) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the claim or "suit";

(2) Authorize us to obtain records and other information;

(3) Cooperate with us in the investigation or settlement of the claim or defense against the "suit"; and

(4) Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the insured because of injury or damage to which this insurance may also apply.

d. No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense, other than for first aid, without our consent.

3. Legal Action Against Us

No person or organization has a right under this Coverage Part:

a. To join us as a party or otherwise bring us into a "suit" asking for damages from an insured; or

b. To sue us on this Coverage Part unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured; but we will not be liable for damages that are not payable under the terms of this Coverage Part or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

4. Other Insurance

If other valid and collectible insurance is available to the insured for a loss we cover under Coverages **A** or **B** of this Coverage Part, our obligations are limited as follows:

a. Primary Insurance

This insurance is primary except when Paragraph **b.** below applies. If this insurance is primary, our obligations are not affected unless any of the other insurance is also primary. Then, we will share with all that other insurance by the method described in Paragraph **c.** below.

b. Excess Insurance

(1) This insurance is excess over:

(a) Any of the other insurance, whether primary, excess, contingent or on any other basis:

(i) That is Fire, Extended Coverage, Builder's Risk, Installation Risk or similar coverage for "your work";

(ii) That is Fire insurance for premises rented to you or temporarily occupied by you with permission of the owner;

(iii) That is insurance purchased by you to cover your liability as a tenant for "property damage" to premises rented to you or temporarily occupied by you with permission of the owner; or

(iv) If the loss arises out of the maintenance or use of aircraft, "autos" or watercraft to the extent not subject to Exclusion **g.** of Section **I** – Coverage **A** – Bodily Injury And Property Damage Liability.

(b) Any other primary insurance available to you covering liability for damages arising out of the premises or operations, or the products and completed operations, for which you have been added as an additional insured.

(2) When this insurance is excess, we will have no duty under Coverages **A** or **B** to defend the insured against any "suit" if any other insurer has a duty to defend the insured against that "suit". If no other insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all those other insurers.

(3) When this insurance is excess over other insurance, we will pay only our share of the amount of the loss, if any, that exceeds the sum of:

(a) The total amount that all such other insurance would pay for the loss in the absence of this insurance; and

(b) The total of all deductible and self-insured amounts under all that other insurance.

(4) We will share the remaining loss, if any, with any other insurance that is not described in this Excess Insurance provision and was not bought specifically to apply in excess of the Limits of Insurance shown in the Declarations of this Coverage Part.

c. Method Of Sharing

If all of the other insurance permits contribution by equal shares, we will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable limit of insurance or none of the loss remains, whichever comes first.

If any of the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limit of insurance to the total applicable limits of insurance of all insurers.

5. Premium Audit

a. We will compute all premiums for this Coverage Part in accordance with our rules and rates.

b. Premium shown in this Coverage Part as advance premium is a deposit premium only. At the close of each audit period we will compute the earned premium for that period and send notice to the first Named Insured. The due date for audit and retrospective premiums is the date shown as the due date on the bill. If the sum of the advance and audit premiums paid for the policy period is greater than the earned premium, we will return the excess to the first Named Insured.

c. The first Named Insured must keep records of the information we need for premium computation, and send us copies at such times as we may request.

6. Representations

By accepting this policy, you agree:

a. The statements in the Declarations are accurate and complete;

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b. Those statements are based upon representations you made to us; and

c. We have issued this policy in reliance upon your representations.

7. Separation Of Insureds

Except with respect to the Limits of Insurance, and any rights or duties specifically assigned in this Coverage Part to the first Named Insured, this insurance applies:

a. As if each Named Insured were the only Named Insured; and

b. Separately to each insured against whom claim is made or "suit" is brought.

8. Transfer Of Rights Of Recovery Against Others To Us

If the insured has rights to recover all or part of any payment we have made under this Coverage Part, those rights are transferred to us. The insured must do nothing after loss to impair them. At our request, the insured will bring "suit" or transfer those rights to us and help us enforce them.

9. When We Do Not Renew

If we decide not to renew this Coverage Part, we will mail or deliver to the first Named Insured shown in the Declarations written notice of the nonrenewal not less than 30 days before the expiration date.

If notice is mailed, proof of mailing will be sufficient proof of notice.

SECTION V – DEFINITIONS

1. "Advertisement" means a notice that is broadcast or published to the general public or specific market segments about your goods, products or services for the purpose of attracting customers or supporters. For the purposes of this definition:

a. Notices that are published include material placed on the Internet or on similar electronic means of communication; and

b. Regarding web sites, only that part of a web site that is about your goods, products or services for the purposes of attracting customers or supporters is considered an advertisement.

2. "Auto" means:

a. A land motor vehicle, trailer or semitrailer designed for travel on public roads, including any attached machinery or equipment; or

b. Any other land vehicle that is subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged.

However, "auto" does not include "mobile equipment".

3. "Bodily injury" means bodily injury, sickness or disease sustained by a person, including death resulting from any of these at any time.

4. "Coverage territory" means:

a. The United States of America (including its territories and possessions), Puerto Rico and Canada;

b. International waters or airspace, but only if the injury or damage occurs in the course of travel or transportation between any places included in Paragraph **a.** above; or

c. All other parts of the world if the injury or damage arises out of:

(1) Goods or products made or sold by you in the territory described in Paragraph **a.** above;

(2) The activities of a person whose home is in the territory described in Paragraph **a.** above, but is away for a short time on your business; or

(3) "Personal and advertising injury" offenses that take place through the Internet or similar electronic means of communication;

provided the insured's responsibility to pay damages is determined in a "suit" on the merits, in the territory described in Paragraph **a.** above or in a settlement we agree to.

5. "Employee" includes a "leased worker". "Employee" does not include a "temporary worker".

6. "Executive officer" means a person holding any of the officer positions created by your charter, constitution, bylaws or any other similar governing document.

7. "Hostile fire" means one which becomes uncontrollable or breaks out from where it was intended to be.

8. "Impaired property" means tangible property, other than "your product" or "your work", that cannot be used or is less useful because:

a. It incorporates "your product" or "your work" that is known or thought to be defective, deficient, inadequate or dangerous; or

b. You have failed to fulfill the terms of a contract or agreement;

if such property can be restored to use by the repair, replacement, adjustment or removal of "your product" or "your work" or your fulfilling the terms of the contract or agreement.

9. "Insured contract" means:

a. A contract for a lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner is not an "insured contract";

b. A sidetrack agreement;

c. Any easement or license agreement, except in connection with construction or demolition operations on or within 50 feet of a railroad;

d. An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;

e. An elevator maintenance agreement;

f. That part of any other contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the tort liability of another party to pay for "bodily injury" or "property damage" to a third person or organization. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement.

Paragraph **f.** does not include that part of any contract or agreement:

(1) That indemnifies a railroad for "bodily injury" or "property damage" arising out of construction or demolition operations, within 50 feet of any railroad property and affecting any railroad bridge or trestle, tracks, road-beds, tunnel, underpass or crossing;

(2) That indemnifies an architect, engineer or surveyor for injury or damage arising out of:

(a) Preparing, approving, or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or

(b) Giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage; or

(3) Under which the insured, if an architect, engineer or surveyor, assumes liability for an injury or damage arising out of the insured's rendering or failure to render professional services, including those listed in **(2)** above and supervisory, inspection, architectural or engineering activities.

10. "Leased worker" means a person leased to you by a labor leasing firm under an agreement between you and the labor leasing firm, to perform duties related to the conduct of your business. "Leased worker" does not include a "temporary worker".

11. "Loading or unloading" means the handling of property:

a. After it is moved from the place where it is accepted for movement into or onto an aircraft, watercraft or "auto";

b. While it is in or on an aircraft, watercraft or "auto"; or

c. While it is being moved from an aircraft, watercraft or "auto" to the place where it is finally delivered;

but "loading or unloading" does not include the movement of property by means of a mechanical device, other than a hand truck, that is not attached to the aircraft, watercraft or "auto".

12. "Mobile equipment" means any of the following types of land vehicles, including any attached machinery or equipment:

a. Bulldozers, farm machinery, forklifts and other vehicles designed for use principally off public roads;

b. Vehicles maintained for use solely on or next to premises you own or rent;

c. Vehicles that travel on crawler treads;

d. Vehicles, whether self-propelled or not, maintained primarily to provide mobility to permanently mounted:

(1) Power cranes, shovels, loaders, diggers or drills; or

(2) Road construction or resurfacing equipment such as graders, scrapers or rollers;

e. Vehicles not described in Paragraph **a., b., c.** or **d.** above that are not self-propelled and are maintained primarily to provide mobility to permanently attached equipment of the following types:

(1) Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment; or

(2) Cherry pickers and similar devices used to raise or lower workers;

f. Vehicles not described in Paragraph **a., b., c.** or **d.** above maintained primarily for purposes other than the transportation of persons or cargo.

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However, self-propelled vehicles with the following types of permanently attached equipment are not "mobile equipment" but will be considered "autos":

(1) Equipment designed primarily for:

(a) Snow removal;

(b) Road maintenance, but not construction or resurfacing; or

(c) Street cleaning;

(2) Cherry pickers and similar devices mounted on automobile or truck chassis and used to raise or lower workers; and

(3) Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment.

However, "mobile equipment" does not include any land vehicles that are subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged. Land vehicles subject to a compulsory or financial responsibility law or other motor vehicle insurance law are considered "autos".

13. "Occurrence" means an accident, including continuous or repeated exposure to substantially the same general harmful conditions.

14. "Personal and advertising injury" means injury, including consequential "bodily injury", arising out of one or more of the following offenses:

a. False arrest, detention or imprisonment;

b. Malicious prosecution;

c. The wrongful eviction from, wrongful entry into, or invasion of the right of private occupancy of a room, dwelling or premises that a person occupies, committed by or on behalf of its owner, landlord or lessor;

d. Oral or written publication, in any manner, of material that slanders or libels a person or organization or disparages a person's or organization's goods, products or services;

e. Oral or written publication, in any manner, of material that violates a person's right of privacy;

f. The use of another's advertising idea in your "advertisement"; or

g. Infringing upon another's copyright, trade dress or slogan in your "advertisement".

15. "Pollutants" mean any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

16. "Products-completed operations hazard":

a. Includes all "bodily injury" and "property damage" occurring away from premises you own or rent and arising out of "your product" or "your work" except:

(1) Products that are still in your physical possession; or

(2) Work that has not yet been completed or abandoned. However, "your work" will be deemed completed at the earliest of the following times:

(a) When all of the work called for in your contract has been completed.

(b) When all of the work to be done at the job site has been completed if your contract calls for work at more than one job site.

(c) When that part of the work done at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project.

Work that may need service, maintenance, correction, repair or replacement, but which is otherwise complete, will be treated as completed.

b. Does not include "bodily injury" or "property damage" arising out of:

(1) The transportation of property, unless the injury or damage arises out of a condition in or on a vehicle not owned or operated by you, and that condition was created by the "loading or unloading" of that vehicle by any insured;

(2) The existence of tools, uninstalled equipment or abandoned or unused materials; or

(3) Products or operations for which the classification, listed in the Declarations or in a policy Schedule, states that products-completed operations are subject to the General Aggregate Limit.

17. "Property damage" means:

a. Physical injury to tangible property, including all resulting loss of use of that property. All such loss of use shall be deemed to occur at the time of the physical injury that caused it; or

b. Loss of use of tangible property that is not physically injured. All such loss of use shall be deemed to occur at the time of the "occurrence" that caused it.

For the purposes of this insurance, electronic data is not tangible property.

As used in this definition, electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMs, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.

18. "Suit" means a civil proceeding in which damages because of "bodily injury", "property damage" or "personal and advertising injury" to which this insurance applies are alleged. "Suit" includes:

a. An arbitration proceeding in which such damages are claimed and to which the insured must submit or does submit with our consent; or

b. Any other alternative dispute resolution proceeding in which such damages are claimed and to which the insured submits with our consent.

19. "Temporary worker" means a person who is furnished to you to substitute for a permanent "employee" on leave or to meet seasonal or short-term workload conditions.

20. "Volunteer worker" means a person who is not your "employee", and who donates his or her work and acts at the direction of and within the scope of duties determined by you, and is not paid a fee, salary or other compensation by you or anyone else for their work performed for you.

21. "Your product":

a. Means:

(1) Any goods or products, other than real property, manufactured, sold, handled, distributed or disposed of by:

(a) You;

(b) Others trading under your name; or

(c) A person or organization whose business or assets you have acquired; and

(2) Containers (other than vehicles), materials, parts or equipment furnished in connection with such goods or products.

b. Includes:

(1) Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your product"; and

(2) The providing of or failure to provide warnings or instructions.

c. Does not include vending machines or other property rented to or located for the use of others but not sold.

22. "Your work":

a. Means:

(1) Work or operations performed by you or on your behalf; and

(2) Materials, parts or equipment furnished in connection with such work or operations.

b. Includes:

(1) Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your work"; and

(2) The providing of or failure to provide warnings or instructions.

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ENDORSEMENT NO. _____

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

LEAD CONTAMINATION EXCLUSION

This endorsement modifies insurance provided under:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

This endorsement excludes “occurrences” at or from any premises, site or location which is or was at any time owned or occupied by, or rented or loaned to, any insured; or from the operations of the insured, which result in:

a. “Bodily injury” arising out of the ingestion, inhalation or absorption of lead in any form;

b. “Property Damage” arising from any form of lead;

c. “Personal Injury” arising from any form of lead;

d. “Advertising Injury” arising from any form of lead;

e. **Medical Payments** arising from any form of lead;

f. Any loss, cost or expense arising out of any request, demand or order that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of lead; or

g. Any loss, cost or expense arising out of any claim or “suit” by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of lead.

AUTHORIZED REPRESENTATIVE DATE

SCOTTSDALE INSURANCE COMPANY®

ENDORSEMENT NO. _____

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ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

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UNITED STATES LONGSHORE & HARBOR WORKERS' COMPENSATION ACT EXCLUSION AND JONES EXCLUSION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

The following exclusion is added to **2. Exclusions** of **SECTION I—COVERAGES:**

This insurance does not apply to:

Any obligation arising out of the Longshore and Harbor Workers' Compensation Act, the Jones Act, other maritime law, or any changes or amendments thereto. However, this exclusion does not apply to liability for damages assumed in a contract or agreement that is an "insured contract."

All other terms and conditions of this Policy remain unchanged.

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ASBESTOS EXCLUSION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

The following exclusion is added to paragraph **2., Exclusions** of **SECTION I—COVERAGE A—BODILY INJURY AND PROPERTY DAMAGE LIABILITY:**

Asbestos:

This insurance does not apply to “bodily injury” or “property damage” caused by, arising out of or in any way related to asbestos, asbestos products, asbestos fibers, or asbestos dust.

This exclusion shall apply whether “bodily injury” or “property damage” is actual or alleged.

This exclusion shall apply regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the associated “bodily injury” or “property damage”.

All other terms and conditions of this Policy remain unchanged.

AUTHORIZED REPRESENTATIVE DATE

SCOTTSDALE INSURANCE COMPANY®

ENDORSEMENT NO. _____

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
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AIRCRAFT PRODUCTS AND GROUNDING EXCLUSION

This endorsement modifies the insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE FORM

A. This insurance does not apply to "bodily injury," "property damage," or "personal and advertising injury" included in the "products-completed operations hazard," and relating to, resulting from or arising out of "aircraft products" upon which you have performed "your work," or which were designed, manufactured, sold, handled, distributed, or disposed by you, or by another trading under your name in whole or in part, when such "aircraft products" are used in or on, or attached to any aircraft or missile or any component part or sub-assembly thereof, or in connection with the use of aircraft.

"Aircraft products" means:

1. Aircraft (including but not limited to drones, missiles, spacecrafts, or satellites and any ground support, maintenance or control equipment used therewith or any component part or sub-assembly thereof);

2. Any article furnished by an insured and installed in aircraft or used in connection with aircraft or for space parts for aircraft;

3. Any fuel, additive, chemical, lubricant, solution, supplement, or similarly related product furnished by an insured used in aircraft or in connection with aircraft;

4. Ground handling tools and equipment; or

5. Training aids, instruction manuals, blueprints, maps and guides, engineering or other data, engineering or other advice and services and labor relating to such aircraft or articles described above.

B. This insurance does not apply to any damage of any kind whatsoever which arises out of "grounding liability." "Grounding liability" means liability for the withdrawal or grounding of aircraft from flight operations, whether or not owned or operated by you, in the interests of safety, or for any other reason, whether or not such withdrawal or grounding was ordered by a government agency.

All other terms and conditions of this Policy remain unchanged.

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BREACH OF CONTRACT EXCLUSION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

The following exclusion is added to paragraph **2., Exclusions** of **SECTION I—COVERAGE A—BODILY INJURY AND PROPERTY DAMAGE LIABILITY:**

Breach of Contract

This insurance does not apply to “claims” or “suits” for “bodily injury” or “property damage” arising out of a breach of oral or written contract or warranty, breach of oral or written implied.

All other terms and conditions of this Policy remain unchanged.

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WATERCRAFT AMENDATORY

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

A. Paragraph **g.(2)** of **Aircraft, Auto Or Watercraft** of **2. Exclusions, SECTION I—COVERAGES** is deleted in its entirety and replaced with the following:

(2) A watercraft you do not own that is not being used to carry persons or property for a charge;

All other terms and conditions of this Policy remain unchanged.

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DESIGNATED CONSTRUCTION PROJECT(S) GENERAL AGGREGATE LIMIT

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

SCHEDULE

Designated Construction Project(s):
All projects occurring away from premises owned or rented by you. We will pay no more than $5,000,000 for all claims or “suits” under this Policy that are subject to the General Aggregate
Information required to complete this Schedule, if not shown above, will be shown in the Declarations.

A. For all sums which the insured becomes legally obligated to pay as damages caused by "occurrences" under Section **I** – Coverage **A,** and for all medical expenses caused by accidents under Section **I** – Coverage **C,** which can be attributed only to ongoing operations at a single designated construction project shown in the Schedule above:

1. A separate Designated Construction Project General Aggregate Limit applies to each designated construction project, and that limit is equal to the amount of the General Aggregate Limit shown in the Declarations.

2. The Designated Construction Project General Aggregate Limit is the most we will pay for the sum of all damages under Coverage **A,** except damages because of "bodily injury" or "property damage" included in the "products-completed operations hazard", and for medical expenses under Coverage **C** regardless of the number of:

a. Insureds;

b. Claims made or "suits" brought; or

c. Persons or organizations making claims or bringing "suits".

3. Any payments made under Coverage **A** for damages or under Coverage **C** for medical expenses shall reduce the Designated Construction Project General Aggregate Limit for that designated construction project. Such payments shall not reduce the General Aggregate Limit shown in the Declarations nor shall they reduce any other Designated Construction Project General Aggregate Limit for any other designated construction project shown in the Schedule above.

4. The limits shown in the Declarations for Each Occurrence, Damage To Premises Rented To You and Medical Expense continue to apply. However, instead of being subject to the General Aggregate Limit shown in the Declarations, such limits will be subject to the applicable Designated Construction Project General Aggregate Limit.

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B. For all sums which the insured becomes legally obligated to pay as damages caused by "occurrences" under Section **I** – Coverage **A,** and for all medical expenses caused by accidents under Section **I** – Coverage **C,** which cannot be attributed only to ongoing operations at a single designated construction project shown in the Schedule above:

1. Any payments made under Coverage **A** for damages or under Coverage **C** for medical expenses shall reduce the amount available under the General Aggregate Limit or the Products-completed Operations Aggregate Limit, whichever is applicable; and

2. Such payments shall not reduce any Designated Construction Project General Aggregate Limit.

C. When coverage for liability arising out of the "products-completed operations hazard" is provided, any payments for damages because of "bodily injury" or "property damage" included in the "products-completed operations hazard" will reduce the Products-completed Operations Aggregate Limit, and not reduce the General Aggregate Limit nor the Designated Construction Project General Aggregate Limit.

D. If the applicable designated construction project has been abandoned, delayed, or abandoned and then restarted, or if the authorized contracting parties deviate from plans, blueprints, designs, specifications or timetables, the project will still be deemed to be the same construction project.

E. The provisions of Section **III** – Limits Of Insurance not otherwise modified by this endorsement shall continue to apply as stipulated.

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EMPLOYMENT-RELATED PRACTICES EXCLUSION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

A. The following exclusion is added to Paragraph **2., Exclusions** of Section **I – Coverage A – Bodily Injury And Property Damage Liability:**

This insurance does not apply to:

"Bodily injury" to:

(1) A person arising out of any:

(a) Refusal to employ that person;

(b) Termination of that person's employment; or

(c) Employment-related practices, policies, acts or omissions, such as coercion, demotion, evaluation, reassignment, discipline, defamation, harassment, humiliation, discrimination or malicious prosecution directed at that person; or

(2) The spouse, child, parent, brother or sister of that person as a consequence of "bodily injury" to that person at whom any of the employment-related practices described in Paragraphs **(a), (b),** or **(c)** above is directed.

This exclusion applies:

(1) Whether the injury-causing event described in Paragraphs **(a), (b)** or **(c)** above occurs before employment, during employment or after employment of that person;

(2) Whether the insured may be liable as an employer or in any other capacity; and

(3) To any obligation to share damages with or repay someone else who must pay damages because of the injury.

B. The following exclusion is added to Paragraph **2., Exclusions** of Section **I – Coverage B – Personal And Advertising Injury Liability:**

This insurance does not apply to:

"Personal and advertising injury" to:

(1) A person arising out of any:

(a) Refusal to employ that person;

(b) Termination of that person's employment; or

(c) Employment-related practices, policies, acts or omissions, such as coercion, demotion, evaluation, reassignment, discipline, defamation, harassment, humiliation, discrimination or malicious prosecution directed at that person; or

(2) The spouse, child, parent, brother or sister of that person as a consequence of "personal and advertising injury" to that person at whom any of the employment-related practices described in Paragraphs **(a), (b),** or **(c)** above is directed.

This exclusion applies:

(1) Whether the injury-causing event described in Paragraphs **(a), (b)** or **(c)** above occurs before employment, during employment or after employment of that person;

(2) Whether the insured may be liable as an employer or in any other capacity; and

(3) To any obligation to share damages with or repay someone else who must pay damages because of the injury.

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EXCLUSION – ENGINEERS, ARCHITECTS OR SURVEYORS PROFESSIONAL LIABILITY

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

The following exclusion is added to Paragraph **2. Exclusions** of **Section I – Coverage A – Bodily Injury And Property Damage Liability** and Paragraph **2. Exclusions** of **Section I – Coverage B – Personal And Advertising Injury Liability:**

This insurance does not apply to "bodily injury", "property damage" or "personal and advertising injury" arising out of the rendering of or failure to render any professional services by you or any engineer, architect or surveyor who is either employed by you or performing work on your behalf in such capacity.

Professional services include:

1. The preparing, approving, or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; and

2. Supervisory, inspection, architectural or engineering activities.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the "occurrence" which caused the "bodily injury" or "property damage", or the offense which caused the "personal and advertising injury", involved the rendering of or failure to render any professional services by you or any engineer, architect or surveyor who is either employed by you or performing work on your behalf in such capacity.

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EXCLUSION – ACCESS OR DISCLOSURE OF CONFIDENTIAL OR PERSONAL MATERIAL OR INFORMATION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

A. The following is added to Paragraph **2. Exclusions** of **Section I – Coverage A – Bodily Injury And Property Damage Liability:**

2. Exclusions

This insurance does not apply to:

Access Or Disclosure Of Confidential Or Personal Material Or Information

"Bodily injury" or "property damage" arising out of any access to or disclosure of any person's or organization's confidential or personal material or information, including:

a. Patents, trade secrets, processing methods, customer lists;

b. Financial information, credit card information;

c. Health information, biometric information; or

d. Any other type of nonpublic material or information.

This exclusion applies even if damages are claimed for notification costs, credit or identity monitoring expenses, forensic expenses, public relations expenses, data restoration expenses, extortion expenses or any other loss, cost or expense incurred by you or others arising out of any access to or disclosure of any person's or organization's confidential or personal material or information.

B. The following is added to Paragraph **2. Exclusions** of **Section I – Coverage B – Personal And Advertising Injury Liability:**

2. Exclusions

This insurance does not apply to:

Access Or Disclosure Of Confidential Or Personal Material Or Information

"Personal and advertising injury" arising out of any access to or disclosure of any person's or organization's confidential or personal material or information, including:

a. Patents, trade secrets, processing methods, customer lists;

b. Financial information, credit card information;

c. Health information, biometric information; or

d. Any other type of nonpublic material or information.

This exclusion applies even if damages are claimed for notification costs, credit or identity monitoring expenses, forensic expenses, public relations expenses, data restoration expenses, extortion expenses or any other loss, cost or expense incurred by you or others arising out of any access to or disclosure of any person's or organization's confidential or personal material or information.

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SILICA OR SILICA-RELATED DUST EXCLUSION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

A. The following exclusion is added to Paragraph **2., Exclusions** of **Section I – Coverage A – Bodily Injury And Property Damage Liability:**

2. Exclusions

This insurance does not apply to:

Silica Or Silica-Related Dust

a. "Bodily injury" arising, in whole or in part, out of the actual, alleged, threatened or suspected inhalation of, or ingestion of, "silica" or "silica-related dust".

b. "Property damage" arising, in whole or in part, out of the actual, alleged, threatened or suspected contact with, exposure to, existence of, or presence of, "silica" or "silica-related dust".

c. Any loss, cost or expense arising, in whole or in part, out of the abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to or assessing the effects of, "silica" or "silica-related dust", by any insured or by any other person or entity.

B. The following exclusion is added to Paragraph **2., Exclusions** of **Section I – Coverage B – Personal And Advertising Injury Liability:**

2. Exclusions

This insurance does not apply to:

Silica Or Silica-Related Dust

a. "Personal and advertising injury" arising, in whole or in part, out of the actual, alleged, threatened or suspected inhalation of, ingestion of, contact with, exposure to, existence of, or presence of, "silica" or "silica-related dust".

b. Any loss, cost or expense arising, in whole or in part, out of the abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to or assessing the effects of, "silica" or "silica-related dust", by any insured or by any other person or entity.

C. The following definitions are added to the **Definitions** Section:

1. "Silica" means silicon dioxide (occurring in crystalline, amorphous and impure forms), silica particles, silica dust or silica compounds.

2. "Silica-related dust" means a mixture or combination of silica and other dust or particles.

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ADDITIONAL INSURED – OWNERS, LESSEES OR CONTRACTORS – SCHEDULED PERSON OR ORGANIZATION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

SCHEDULE

Name of Person or Organization:
Any person or organization where required by written contract, executed prior to the commencement of operations.

(If no entry appears above, information required to complete this endorsement will be shown in the Declarations as applicable to this endorsement.)

A. **Section II – Who Is An Insured** is amended to include as an insured the person or organization shown in the Schedule, but only with respect to liability arising out of your ongoing operations performed for that insured.

B. With respect to the insurance afforded to these additional insureds, the following exclusion is added:

2. Exclusions

This insurance does not apply to "bodily injury" or "property damage" occurring after:

(1) All work, including materials, parts or equipment furnished in connection with such work, on the project (other than service, maintenance or repairs) to be performed by or on behalf of the additional insured(s) at the site of the covered operations has been completed; or

(2) That portion of "your work" out of which the injury or damage arises has been put to its intended use by any person or organization other than another contractor or subcontractor engaged in performing operations for a principal as a part of the same project.

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ADDITIONAL INSURED – OWNERS, LESSEES OR CONTRACTORS – COMPLETED OPERATIONS

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

SCHEDULE

Name of Person or Organization: Any person or organization where required by written contract, executed prior to the commencement of operations.
Location And Description of Completed Operations:
Additional Premium:

(If no entry appears above, information required to complete this endorsement will be shown in the Declarations as applicable to this endorsement.)

Section II – Who Is An Insured is amended to include as an insured the person or organization shown in the Schedule, but only with respect to liability arising out of "your work" at the location designated and described in the schedule of this endorsement performed for that insured and included in the "products-completed operations hazard".

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ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
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HIRED AUTO AND NONOWNED AUTO LIABILITY

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

SCHEDULE

Insurance is provided only with respect to those coverages for which a specific premium charge is shown:

Coverage	Additional Premium
Hired Auto Liability	**$Included**
Nonowned Auto Liability	**$Included**

(If no entry appears above, information required to complete this endorsement will be shown in the Declarations as applicable to this endorsement.)

A. HIRED AUTO LIABILITY

The insurance provided under **COVERAGE A—BODILY INJURY AND PROPERTY DAMAGE LIABILITY (Section I—Coverages)** also applies to "bodily injury" or "property damage" arising out of the maintenance or use of a "hired auto" in the course of your business by you, or your "employees," but only for acts within the scope of their employment or while performing duties related to the conduct of your business.

B. NONOWNED AUTO LIABILITY

The insurance provided under **COVERAGE A—BODILY INJURY AND PROPERTY DAMAGE LIABILITY (Section I—Coverages)** also applies to "bodily injury" or "property damage" arising out of the use of any "nonowned auto" in the course of your business by you, or your "employees," but only for acts within the scope of their employment or while performing duties related to the conduct of your business.

C. With respect to this endorsement, **SECTION I—COVERAGE, COVERAGE A BODILY INJURY AND PROPERTY DAMAGE,** paragraph **2. Exclusions** is amended as follows:

1. The following are deleted in their entirety:

e. Employer's Liability;

g. Aircraft, Auto or Watercraft;

h. Mobile Equipment; and

j. Damage to Property.

2. The following are added:

This insurance does not apply to:

a. "Bodily injury":

(1) To you, to your partners or members (if you are a partnership or joint venture), to your members (if you are a limited liability company), to an "employee" or co-"employee" while in the course of his or her employment or performing duties related to the conduct of your business, or

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to your "volunteer workers" while performing duties related to the conduct of your business.

(2) To your spouse, child, parent, brother or sister, or the spouse, child, parent, brother, or sister of the "employee" co-"employee," "volunteer worker," your partners or members (if you are a partnership or joint venture), or your members (if you are a limited liability company) as a consequence of Paragraph **2.a.(1)** above.

(3) For which there is any obligation to share damages with or repay someone else who must pay damages because of the injury described in Paragraphs **2.a.(1)** or **2.a.(2)** above.

(4) Arising out of the providing or failure to provide professional health care services.

This exclusion applies:

(a) Whether the insured may be liable as an employer or in any other capacity; and

(b) To any obligation to share damages with or repay someone else who must pay damages because of the injury.

b. "Property damage" to property:

(1) Owned, occupied, used or being transported by; or

(2) Rented or loaned to, in the care, custody or control of, or over which physical control is being exercised for any purpose by

you or any of your "employees," co-"employees," "volunteer workers," partners or members (if you are a partnership or joint venture), or members (if you are a limited liability company).

D. With respect to this endorsement, the following are not Insureds under **SECTION II—WHO IS AN INSURED:**

1. Any person engaged in the business of his or her employer with respect to "bodily injury" to any co-"employee" of such person injured in the course of employment;

2. Any partners or members (if you are a partnership or joint venture), members (if you are a limited liability company) or executive officer with respect to any "auto" owned by such partners or members (if you are a partnership or joint venture), members (if you are a limited liability company), executive officer or members of their households;

3. Any person while employed in or otherwise engaged in duties in connection with an "auto business," other than an "auto business" you operate;

4. The owner or lessee (of whom you are a sublessee) of a "hired auto" or the owner of a "nonowned auto" or any agent or "employee" of any such owner or lessee;

5. Any person or organization with respect to the conduct of any current or past partnership, joint venture, or limited liability company that is not shown as a Named Insured in the Declarations.

E. With respect to this endorsement, the following definitions are added to **SECTION V—DEFINITIONS:**

1. "Auto business" means the business or occupation of selling, repairing, servicing, storing or parking "autos."

2. "Hired auto" means any "auto" you lease, hire, rent or borrow. This does not include any "auto" you lease, hire, rent or borrow from any of your "employees," co-"employees," "volunteer workers," partners or members (if you are a partnership or joint venture), members (if you are a limited liability company), or members of their households.

3. "Nonowned auto" means any "auto" you do not own, lease, hire, rent or borrow which is used in connection with your business. However, if you are a partnership or limited liability company a "nonowned auto" does not include any auto owned by any partner or member.

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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EMPLOYEE BENEFITS LIABILITY COVERAGE

THIS ENDORSEMENT PROVIDES CLAIMS-MADE COVERAGE.
PLEASE READ THE ENTIRE ENDORSEMENT CAREFULLY.

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

SCHEDULE

Coverage	Limit Of Insurance	Each Employee Deductible	Premium
Employee Benefits Programs	**$1,000,000 each employee** **$1,000,000 aggregate**	**$5,000**	**$Inc.**
Retroactive Date:	11/15/2025		
Information required to complete this Schedule, if not shown above, will be shown in the Declarations.			

A. The following is added to **Section I – Coverages:**

COVERAGE – EMPLOYEE BENEFITS LIABILITY

1. Insuring Agreement

a. We will pay those sums that the insured becomes legally obligated to pay as damages because of any act, error or omission, of the insured, or of any other person for whose acts the insured is legally liable, to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages. However, we will have no duty to defend the insured against any "suit" seeking damages to which this insurance does not apply. We may, at our discretion, investigate any report of an act, error or omission and settle any "claim" or "suit" that may result. But:

(1) The amount we will pay for damages is limited as described in Paragraph **D.** (Section **III** – Limits Of Insurance); and

(2) Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments.

b. This insurance applies to damages only if:

(1) The act, error or omission, is negligently committed in the "administration" of your "employee benefit program";

(2) The act, error or omission, did not take place before the Retroactive Date, if any, shown in the Schedule nor after the end of the policy period; and

(3) A "claim" for damages, because of an act, error or omission, is first made against any insured, in accordance with Paragraph **c.** below, during the policy period or an Extended Reporting Period we provide under Paragraph **F.** of this endorsement.

c. A "claim" seeking damages will be deemed to have been made at the earlier of the following times:

(1) When notice of such "claim" is received and recorded by any insured or by us, whichever comes first; or

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(2) When we make settlement in accordance with Paragraph **a.** above.

A "claim" received and recorded by the insured within 60 days after the end of the policy period will be considered to have been received within the policy period, if no subsequent policy is available to cover the claim.

d. All "claims" for damages made by an "employee" because of any act, error or omission, or a series of related acts, errors or omissions, including damages claimed by such "employee's" dependents and beneficiaries, will be deemed to have been made at the time the first of those "claims" is made against any insured.

2. Exclusions

This insurance does not apply to:

a. Dishonest, Fraudulent, Criminal Or Malicious Act

Damages arising out of any intentional, dishonest, fraudulent, criminal or malicious act, error or omission, committed by any insured, including the willful or reckless violation of any statute.

b. Bodily Injury, Property Damage, Or Personal And Advertising Injury

"Bodily injury", "property damage" or "personal and advertising injury".

c. Failure To Perform A Contract

Damages arising out of failure of performance of contract by any insurer.

d. Insufficiency Of Funds

Damages arising out of an insufficiency of funds to meet any obligations under any plan included in the "employee benefit program".

e. Inadequacy Of Performance Of Investment/Advice Given With Respect To Participation

Any "claim" based upon:

(1) Failure of any investment to perform;

(2) Errors in providing information on past performance of investment vehicles; or

(3) Advice given to any person with respect to that person's decision to participate or not to participate in any plan included in the "employee benefit program".

f. Workers' Compensation And Similar Laws

Any "claim" arising out of your failure to comply with the mandatory provisions of any workers' compensation, unemployment compensation insurance, social security or disability benefits law or any similar law.

g. ERISA

Damages for which any insured is liable because of liability imposed on a fiduciary by the Employee Retirement Income Security Act of 1974, as now or hereafter amended, or by any similar federal, state or local laws.

h. Available Benefits

Any "claim" for benefits to the extent that such benefits are available, with reasonable effort and cooperation of the insured, from the applicable funds accrued or other collectible insurance.

i. Taxes, Fines Or Penalties

Taxes, fines or penalties, including those imposed under the Internal Revenue Code or any similar state or local law.

j. Employment-Related Practices

Damages arising out of wrongful termination of employment, discrimination, or other employment-related practices.

B. For the purposes of the coverage provided by this endorsement:

1. All references to Supplementary Payments – Coverages **A** and **B** are replaced by Supplementary Payments – Coverages **A, B** and **Employee Benefits Liability.**

2. Paragraphs **1.b.** and **2.** of the Supplementary Payments provision do not apply.

C. For the purposes of the coverage provided by this endorsement, Paragraphs **2.** and **3.** of **Section II – Who Is An Insured** are replaced by the following:

2. Each of the following is also an insured:

a. Each of your "employees" who is or was authorized to administer your "employee benefit program".

b. Any persons, organizations or "employees" having proper temporary authorization to administer your "employee benefit program" if you die, but only until your legal representative is appointed.

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c. Your legal representative if you die, but only with respect to duties as such. That representative will have all your rights and duties under this Endorsement.

3. Any organization you newly acquire or form, other than a partnership, joint venture or limited liability company, and over which you maintain ownership or majority interest, will qualify as a Named Insured if no other similar insurance applies to that organization. However:

a. Coverage under this provision is afforded only until the 90th day after you acquire or form the organization or the end of the policy period, whichever is earlier.

b. Coverage under this provision does not apply to any act, error or omission that was committed before you acquired or formed the organization.

D. For the purposes of the coverage provided by this endorsement, **Section III – Limits Of Insurance** is replaced by the following:

1. Limits Of Insurance

a. The Limits of Insurance shown in the Schedule and the rules below fix the most we will pay regardless of the number of:

(1) Insureds;

(2) "Claims" made or "suits" brought;

(3) Persons or organizations making "claims" or bringing "suits";

(4) Acts, errors or omissions; or

(5) Benefits included in your "employee benefit program".

b. The Aggregate Limit is the most we will pay for all damages because of acts, errors or omissions negligently committed in the "administration" of your "employee benefit program".

c. Subject to the Aggregate Limit, the Each Employee Limit is the most we will pay for all damages sustained by any one "employee", including damages sustained by such "employee's" dependents and beneficiaries, as a result of:

(1) An act, error or omission; or

(2) A series of related acts, errors or omissions

negligently committed in the "administration" of your "employee benefit program".

However, the amount paid under this endorsement shall not exceed, and will be subject to, the limits and restrictions that apply to the payment of benefits in any plan included in the "employee benefit program".

The Limits of Insurance of this endorsement apply separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations of the policy to which this endorsement is attached, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits Of Insurance.

2. Deductible

a. Our obligation to pay damages on behalf of the insured applies only to the amount of damages in excess of the deductible amount stated in the Schedule as applicable to Each Employee. The limits of insurance shall not be reduced by the amount of this deductible.

b. The deductible amount stated in the Schedule applies to all damages sustained by any one "employee", including such "employee's" dependents and beneficiaries, because of all acts, errors or omissions to which this insurance applies.

c. The terms of this insurance, including those with respect to:

(1) Our right and duty to defend any "suits" seeking those damages; and

(2) Your duties, and the duties of any other involved insured, in the event of an act, error or omission, or "claim"

apply irrespective of the application of the deductible amount.

d. We may pay any part or all of the deductible amount to effect settlement of any "claim" or "suit" and, upon notification of the action taken, you shall promptly reimburse us for such part of the deductible amount as we have paid.

E. For the purposes of the coverage provided by this endorsement, Conditions **2.** and **4.** of **Section IV – Commercial General Liability Conditions** are replaced by the following:

2. Duties In The Event Of An Act, Error Or Omission, Or "Claim" Or "Suit"

a. You must see to it that we are notified as soon as practicable of an act, error or omission which may result in a "claim". To the extent possible, notice should include:

(1) What the act, error or omission was and when it occurred; and

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(2) The names and addresses of anyone who may suffer damages as a result of the act, error or omission.

b. If a "claim" is made or "suit" is brought against any insured, you must:

(1) Immediately record the specifics of the "claim" or "suit" and the date received; and

(2) Notify us as soon as practicable.

You must see to it that we receive written notice of the "claim" or "suit" as soon as practicable.

c. You and any other involved insured must:

(1) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the "claim" or "suit";

(2) Authorize us to obtain records and other information;

(3) Cooperate with us in the investigation or settlement of the "claim" or defense against the "suit"; and

(4) Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the insured because of an act, error or omission to which this insurance may also apply.

d. No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation or incur any expense without our consent.

4. Other Insurance

If other valid and collectible insurance is available to the insured for a loss we cover under this endorsement, our obligations are limited as follows:

a. Primary Insurance

This insurance is primary except when Paragraph **b.** below applies. If this insurance is primary, our obligations are not affected unless any of the other insurance is also primary. Then, we will share with all that other insurance by the method described in Paragraph **c.** below.

b. Excess Insurance

(1) This insurance is excess over any of the other insurance, whether primary, excess, contingent or on any other basis that is effective prior to the beginning of the policy period shown in the Schedule of this insurance and that applies to an act, error or omission on other than a claims-made basis, if:

(a) No Retroactive Date is shown in the Schedule of this insurance; or

(b) The other insurance has a policy period which continues after the Retroactive Date shown in the Schedule of this insurance.

(2) When this insurance is excess, we will have no duty to defend the insured against any "suit" if any other insurer has a duty to defend the insured against that "suit". If no other insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all those other insurers.

(3) When this insurance is excess over other insurance, we will pay only our share of the amount of the loss, if any, that exceeds the sum of the total amount that all such other insurance would pay for the loss in absence of this insurance; and the total of all deductible and self-insured amounts under all that other insurance.

(4) We will share the remaining loss, if any, with any other insurance that is not described in this Excess Insurance provision and was not bought specifically to apply in excess of the Limits of Insurance shown in the Schedule of this endorsement.

c. Method Of Sharing

If all of the other insurance permits contribution by equal shares, we will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable limit of insurance or none of the loss remains, whichever comes first.

If any of the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limits of insurance to the total applicable limits of insurance of all insurers.

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F. For the purposes of the coverage provided by this endorsement, the following Extended Reporting Period provisions are added, or, if this endorsement is attached to a claims-made Coverage Part, replaces any similar Section in that Coverage Part:

EXTENDED REPORTING PERIOD

1. You will have the right to purchase an Extended Reporting Period, as described below, if:

a. This endorsement is canceled or not renewed; or

b. We renew or replace this endorsement with insurance that:

(1) Has a Retroactive Date later than the date shown in the Schedule of this endorsement; or

(2) Does not apply to an act, error or omission on a claims-made basis.

2. The Extended Reporting Period does not extend the policy period or change the scope of coverage provided. It applies only to "claims" for acts, errors or omissions that were first committed before the end of the policy period but not before the Retroactive Date, if any, shown in the Schedule. Once in effect, the Extended Reporting Period may not be canceled.

3. An Extended Reporting Period of five years is available, but only by an endorsement and for an extra charge.

You must give us a written request for the endorsement within 60 days after the end of the policy period. The Extended Reporting Period will not go into effect unless you pay the additional premium promptly when due.

We will determine the additional premium in accordance with our rules and rates. In doing so, we may take into account the following:

a. The "employee benefit programs" insured;

b. Previous types and amounts of insurance;

c. Limits of insurance available under this endorsement for future payment of damages; and

d. Other related factors.

The additional premium will not exceed 100% of the annual premium for this endorsement.

The Extended Reporting Period endorsement applicable to this coverage shall set forth the terms, not inconsistent with this Section, applicable to the Extended Reporting Period, including a provision to the effect that the insurance afforded for "claims" first received during such period is excess over any other valid and collectible insurance available under policies in force after the Extended Reporting Period starts.

4. If the Extended Reporting Period is in effect, we will provide an extended reporting period aggregate limit of insurance described below, but only for claims first received and recorded during the Extended Reporting Period.

The extended reporting period aggregate limit of insurance will be equal to the dollar amount shown in the Schedule of this endorsement under Limits of Insurance.

Paragraph **D.1.b.** of this endorsement will be amended accordingly. The Each Employee Limit shown in the Schedule will then continue to apply as set forth in Paragraph **D.1.c.**

G. For the purposes of the coverage provided by this endorsement, the following definitions are added to the **Definitions** Section:

1. "Administration" means:

a. Providing information to "employees", including their dependents and beneficiaries, with respect to eligibility for or scope of "employee benefit programs";

b. Handling records in connection with the "employee benefit program"; or

c. Effecting, continuing or terminating any "employee's" participation in any benefit included in the "employee benefit program".

However, "administration" does not include handling payroll deductions.

2. "Cafeteria plans" means plans authorized by applicable law to allow employees to elect to pay for certain benefits with pre-tax dollars.

3. "Claim" means any demand, or "suit", made by an "employee" or an "employee's" dependents and beneficiaries, for damages as the result of an act, error or omission.

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4. "Employee benefit program" means a program providing some or all of the following benefits to "employees", whether provided through a "cafeteria plan" or otherwise:

a. Group life insurance, group accident or health insurance, dental, vision and hearing plans, and flexible spending accounts, provided that no one other than an "employee" may subscribe to such benefits and such benefits are made generally available to those "employees" who satisfy the plan's eligibility requirements;

b. Profit sharing plans, employee savings plans, employee stock ownership plans, pension plans and stock subscription plans, provided that no one other than an "employee" may subscribe to such benefits and such benefits are made generally available to all "employees" who are eligible under the plan for such benefits;

c. Unemployment insurance, social security benefits, workers' compensation and disability benefits;

d. Vacation plans, including buy and sell programs; leave of absence programs, including military, maternity, family, and civil leave; tuition assistance plans; transportation and health club subsidies; and

e. Any other similar benefits designated in the Schedule or added thereto by endorsement.

H. For the purposes of the coverage provided by this endorsement, Definitions **5.** and **18.** in the **Definitions** Section are replaced by the following:

5. "Employee" means a person actively employed, formerly employed, on leave of absence or disabled, or retired. "Employee" includes a "leased worker". "Employee" does not include a "temporary worker".

18. "Suit" means a civil proceeding in which damages because of an act, error or omission to which this insurance applies are alleged. "Suit" includes:

a. An arbitration proceeding in which such damages are claimed and to which the insured must submit or does submit with our consent; or

b. Any other alternative dispute resolution proceeding in which such damages are claimed and to which the insured submits with our consent.

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ENDORSEMENT NO. _____

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SUBCONTRACTORS SPECIAL CONDITIONS

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE FORM

The following is added to **SECTION IV—COMMERCIAL GENERAL LIABILITY CONDITIONS:**

Subcontractors Special Conditions

You will obtain current certificates of insurance from all subcontractors providing evidence of:

1. "Bodily injury" and "property damage" liability Limits of Insurance equal to or greater than the limits of insurance provided by this policy for the Commercial General Liability Coverage Part.
2. Insurance coverage is written on ISO CG 00 01 or equivalent.
3. Effective dates of coverage that coincide with the period of time during which work is being performed by a subcontractor for you or on your behalf.

Failure to comply with these conditions at the time of a claim will result in amendment of "attachment point" per the following:

"Attachment point" amount will be three times the amount shown on either the Deductible Endorsement or Self-Insured Retention Endorsement subject to a minimum of $25,000 and a maximum of $75,000.

For purposes of this endorsement, the following definitions apply:

"Attachment point" means either the deductible or the Self-Insured Retention that is described elsewhere on this policy.

"Per claim basis" means the deductible applies to all damages sustained by any one person because of "bodily injury" or "property damage."

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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

COMMUNICABLE DISEASE EXCLUSION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

A. The following exclusion is added to Paragraph **2. Exclusions** of Section **I – Coverage A – Bodily Injury And Property Damage Liability:**

2. Exclusions

This insurance does not apply to:

Communicable Disease

"Bodily injury" or "property damage" arising out of the actual or alleged transmission of a communicable disease.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the:

a. Supervising, hiring, employing, training or monitoring of others that may be infected with and spread a communicable disease;

b. Testing for a communicable disease;

c. Failure to prevent the spread of the disease; or

d. Failure to report the disease to authorities.

B. The following exclusion is added to Paragraph **2. Exclusions** of Section **I – Coverage B – Personal And Advertising Injury Liability:**

2. Exclusions

This insurance does not apply to:

Communicable Disease

"Personal and advertising injury" arising out of the actual or alleged transmission of a communicable disease.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the:

a. Supervising, hiring, employing, training or monitoring of others that may be infected with and spread a communicable disease;

b. Testing for a communicable disease;

c. Failure to prevent the spread of the disease; or

d. Failure to report the disease to authorities.

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ENDORSEMENT NO. _____

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

WRAP-UP INSURANCE PROGRAM EXCLUSION

This endorsement modifies the insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE FORM

A. The following exclusion is added to **SECTION—I COVERAGES, COVERAGE A—BODILY INJURY AND PROPERTY DAMAGE LIABILITY** paragraph **2. Exclusions** and **SECTION—I COVERAGES, COVERAGE B—PERSONAL AND ADVERTISING INJURY LIABILITY,** paragraph **2. Exclusions:**

This insurance does not apply to:

Any actual or alleged "bodily injury," "property damage," "personal and advertising injury," costs or expenses of any kind arising out of any project that is or was subject to a provided "wrap-up program" and arising out of or resulting from:

(1) "Your work" or any other work conducted by you, any insured on your or any insured's behalf, or by any other contractor, subcontractor or anyone else on the project;

(2) "Your product" or any other supply of materials provided by you, any insured on your or any insured's behalf, or by any other contractor, subcontractor or anyone else on the project; or

(3) Your services or operations conducted by you, any insured on your or any other insured's behalf, or by any other contractor, subcontractor or anyone else on the project;

whether arising out of a project, "your work," any other work, "your product," any other supply of materials or any completed or ongoing service or operation included within the "products-completed operations hazard."

The exclusion above applies whether or not the "wrap-up program":

(a) Provides coverage identical to that provided by this Coverage Part;

(b) Has limits adequate to cover all claims;

(c) Remains in effect; or

(d) Has been terminated.

B. Where a "wrap-up program" is available, **SECTION IV—COMMERCIAL GENERAL LIABILITY CONDITIONS,** paragraph **4. Other Insurance** is deleted in its entirety and replaced with the following:

4. Other Insurance

If other valid and collectible insurance is available to the insured under a "wrap-up program" for a loss we would otherwise cover under any Coverage Part of this policy, our obligations are extinguished as described in Paragraph **A.** of this endorsement.

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C. The following is added to **SECTION V—DEFINITIONS**:

"Wrap-up program" means any owner-controlled insurance program, contractor-controlled insurance program or any other wrap-up or consolidated insurance program under which one party has secured either insurance or self-insurance covering some or all of the contractors or subcontractors performing work on one or more specific projects.

All other terms and conditions of this policy remain unchanged.

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ENDORSEMENT NO. _____

ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PRODUCTS POLLUTION LIABILITY ENDORSEMENT

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

In consideration of the premium charged, **SECTION I—COVERAGES, Coverage A. Bodily Injury and Property Damage Liability,** subsection **2. Exclusions,** paragraph **f. Pollution,** subparagraph **(1)** does not apply to "bodily injury" or "property damage" occurring away from premises you own or rent and arising out of "your product."

Solely as respects to this endorsement, the coverage provided by this endorsement does not include "bodily injury" or "property damage" arising out of:

1. Products that are still in your physical possession;

2. The transportation of property, unless the injury or damage arises out of a condition in or on a vehicle created by the "loading or unloading" of it;

3. The existence of tools, uninstalled equipment or abandoned, unused materials;

4. The actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants" or waste material prior to the inception of this policy or on or prior to a retroactive date;

5. Any insured's intentional, willful or deliberate non-compliance with any statue, regulation, ordinance, administrative complaint, notice of violation, notice letter, executive order or instructions of any governmental body or agency;

6. The rendering of or failure to render professional services by any insured;

7. The actual, alleged or threatened exposure to any radioactive matter, or based upon or attributable to acid rain conditions;

8. "Your product" performing as it was intended to perform; or

9. "Your product" or your waste which were disposed, unless specifically scheduled to the policy.

The coverage provided by this endorsement does not apply to claims or "suits" seeking non-pecuniary relief.

The aggregate limit of insurance applying to the coverage provided by this endorsement is the Products-Completed Operations Aggregate Limit.

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If progressive, inseparable “bodily injury” or “property damage” arising out of the same, related, or continual pollution conditions continue during the policy period of more than one policy issued by the Company, then all such “bodily injury” or “property damage” shall be deemed to have occurred only on the last day of the policy period of the first such policy issued by the Company. All loss resulting from such “bodily injury” or “property damage” shall be subject to the Limits of Insurance of that first policy.

All other terms and conditions of this Policy remain unchanged.

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ATTACHED TO AND FORMING A PART OF POLICY NUMBER	ENDORSEMENT EFFECTIVE DATE (12:01 A.M. STANDARD TIME)	NAMED INSURED	AGENT NO.
ENS0012781	11/15/2025	Market Metal Pipe And Supply LLC	09738

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CROSS LIABILITY EXCLUSION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE FORM

The following is added to **SECTION I—COVERAGES, COVERAGE A BODILY INJURY AND PROPERTY DAMAGE LIABILITY,** paragraph **2. Exclusions:**

This insurance does not apply to “bodily injury” or “property damage” arising out of any claim or “suit” brought by any Named Insured against another Named Insured.

The following is added to **SECTION I—COVERAGES, COVERAGE B PERSONAL AND ADVERTISING INJURY LIABILITY,** paragraph **2. Exclusions:**

This insurance does not apply to “personal and advertising injury” arising out of any claim or “suit” brought by any Named Insured against another Named Insured.

AUTHORIZED REPRESENTATIVE DATE